

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-17

BAKERLY, LLC

COMPLAINANT,

v.

SEAFRIGO USA INC.

RESPONDENT.

**RESPONDENT SEAFRIGO USA INC.'S OPPOSITION TO BAKERLY, LLC'S
MOTION FOR PARTIAL SUMMARY JUDGMENT**

Respondent Seafrigo USA Inc. ("Respondent" or "Seafrigo") hereby submits its Opposition to the Motion for Partial Summary Judgment filed by Bakerly, LLC ("Bakerly").

**I.
INTRODUCTION**

Bakerly's Motion for Partial Summary Judgment is both procedurally and substantively deficient. Bakerly moves for summary judgment now despite the fact that discovery is incomplete.¹ Indeed, Bakerly does so despite the fact that it has failed to produce written discovery

¹ Two days ago on December 5, 2022, thirteen days after its Motion for Partial Summary Judgment was filed Bakerly sent correspondence to Seafrigo indicating that contrary to the position set forth in its Motion, Bakerly was no longer disputing Seafrigo's right to recover detention and demurrage charges which accrued as a result of port closures due to snowstorms and was no longer disputing Seafrigo's right to recover detention and demurrage charges occurring as a result of Bakerly's deficient warehousing operations. This reversal wholly undermines Bakerly's contention that summary judgment can be granted now because there is no need for discovery to determine the cause of the detention and demurrage in dispute. Bakerly's recognition of its obligation to pay detention and demurrage caused by third parties and events beyond Seafrigo's

related to its widespread and continuous inability to provide warehouse space to accept delivery of the containers at issue, which failure precipitated much of the demurrage and detention charges at issue. Seafrigo has had a meet and confer to address Bakerly's failure to comply with its discovery obligations and while Bakerly has promised to supplement its discovery responses, as of yet it has failed to do so. Given Bakerly's far reaching failure to comply with its written discovery obligations, Seafrigo also has not had a chance to depose Bakerly representatives on Bakerly's inability to accept the containers at issue. Seafrigo also has not had a chance to take discovery related to, *inter alia*, Bakerly's newly articulated position that: 1) Seafrigo is responsible for paying detention and demurrage charges arising directly from Bakerly's own inability to accept containers for delivery and to timely unload such containers at its warehouses; 2) Seafrigo is responsible for paying detention and demurrage charges which are straight pass-throughs from third parties (without any markup from Seafrigo), even if Seafrigo in no way contributed to such detention and demurrage charges; and 3) Bakerly's failure to inform Seafrigo that it had no intention of paying significant detention and demurrage charges being advanced by Seafrigo on Bakerly's behalf for an extended period of time (and attempting to claw back payments that it had already paid), for which Seafrigo was invoicing Bakerly on a regular basis.² Discovery would reveal whether this newly articulated legal position was part of a calculated decision on the part of

control, such as snowstorms, as well as charges resulting from Bakerly's own actions, also flatly contradicts its contention that the parties' contracts place the burden on Seafrigo to pay detention and demurrage regardless of the cause.

² If Bakerly had informed Seafrigo that it was not intending to pay the charges that were accruing, Seafrigo would have discontinued making the millions of dollars in advances it made on behalf of Bakerly. (Seafrigo was entitled to terminate its services to Bakerly at any time pursuant to both the Negotiated Rate Agreement under which the cargo moved and the applicable bills of lading.) SSoF 38. Seafrigo was also not obligated to advance funds on Bakerly's behalf. SSoF 40. Seafrigo nonetheless did so as an accommodation to Bakerly.

Bakerly to allow Seafrigo to continue to advance millions of dollars on Bakerly's behalf, without disclosing that it never intended to pay the regular invoices it was receiving.

Bakerly's Motion to rewrite well-established maritime law governing a shipper's obligation to pay demurrage and detention charges is also substantively defective. Bakerly primarily relies upon a single provision in Seafrigo's Rules Tariff which provides that Bakerly assumes all expenses in connection with the transportation service provided, including for the pickup, transport, and delivery of containers or goods moving between the port of loading and port of discharge on the one hand, and Merchant's facility on the other hand, "except to the extent that the goods are door cargo." Seafrigo submits that the clear intent of the language cited is that for door cargo moves, in which the charges being assessed by the carrier incorporate the actual cost of picking up, transporting and delivering the cargo, such charges will not be double-billed to the shipper. Seafrigo submits that if the intent of the cited provision had been to negate any obligation on the part of a shipper to pay detention and demurrage charges that might accrue, it would have clearly said so, particularly when such an interpretation rewrites centuries of maritime law, and flatly contradicts other clear contractual provisions between the parties.

Perhaps most telling in this regard is that the parties entered into Negotiated Rate Agreements ("NRAs") for the transportation services at issue each of which was individually negotiated between the parties. Each NRA expressly provides that the "Rate Proposal does not include demurrage and detention charges for which the shipper and/or consignee may be liable and port and port terminal handling charges." (Those charges are a significant portion of the charges in dispute here, although inexplicably Bakerly also has refused to pay freight charges which are not legitimately in dispute.) The NRAs also include a Standard Accessorial Tariff Provision which specifies that *per diem, detention and demurrage charges are payable at cost per*

terminal or carrier. These are the very charges which Bakerly belatedly contends are inapplicable. If Bakerly legitimately believed it did not have to pay such charges, it would not have agreed to do so as specified in each of the NRAs.

Bakerly's belated interpretation of Rule 17.2.1 of the Rules Tariff is also inconsistent with the remainder of the Rules Tariff and the actual bill of lading terms and conditions issued by Seafrigo (which does not include Rule 17.2.1 upon which Bakerly now seeks to rely). Rule 17.2.1 contains no reference to detention and demurrage charges and cannot reasonably be interpreted as negating such obligations. Nor can Rule 17.2.1 be interpreted as nullifying numerous other bill of lading terms and Tariff Rules which specify, *inter alia*, that: 1) Bakerly undertakes to return containers within the time period provided for in Carrier's applicable tariff and Bakerly shall pay Carrier for the applicable demurrage or detention charges;³ 2) Bakerly appointed Seafrigo as its agent for acquiring containers and chassis for such transportation and agreed to free time, as well as demurrage and detention, storage and other charges that accrue with respect to containers and chassis used for such transportation, all of which were for the account of Bakerly except to the extent solely attributable to actions or omissions of Seafrigo;⁴ 3) Seafrigo is entitled to full compensation if hindrances prevent the complete performance of the contract;⁵ 4) Seafrigo is not responsible for loss resulting from Bakerly's own actions (such as, for example, not having warehouse space to accept containers);⁶ 5) Seafrigo is not liable for events which it could not avoid

³ Bill of Lading Clause 9.4.

⁴ Tariff Rule 17.1.

⁵ Port closures due to storms, and port congestion arising from COVID and the widespread congestion plaguing the movement of goods by ocean transportation during the time at issue constitute obvious examples of such hindrances. *See* Bill of Lading Rule 5.1

⁶ Bill of Lading Rule 6.5.

and the consequences of which it could not prevent by the exercise of due diligence;⁷ 6) Bakerly is liable for all charges levied on the goods;⁸ 7) Bakerly indemnifies Seafrigo against all claims, costs and other amounts which may be incurred or imposed upon Seafrigo by reason of Bakerly's failure to comply with the terms of the bill of lading;⁹ or 8) numerous Tariff Rules which obligate Bakerly to pay yard storage, congestion fees and related charges.¹⁰

Bakerly's attempt to rely upon Rules Tariff 15.3 to support its argument that it can disregard its obligations to take delivery of containers and to timely allow for their return with impunity is equally misplaced. Rule 15.3 provides that the demurrage provision cited therein does not apply if failure to remove the container from the terminal is the responsibility of the Carrier. As set forth herein, however, the failure to remove the containers from the terminal were not the responsibility of Seafrigo. Instead, the failure was either a direct result of Bakerly's lack of warehouse space to accept containers or due to nationwide port congestion and/or port closures which were in no way Seafrigo's responsibility. Indeed, despite the problems in both the industry in general and Bakerly warehouses specifically, Seafrigo's DWELL time for containers it was transporting were below the national average.¹¹

In addition to being contrary to the language of the NRAs and the bills of lading terms and conditions, Bakerly's newfound interpretation of the contracts is contrary to the parties well-established course of conduct as well as the course of dealing in the maritime industry at large. Although significant amounts of demurrage did not begin to accrue until late in 2020 Bakerly

⁷ Bill of Lading Rule 6.5(h).

⁸ Bill of Lading Rule 18.3

⁹ Bill of Lading Rule 18.5.

¹⁰ *See, e.g.*, Tariff Rules 7.32, 7.36, and 7.37.

¹¹ DWELL time is the amount of time a container remains dormant at a terminal or port.

assumed such obligations when Seafrigo first started providing transportations services for Bakerly in 2018. Throughout their contractual relationship it was the established practice between the parties that Seafrigo would advance funds to third parties, such as terminal operators and VOCCs for detention and demurrage charges, and Bakerly would then reimburse Seafrigo for those charges. Seafrigo did so as an accommodation to Bakerly in order to allow for the release of Bakerly's containers and to prevent such charges from continuing to accrue. Regardless of whether such charges are paid directly by the shipper or consignee or advanced by the NVOCC, the shipper or consignee bears the ultimate responsibility for paying detention and demurrage that accrues. That was not only the established course of conduct between Seafrigo and Bakerly, it is the established course of conduct between NVOCCs, shippers and consignees for decades. Advances are made by NVOCCS because requiring shippers and consignees to always pay such charges in advance would unnecessarily slow ocean transportation and grind transportation to a halt with containers sitting at ports and terminals for extended periods of time.

Bakerly's argument also should be rejected on policy grounds as it would cause an illogical, if not nonsensical, result and would be contrary to the goals reflected in the Shipping Act and OSRA 2022. Reduced to its nub, Bakerly's contention is that it is not obligated to pay demurrage and detention charges imposed by VOCCs and marine terminal operators even in instances where such charges are a direct result of its own failure to accept goods for delivery or to have space to do so, or to unload delivered containers and to allow for their return to the terminal. Taken to its logical conclusion, under Bakerly's rationale, Bakerly could refuse to accept delivery of any containers at its warehouses (or indeed have no warehouses at all) and allow demurrage charges to accumulate indefinitely, knowing that it would never bear any financial responsibility for its actions. Similarly, Bakerly could use containers that are delivered to it as permanent storage

facilities, thus denying NVOCCs and terminal operators access to their property, knowing that it could do so with financial impunity. Adoption of such a position would run afoul of one of the primary goals of OSRA 2022, *i.e.* to ensure that detention and demurrage act as a financial incentive to promote the efficient movement of cargo. 46 U.S.C. § 40101(2).

The imposition of significant detention and demurrage charges against Seafrigo in instances where it is simply passing along such charges being imposed by third parties is also contrary to the policy goals set forth in the Shipping Act and OSRA 2022. The indisputable facts, which Bakerly refuses to address, are that the vast majority of the detention and demurrage charges at issue were assessed against Seafrigo by steamship lines or terminals which costs were then passed on to Bakerly without markup. *See e.g.*, Bakerly Exh. 3 (NRA - Accessorial Tariff). OSRA 2022's safe harbor provisions confirm that NVOCCs such as Seafrigo are not liable for detention and demurrage assessed by third parties for which the NVOCC is responsible. 46 U.S.C. § 41104(e). Applying that principle compels dismissal of Bakerly's attempt to assess such charges against Seafrigo.

A. Response to Bakerly's Statement of Uncontested Facts

Seafrigo is hampered in responding to Bakerly's Statement of Uncontested Facts given that Bakerly failed to number them. Generally, however, Seafrigo responds as follows:

1. Seafrigo does not dispute that it is an NVOCC that provided door transportation services on behalf of Bakerly.
2. Seafrigo does not dispute that consistent with the terms of the NRAs, the bill of lading contracts between the parties, Seafrigo's Tariff Rules, and the parties well established course of conduct, Bakerly has paid \$973,227.05 in demurrage and detention charges.

3. Seafrigo does not dispute that Bakerly has failed to pay \$1,384,017.47 in demurrage and detention charges that are owing.
4. Seafrigo does not dispute that the bill of lading contracts and Tariff Rules contain the language cited but disputes Bakerly's interpretation of same.
5. Seafrigo does not dispute that Bakerly owes Seafrigo additional money unrelated to detention and demurrage charges.

B. Supplemental Statement of Undisputed Material Facts

1. The detention, demurrage and ancillary ("D&D") charges at issue primarily arose from two main categories: 1) an inability to pick up containers from a port or terminal, or to return empty containers to the port or terminal, because of nationwide congestion that plagued the ocean transportation industry in 2021 and early 2022; and/or 2) Bakerly's warehousing system which was unable to accept containers when they arrived at the port or terminal, because Bakerly lacked space to accept them or because its warehouse operators could not coordinate receipt of the containers. *See* Declaration of Al Raffa ("Raffa Dec. at 28), Exhibit 1.

Terms of Applicable Contracts

NRAs

2. Seafrigo and Bakerly carefully and extensively crafted Negotiated Rate Agreements ("NRAs") for the transportation services at issue. Raffa Dec. at 3; sample NRAs are attached as Exhibit 2.
3. Each NRA expressly provides that the "Rate Proposal does not include demurrage and detention charges for which the shipper and/or consignee may be liable and port and port terminal handling charges." Raffa Dec. at 4; *See* Exhibit 2. at pp. 2, 7, 13, 18, 24, 27.

4. Each of the NRAs includes a Standard Accessorial Tariff Provision which specifies that *per diem, detention and demurrage charges are payable at cost per terminal or carrier*. Raffa Dec. at 5; Exh. 2 at pp. 6, 12, 17, 22.

Bill of Lading Provisions

5. The Seafrigo bills of lading, Exhibit 3. include the following terms and conditions:
6. Clause 5.1. (Hindrance Clause) which specifies that while Seafrigo shall use reasonable endeavors to complete transport and to deliver the goods at the specified place of delivery, if in Seafrigo's opinion such delivery will be hindered by any risk, delay or difficulty, Seafrigo has no duty to complete the performance of the contract.
7. Clause 5.1 further specifies that "[i]n any event, Seafrigo shall be entitled to full freight for any transportation and additional compensation for extra costs resulting from the hindrance."
8. Clause 6.4 (Basic Liability) provides that Seafrigo does not undertake that the goods shall be delivered at any particular time and shall not be liable for any direct or indirect losses caused by any delay.
9. Clause 6.5 provides that Seafrigo "*shall not be liable for any loss or damage arising from (a) an act or omission of Merchant or person other than Carrier acting on behalf of Merchant from which Carrier took the goods in charge.*" (Emphasis supplied).
10. Clause 6.5(h) provides that Seafrigo shall not be liable for "*any cause or events which Carrier could not avoid and the consequences of which he could not prevent by the exercise of due diligence.*" (Emphasis supplied).

11. Clause 9.4 (Carrier's Containers) provides that Bakerly undertakes to return containers within the time period provided for in Carrier's applicable tariff; otherwise Bakerly shall pay Carrier for the demurrage or detention charges applicable to the containers.
12. Clause 16 (Delivery) provides that if goods should remain in Seafrigo's custody after discharge from the ship, and possession is not taken by Bakerly, after notice within the time allowed in Carrier's tariff, the goods may be deemed to have been delivered to Bakerly. It further states that Seafrigo has the option to store the goods at Bakerly's expense.
13. Clause 18.3 (Freight and Charges) provides that Bakerly shall be liable for all charges levied on the goods.
14. Clause 18.5 provides that Bakerly, and any person acting on its behalf, shall indemnify Seafrigo against all claims, costs and other amounts which may be incurred or imposed upon Seafrigo by reason of Bakerly's failure to comply with the terms of the bill of lading or any statutory or regulatory requirement.

Tariff Rules

15. The Tariff Rules, attached as Exhibit 4, include the following:
16. Rule 7-17 provides that there will be an administrative fee for per diem/demurrage/detention of \$45.00 per container.
17. Rule 7-22 provides that after two hours of free time, there will be a charge for Detention during Regular Business Hours of \$90.00 per hour, a charge of \$150 per hour during Saturdays and Sundays and a charge of \$250 per hour during National

Holidays. This charge applies when a driver has to spend an extended period of time at the destination delivery site.

18. Rule 7-26 provides that there is a driver layover charge of \$250 per hour. This charge applies when a driver has to spend an unscheduled night (layover) at the destination delivery site. Raffa Dec. at 7.
19. Rule 7-27 provides that there is a driver labor charge of \$75 per hour. This charge applies when a driver is asked to assist with the unloading of the delivery. Raffa Dec. at 7.
20. Rule 15.1 provides that Seafrigo is a non-vessel-operating common carrier and the equipment it uses to provide the transportation services at issue is provided by the vessel-operating common carrier (VOCC) that operates the vessel transporting the cargo.
21. Rule 15.2 provides that the VOCC imposes detention charges if empty containers released for loading and/or unloading containers released for unloading are not returned within a specified period of time (free time). *“Merchant shall be liable to Carrier for any detention charges imposed on Carrier by VOCC as a result of Merchant’s failure to return containers within applicable free time.”* (Emphasis supplied).
22. Rule 15.3 provides that the VOCC imposes demurrage charges if loaded containers are not removed from the marine terminal within a specified period of time (free time). The provision applies when removal of the containers from the terminal is the responsibility of the Carrier. It further provides that Merchant shall be liable to

Carrier for any demurrage charges imposed on carrier by VOCC as a result of Merchant's failure to remove containers within the applicable free time.

23. Rule 17.1 states that by tendering shipments to Carrier for transportation, Bakerly appoints Seafrigo as its agent for acquiring containers and chassis for such transportation and agrees to free time, as well as demurrage and detention, storage and other charges that accrue with respect to containers and chassis used for such transportation, all of which shall be for the account of the Merchant *except to the extent solely attributable to actions or omissions of Carrier*. (Emphasis supplied).
24. 17.2.1 provides that any "surcharges, arbitraries, additional or other similar add on charges assessed by the VOCC carrying Merchants cargo will be paid on Merchant's behalf by Carrier and passed through to Merchant without mark up."

C. Parties Course of Conduct

25. Bakerly's newfound interpretation of the contracts is contrary to the parties well-established course of conduct, as well as the course of dealing in the maritime industry at large. Raffa Dec. at 8.
26. Beginning in 2018 it was the established practice between Seafrigo and Bakerly that Seafrigo would advance funds to third parties, such as terminal operators and VOCCs for detention and demurrage charges, and Bakerly would then reimburse Seafrigo for those charges (although significant amounts of such charges did not accrue until late in 2020). Raffa Dec. at 9. Seafrigo did so as an accommodation to Bakerly in order to allow for the release of Bakerly's containers and to prevent such charges from continuing to accrue. Raffa Dec. at 9.
27. That was not only the established course of conduct between Seafrigo and Bakerly, it is the established course of conduct between NVOCCs and shippers and

consignees since time immemorial. Raffa Dec. at 10. Requiring that shippers and consignees always pay such charges in advance would unnecessarily slow ocean transportation and grind such transportation to a halt with containers sitting at ports and terminals for extended periods of time. *Id.*.

28. The vast amount of the charges in dispute are demurrage and detention charges assessed by VOCCs and marine terminals, which for most of the time period at issue were straight pass-through charges assessed without mark up. Raffa Dec. at 11.
29. Seafrigo only began assessing administrative costs associated with the invoices in dispute when the amount of money it had paid to third parties such as marine terminals had accumulated to such excessive amounts that it was unnecessarily impacting Seafrigo's cash flow. Raffa Dec. at 12.
30. As reflected above, marine terminal operators always required payment of demurrage charges in order to obtain the release of Bakerly containers. Raffa Dec. at 13.
31. If Seafrigo failed to pay such charges, the containers would remain at the terminal and demurrage charges would continue to accrue. Raffa Dec. at 14.
32. Seafrigo invoiced Bakerly such charges on a regular basis. Raffa Dec. at 15.
33. Bakerly timely paid some of the demurrage, detention and other ancillary charges assessed by Seafrigo. Raffa Dec. at 16.
34. In other instances, Bakerly disputed the invoices, falsely claiming that more backup information was required. Raffa Dec. at 17.

35. Throughout the time period at issue Bakerly was fully aware that Seafrigo was going out of its own pocket to pay steamship lines and terminals for assessed detention and demurrage charges in order to allow Bakerly's containers to be released. Raffa Dec. at 18. Seafrigo has been doing so since early in the parties' contractual relationship dating back to 2018. *Id.*
36. Bakerly at no time instructed Seafrigo that it should not advance detention and demurrage charges on its behalf. Raffa Dec. at 19.
37. Prior to initiating this litigation Bakerly never asserted that it had no contractual obligation to pay detention and demurrage associated with the cargo. Raffa Dec. at 20.
38. If Seafrigo had been informed that Bakerly thought that Seafrigo was assuming the obligation to pay detention, demurrage, per diem, and other ancillary charges, it would have refused to make the millions of dollars in advances it made on behalf of Bakerly. Raffa Dec. at 21.
39. Seafrigo was entitled to terminate its services to Bakerly at any time pursuant to both the Negotiated Rate Agreements under which the cargo moved and the applicable bills of lading. Raffa Dec. at 22.
40. Seafrigo was also under no obligation to extend credit to shippers or consignees. Instead, the option to make such advances was in its sole discretion. Tariff Rule 5.3
41. The margins for the transportation services provided by NVOCCs are so narrow that it would be economically unfeasible for a NVOCC to assume the obligation to pay detention, demurrage, per diem, and other ancillary charges rather than having

such charges be the responsibility of the shipper and/or consignee. Raffa Dec. at 23.

42. In his thirty (30) years of experience, Alfonse Raffa, the Managing Director of Seafrigo, recognizes that it has uniformly been the obligation of the shipper or consignee to pay for detention and demurrage charges, as opposed to the NVOCC, unless such charges are a result of the NVOCC's failure to perform. Raffa Dec. at 24.
43. Included among the charges being disputed by Bakerly are ones that arose due to the New York port being closed by snowstorms. Raffa Dec. at 25.
44. Other charges were the result of nationwide congestion that plagued the ocean transportation industry in 2021 and early 2022. Raffa Dec. at 26. Such charges were in no way caused by or attributable to Seafrigo and could not be avoided by the exercise of due diligence on the part of Seafrigo. *Id.*
45. For an extended period, Bakerly was on notice of the charges that were accruing due to its dysfunctional warehousing operations but failed to correct the problem. Raffa Dec. at 27.
46. When Bakerly's containers arrived at the port or terminal, Bakerly was not in a position to receive the containers either because it lacked space to accept them or because its warehouse operators could not coordinate receipt of the containers. Raffa Dec. at 28.
47. As a result, Bakerly's containers sat at terminals for extended periods of time during which time steamship lines or terminals assessed large amounts of demurrage charges. Raffa Dec. at 29.

48. In 2021 Bakerly informed Seafrigo that it must limit delivery of inbound containers due to “complications and internal decisions” by Bakerly. Raffa Dec. at 30.
49. Seafrigo was informed that this decision was necessary despite Bakerly’s recognition that it would result in additional costs in the form of demurrage, storage, or detention charges (which are the charges that Bakerly now refuses to pay). Raffa Dec. at 31.
50. There were also other instances in which Seafrigo was informed that one of Bakerly’s warehouses could accept only 1-2 containers per week, thus resulting in significant demurrage charges. Raffa Dec. at 32.
51. There were extensive communications regarding Bakerly warehouses being unable to accept containers and efforts to divert such containers to alternative locations so as to avoid further demurrage from accruing. Raffa Dec. at 33.
52. Ultimately, the situation became so bad that Bakerly informed Seafrigo that Bakerly had terminated its relationship with one of its warehousemen, but significant amounts of demurrage accrued prior (and even subsequent) to that time. Raffa Dec. at 34.
53. Bakerly’s defective warehousing system also caused significant detention charges to accrue because containers could not be emptied and made available for return to the port or terminal. Raffa Dec. at 36.
54. Bakerly’s dysfunctional warehousing system also made it difficult to retain truckers willing to service Bakerly loads knowing that extended unnecessary time would have to be spent in waiting to deliver, unload, and return its containers. All

detention and demurrage falling into this category was a direct result of the negligence of Bakerly. Raffa Dec. at 37.

55. Despite the delays plaguing both the industry in general and Bakerly warehouses specifically during the time at issue, Seafrigo's DWELL time for containers it was transporting was below the national average. Raffa Dec. at 38.
56. Bakerly has not paid Seafrigo for over \$800,000 in freight charges for services provided even though there is no dispute that such charges are owed and despite the fact that the Seafrigo bill of lading terms and conditions provide that such charges are deemed owed upon booking. Raffa Dec. at 39
57. Seafrigo's Rules Tariff expressly provides that all freight and charges are payable without refund or offset. Tariff Rule 5.

D. Procedural Posture

On September 12, 2022, the Presiding Judge entered a Scheduling Order which imposed the following deadlines: 1) Initial Discovery Requests were to be served by September 26, 2022; 2) December 20, 2022 was the last day to serve discovery requests; and 3) discovery was to close on January 19, 2023. Seafrigo served Interrogatories and Document Requests on September 26, to which Bakerly responded on November 2nd. *See* Exhibits 5 and 6.

The discovery sought by Seafrigo focused, *inter alia*, on issues with the Bakerly warehousing system, Bakerly's knowledge of the nationwide congestion that plagued the ocean transportation industry in 2021 and early 2022, the closure of New York ports due to snowstorms and the reasons for Bakerly's failure to pay invoices. Due to Bakerly's failure to provide

meaningful responses to much of the discovery, Seafrigo wrote a meet and confer letter, *see* Exhibit 7, and the parties met on November 22, 2022 to discuss the responses.¹²

As reflected in the meet and confer correspondence, although there was extensive communication between the parties regarding Bakerly's inability to accept loaded containers at its warehouses (or its designated warehouse providers' locations) and/or to allow for the timely unloading and returning of empty containers and chassis, Bakerly produced virtually no documents in response to the discovery. This failure was noteworthy given that included in the voluminous documents produced by Seafrigo on the subject were instances in which Bakerly informed Seafrigo that it must limit delivery of inbound containers due to "complications and internal decisions" by Bakerly. Seafrigo was informed that this decision was necessary despite Bakerly's recognition that it would result in additional costs in the form of demurrage, storage, or detention charges (which are the charges that Bakerly now refuses to pay). There were also other instances in which Seafrigo was informed that one of Bakerly's warehouses could accept only 1-2 containers per week, thus resulting in significant demurrage charges. Further, there were extensive communications regarding Bakerly warehouses being unable to accept containers and efforts to divert such containers to alternative locations so as to avoid further demurrage from accruing. Finally, Seafrigo sought Bakerly documents reflecting the numerous instances in which drivers were unable to timely unload containers at Bakerly warehouses or had to wait unreasonably extended hours in order to do so, none of which documents were as produced.¹³

¹² That was the same day that Bakerly filed its Motion for Partial Summary Judgment.

¹³ Among other things, Bakerly asserted that producing documents regarding its warehousing system was too burdensome and that such documents were irrelevant. Bakerly further asserted that it could not produce documents regarding its warehouses being unable to accept goods in transit because it did not know what "in transit" meant. *See* Document Request Responses 15 and 16.

Seafrigo also sought information regarding when Bakerly learned that Seafrigo was advancing funds on its behalf to terminals and VOCCs, which Interrogatory Bakerly refused to answer. *See* Interrogatory No. 30.

Although during the meet and confer Bakerly promised to provide supplemental discovery responses to address at least some of these inadequacies, as of yet it has failed to do so.

E. Standards Governing Summary Judgment Motions

A party moving for summary judgment has the burden of showing that no genuine issue of material fact exists and that the undisputed facts entitle it to judgment as a matter of law. *Rule v. Brine, Inc.*, 85 F.3d 1002 (2d Cir. 1996). In ruling on a motion for summary judgment, the court is required to draw all factual inferences in favor of, and take all factual assertions in the light most favorable to, the party opposing summary judgment. *See, e.g., Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242,255 (1986); *Rodriguez v. City of New York*, 72 F.3d 1051, 1061 (2d Cir. 1995). In considering the motion for summary judgment, the court is not to resolve disputed issues of fact but only to determine whether there is a genuine issue to be tried. *Anderson v. Liberty Lobby*, 477 U.S. at 255. Assessments of credibility and choices between conflicting versions of the events are not appropriate for consideration in a motion for summary judgment. *See, e.g., Fed. R. Civ. P. 56(e); Anderson v. Liberty Lobby* at 255. Thus, courts may not weigh the evidence and determine the truth of the matter at the summary judgment stage. *Id.* at 249.

**II.
ARGUMENT**

A. Bakerly's Motion is Premature

In a transparent attempt to avoid having to address the fact that much of the detention and demurrage charges at issue are a direct result of its own inability to accept containers for delivery and/or to timely unload them and allow for their return, Bakerly has now moved for partial

summary judgment asserting that discovery is unnecessary. Bakerly also ignores the fact that a significant portion of such disputed charges are mere pass-throughs of payments to third parties for expenses, which expenses were in no way caused by Seafrigo. In seeking summary judgment without the benefit of discovery, Bakerly also attempts to avoid having to explain why it allowed Seafrigo to incur millions of dollars in such expenses, for which Bakerly was receiving regular invoices from Seafrigo, without informing Seafrigo that it had no intention of paying the invoices because of its radical interpretation of the contracts at issue. Finally, in moving for summary judgment without the benefit of discovery, Bakerly seeks to avoid explaining why it negotiated and entered into a series of NRAs involving door moves in which it not only agreed that it would be held liable for detention and demurrage charges, as well as port and handling charges, *see* Supplemental Statement of Undisputed Material Facts (“SSoF”) above, but also expressly agreed that it was liable for “per diem, detention and demurrage charges at cost per terminal or carrier.” SSoF 4.

Bakerly also seeks to avoid having to explain why it entered into bill of lading contracts and agreed to Tariff Rules which provided that: 1) Bakerly would return containers within the time period provided for in Carrier’s applicable tariff and pay Carrier for the applicable demurrage or detention charges; 2) it appointed Seafrigo as its agent for acquiring containers and chassis for such transportation and agreed to free time, as well as paying demurrage and detention, storage and other charges that accrue with respect to containers and chassis used for such transportation, unless such costs were solely attributable to actions or omissions of Seafrigo; 3) it agreed that Seafrigo was not responsible for loss resulting from Bakerly’s own actions; 4) it agreed that Seafrigo was not liable for events which it could not avoid and the consequences of which it could not prevent by the exercise of due diligence; 5) it was liable for all charges levied on the goods; 6)

it indemnified Seafrigo against all claims, costs and other amounts by reason of Bakerly's failure to comply with the terms of the bill of lading. *See* SSoF 5-25.

Under the circumstances, Bakerly's motion is premature and should be denied.

B. Bakerly's Motion Disregards the Plain Language of the Contracts Between the Parties

Bakerly's Motion for Partial Summary Judgment fails because it ignores the plain language of the contracts between the parties. Most significantly, Bakerly fails to even acknowledge that for the door moves at issue it entered into a series of NRAs in which it expressly agreed that it was liable for "per diem, detention and demurrage charges at cost per terminal or carrier." *See* SSoF 3 and 4. Your Honor need go no further in denying Bakerly's motion.

Even if the language in Tariff Rule 17.2.1 could be construed as Bakerly now (belatedly) contends, it could not overcome the fact that the boilerplate therein should not override specific language which the parties expressly negotiated and agreed upon. SSoF 2. *See, e.g., Royal Ins. Co. of Am. v. Orient Overseas Container Line Ltd.*, 525 F.3d 409, 420 (6th Cir. 2008): "Well-founded principles of contract law establish that 'specific terms and exact terms are given greater weight than general language' and that 'separately negotiated or added terms are given greater weight than standardized terms....'" *citing* Restatement (Second) of Contracts § 203 (1981) and finding a clause specific to a negotiated bill of lading between ocean carrier and shipper was of greater weight than a clause in shipper's global terms and conditions. This is particularly true here where the legal proposition being advanced by Bakerly is flatly contrary to numerous other provisions in the parties' bill of lading contracts and Tariff Rules.

Seafrigo primarily relies upon the language in Rule 17.2.1 which provides that Bakerly assumes all expenses in connection with the transportation service provided, including for the pickup, transport, and delivery of containers or goods moving between the port of loading and port

of discharge on the one hand, and Merchant's facility on the other hand, "except to the extent that the goods are door cargo." Bakerly now contends that this language excuses it from detention, demurrage and per diem charges (even when such charges are solely due its own neglect). That however, it not what the Rule states. Instead, it merely makes the obvious and fair point that when a shipper or consignee has paid a carrier to pick up, transport and deliver containers, as is the case for a door move, the shipper does not have to again incur the cost of such pickup or delivery. The Rule does not refer to detention, demurrage or per diem and in no way should be construed (or rewritten) as if it did.

Bakerly's attempt to rely upon Rules Tariff 15.3 is equally misplaced. Rule 15.3 provides that the demurrage provision cited therein does not apply if failure to remove the container from the terminal is the responsibility of the Carrier. As set forth herein, however, the failure to remove the containers from the terminal were not the responsibility of Seafrigo. *See* SSoF 22. Instead, the failure was either a direct result of Bakerly's lack of warehouse space to accept containers or due to nationwide port congestion and/or port closures which were in no way Seafrigo's responsibility.

Construing Rule 17.2.1 or Rule 15.3 as Bakerly now invites would, as set forth above, not only contradict the unambiguous language of the individually negotiated NRAs, it would contradict numerous other provisions in Seafrigo's bill of lading terms and conditions. First, Seafrigo's actual bills of lading terms and conditions do not include Rule 17.2.1 or anything similar to it. Instead the bill of lading terms and conditions provide at Clause 6.5 that Seafrigo "shall not be liable for any loss or damage arising from an act or omission of Merchant." SSoF 9.

Clause 6.5(h) further dictates that Seafrigo cannot be held liable for any "cause or events" which it could not avoid and which could not be prevented by the exercise of due diligence. The nationwide port congestion which plagued the industry in 2020 and 2021 is a prototypical example

of an event beyond the control of Seafrigo. Similarly, snowstorms which resulted in closures of New York ports are prototypical examples of such unavoidable occurrences which were in no way caused by Seafrigo or Seafrigo's responsibility. *See* SSoF 43-.

Clause 9.4 of the bill of lading terms and conditions expressly provides that Bakerly undertakes to return containers within the time period provided for in Carrier's applicable tariff; otherwise Bakerly shall pay Seafrigo for the demurrage or detention charges applicable to the containers. Such express language is impossible to reconcile with Bakerly's newfound interpretation of the parties' agreement.

Bakerly's interpretation of the applicable contractual provisions is also belied by other provisions in the Tariff Rules. Specifically, Rule 17.1 provides that Bakerly appointed Seafrigo as its agent for acquiring containers and chassis for such transportation and agreed to free time, *as well as demurrage and detention, storage and other charges that accrue with respect to containers and chassis used for such transportation, all of which were for the account of Bakerly except to the extent solely attributable to actions or omissions of Seafrigo.* SSoF 23. Further, Seafrigo is entitled to full compensation if hindrances prevent the complete performance of the contract. *See also* numerous Tariff Rules which obligate Bakerly to pay yard storage, congestion fees and related charges.¹⁴

C. The Well-Established Course of Conduct Between the Parties is Flatly Contrary to Bakerly's Newfound Argument

Bakerly's newfound argument that it bears no responsibility for detention charges is contrary to the well-established course of conduct between the parties dating back to the time they entered into their contracts. It has always been the practice between Seafrigo and Bakerly that

¹⁴ *See, e.g.,* Tariff Rules 7.32, 7.36, and 7.37.

Seafrigo would advance funds to third parties, such as terminal operators and VOCCs for detention and demurrage charges, and Bakerly would then reimburse Seafrigo for those charges. SSoF 26. Seafrigo did so as an accommodation to Bakerly in order to allow for the release of Bakerly's containers and to prevent such charges from continuing to accrue. *Id.* In its own Memorandum in Support of its Motion for Partial Summary Judgment, Bakerly admits that it paid over \$900,000 in demurrage and detention charges. *See Bakerly Memorandum at page 4.*

Payment of detention and demurrage charges by shippers and consignees was not only the established course of conduct between Seafrigo and Bakerly, it is the established course of conduct between NVOCCs and shippers and consignees (and between VOCCs and shippers and consignees) since containership transportation was first adopted in the maritime industry. SSoF 27. Requiring that shippers and consignees always pay such charges in advance would unnecessarily slow ocean transportation and grind such transportation to a halt with containers sitting at ports and terminals for extended periods of time. *Id.*

The Commission has long held that parties' course of dealing, and indeed the course of dealing in the broader ocean transportation industry, creates a triable issue of fact regarding interpretation of or adherence to contractual terms. *See, e.g., Global Link Logistics, Inc. v. Hapag-Lloyd Ag*, 2014 WL 5316345, at *20 (finding that where complainant argued that respondent's rate adjustments on previous service contracts produced an "expectation" that it would adjust its rates again, "[w]hether the parties' course of dealing or that of the ocean transportation industry in general imposed a requirement on [respondent] to reduce rates established by the...Contract is a question for the trier of fact") (emphasis supplied); *see also, IAP Worldwide Servs., Inc. v. UTi United States, Inc.*, 2006 WL 305443, at *9 (E.D. Pa, 2006) (finding that in a contract between a supply chain management services provider and procurement services company with a history of

similarly transacting together, “[t]he parties' course of conduct creates a jury question” related to applicability of terms and conditions.). Here, where Bakerly repeatedly accepted Seafrigo’s invoices without objection and paid nearly \$1 million of the invoiced charges, the clear course of dealing between the parties precludes the relief now sought by Bakerly.

D. Bakerly’s Interpretation of the Contracts Is Illogical and Contrary to the Goals of the Shipping Act.

In addition to being contrary to the express language of the NRAs, the bill of lading terms and conditions, Seafrigo’s Tariff Rules, and the parties’ course of conduct, adoption of Bakerly’s motion should be denied on policy grounds because it runs afoul of the goals reflected in the Shipping Act and OSRA 2022.

Bakerly contends that it is not obligated to pay demurrage and detention charges imposed by VOCCs and marine terminal operators even in instances where such charges are a direct result of its own failure to accept goods for delivery or to unload delivered containers and to allow for their return to the terminal. Thus, Bakerly invites the Presiding Judge to conclude that Bakerly can refuse to accept delivery of any containers at its warehouses and to allow demurrage charges to accumulate indefinitely, knowing that it can do so with impunity because it will never bear financial responsibility for its actions.

Similarly, under Bakerly’s rationale, Bakery could use containers that are delivered to it as permanent storage facilities, thus denying NVOCCs and terminal operators access to their property, knowing that it would never be held responsible. Adoption of such a position ignores one of the primary goals of the Shipping Act and OSRA 2022, to ensure that detention and demurrage act as a financial incentive to promote the efficient movement of cargo. 46 U.S.C. § 40101(2).

The imposition of significant detention and demurrage charges against Seafrigo in instances where it is simply passing along such charges being imposed by third parties is also contrary to the policy goals set forth in the Shipping Act and OSRA 2022. The indisputable fact, which Bakerly refuses to address, is that the vast majority of the detention and demurrage charges at issue were assessed against Seafrigo by steamship lines or terminals which costs were then passed on to Bakerly without markup. *See e.g.*, Bakerly Exh. 3 (NRA - Accessorial Tariff). OSRA 2022's safe harbor provisions confirm that NVOCCs such as Seafrigo are not liable for detention and demurrage assessed by third parties for which the NVOCC is not responsible. 46 U.S.C. § 41104(e). Applying that principle compels dismissal of Bakerly's attempt to impose such charges against Seafrigo.

As set forth above, one of the primary factors triggering detention and demurrage charges for Bakerly was the nationwide port congestion that plagued the industry in 2020 and 2021. Due to, *inter alia*, COVID, record volumes of containers moving during that time period, and shortages of chassis and drivers, Seafrigo was prevented from timely picking up containers and containers sat for extended periods of time.¹⁵

Another significant factor that contributed to detention and demurrage was that Bakerly's warehousing system was deficient. Thus, when Bakerly's containers arrived at the port or terminal, Bakerly was not in a position to receive the containers either because it lacked space to accept them or because its warehouse operators could not coordinate receipt of the containers. SSoF 46. As a result, Bakerly's containers sat at terminals for extended periods of time during which time

¹⁵ Seafrigo submits that there is no rational basis for distinguishing between a NVOCC being unable to pick up a container because the port is closed during a snowstorm and being unable to pick up a container because a rail carrier or marine terminal has stacked containers in a way that leave them inaccessible. In each instance, it is beyond the NVOCC's control.

steamship lines or terminals assessed large amounts of demurrage charges. SSoF 47. For an extended period, Bakerly was on notice of the charges that were accruing due to its dysfunctional warehousing operations but failed to correct the problem. SSoF 45. Despite the obstacles faced by Seafrigo, Seafrigo's DWELL time for containers it was transporting during the time period at issue was below the national average. SSoF 55.

E. Bakerly Acted in Bad Faith and Should Be Estopped from Pursuing its Claims

Bakerly's actions here reflect a cynical and bad faith attempt to take unfair advantage of Seafrigo. Throughout the time period at issue (and indeed, in the years prior to the disputed invoices) Bakerly was fully aware that Seafrigo was going out of its own pocket to pay steamship lines and terminals for assessed detention and demurrage charges in order to allow Bakerly's containers to be released. SSoF 35. Bakerly at no time instructed Seafrigo that it should not do so. SSoF 36. Instead, it strung Seafrigo along with empty promises that it needed to further review invoices and then, after Seafrigo informed it that Seafrigo could no longer advance detention and demurrage payments on its behalf without having its outstanding invoices paid, and after Seafrigo had incurred millions of dollars in charges on its behalf, Bakerly brought this Complaint.¹⁶ The cynical and deceitful nature of Bakerly's conduct is further evidenced by the fact that Bakerly has not even paid Seafrigo for over \$800,000 in freight charges for services provided even though there is no dispute that such charges are owed and despite the fact that Seafrigo's bill of lading terms and conditions provide that such charges are deemed owed upon booking. *See* SSoF 56.

¹⁶ It is noteworthy that although Bakerly was free to revise the parties' contracts and opt to pick up the containers at the port or terminal itself, it never did so. If Bakerly actually believed that Seafrigo's services were somehow inadequate, it would have assumed that role rather than having Seafrigo continue to do it. Instead, recognizing that if it chose to pick up the containers itself it would have to pay the terminal or port for the release of the containers, it instead duped Seafrigo into doing so and then millions of dollars later brought this Complaint asserting that it had no obligation to repay Seafrigo.

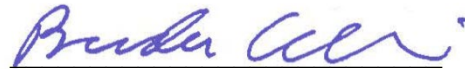
Seafrigo's Rules Tariff further expressly provides that all freight and charges are payable without refund or offset. *See* Exh. 5 at Rule 5. Bakerly's failure to pay freight charges thus reflects a callous disregard for its contractual obligations.

III. CONCLUSION

For the reasons set forth herein, Bakerly's Motion for Partial Summary Judgment should be denied.

Date: December 7, 2022

Respectfully submitted,



Brendan Collins

GKG Law, P.C.

1055 Thomas Jefferson Street, N.W.

Suite 620

Washington, D.C. 20007

Telephone: (202) 342-6793

bcollins@gkglaw.com

Attorney for Respondent Seafrigo USA Inc.

EXHIBIT 1

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-17

BAKERLY, LLC
COMPLAINANT,

v.
SEAFRIGO USA INC.
RESPONDENT.

DECLARATION OF AL RAFFA

1. My name is Alfonse “Al” Raffa. I am the Managing Director of Seafrigo USA Inc. (“Seafrigo”). I have held this position since February 2, 2019. I have been employed in the ocean transportation industry for thirty (30) years. This Declaration is based upon my personal knowledge.

2. The detention, demurrage and ancillary charges at issue primarily arose from two main categories: 1) an inability to pick up containers from a port or terminal, or to return empty containers to the port or terminal, because of nationwide congestion that plagued the ocean transportation industry in 2021 and early 2022; and/or 2) Bakerly’s warehousing system which was unable to accept containers when they arrived at the port or terminal, because Bakerly lacked space to accept them or because its warehouse operators could not coordinate receipt of the containers.

Terms of Applicable Contracts

NRAs

3. Seafrigo and Bakerly carefully and extensively crafted Negotiated Rate Agreements (“NRAs”) for the transportation services at issue. Sample NRAs are attached as Exhibit 2.

4. Each NRA expressly provides that the “Rate Proposal does not include demurrage and detention charges for which the shipper and/or consignee may be liable and port and port terminal handling charges.” *See* Exh. 2 at pp. 2, 7, 13, 18, 24, 27.

5. Each of the NRAs includes a Standard Accessorial Tariff Provision which specifies that *per diem, detention and demurrage charges are payable at cost per terminal or carrier*. Exh. 2 at pp. 6, 12, 17, 22.

Bill of Lading Provisions

6. The Seafrigo bills of lading, Exhibit 3. Include the following terms and conditions:

Clause 5.1. (Hindrance Clause) which specifies that while Seafrigo shall use reasonable endeavors to complete transport and to deliver the goods and the specified place of delivery, if in Seafrigo's opinion such delivery will be hindered by any risk, delay or difficulty, Seafrigo has no duty to complete the performance of the contract.

Clause 5.1 further specifies that "[i]n any event, Seafrigo shall be entitled to full freight for any transportation and additional compensation for extra costs resulting from the hindrance."

Clause 6.4 (Basic Liability) provides that Seafrigo does not undertake that the goods shall be delivered at any particular time and shall not be liable for any direct or indirect losses caused by any delay.

Clause 6.5 provides that Seafrigo "shall not be liable for any loss or damage arising from (a) an act or omission of Merchant or person other than Carrier acting on behalf of Merchant from which Carrier took the goods in charge." (Emphasis supplied).

Clause 6.5(h) provides that Seafrigo shall not be liable for "any cause or events which Carrier could not avoid and the consequences of which he could not prevent by the exercise of due diligence." (Emphasis supplied).

Clause 9.4 (Carrier's Containers) provides that Bakerly undertakes to return containers within the time period provided for in Carrier's applicable tariff; otherwise Bakerly shall pay Carrier for the demurrage or detention charges applicable to the containers.

Clause 16 (Delivery) provides that if goods should remain in Seafrigo's custody after discharge from the ship, and possession is not taken by Bakerly, after notice within the time allowed in Carrier's tariff, the goods may be deemed to have been delivered to Bakerly. It further states that Seafrigo has the option to store the goods at Bakerly's expense.

Clause 18.3 (Freight and Charges) provides that Bakerly shall be liable for all charges levied on the goods.

Clause 18.5 provides that Bakerly, and any person acting on its behalf, shall indemnify Seafrigo against all claims, costs and other amounts which may be incurred or imposed upon Seafrigo by reason of Bakerly's failure to comply with the terms of the bill of lading or any statutory or regulatory requirement.

Tariff Rules

7. The Tariff Rules, attached as Exhibit 4, include the following:

Rule 7-17 provides that there will be an administrative fee for per diem/demurrage/detention of \$45.00 per container.

Rule 7-22 provides that after two hours of free time, there will be a charge for Detention during Regular Business Hours of \$90.00 per hour, a charge of \$150 an hour during Saturdays and Sundays and a charge of \$250 per hour during National Holidays. This charge applies when a driver has to spend unscheduled time at the destination delivery site.

Rule 7-26 provides that there is a driver layover charge of \$250 per hour. This applies when a driver has to spend an unscheduled night (layover) at the destination delivery.

Rule 7-27 provides that there is a driver labor charge of \$75 per hour. This applies when a driver is asked to assist with the unloading of the delivery.

Rule 15.1 provides that Seafrigo is a non-vessel operating common carrier and the equipment it uses to provide the transportation services at issue is provided by the vessel-operating common carrier (VOCC) that operates the vessel carrying the cargo.

Rule 15.2 provides that the VOCC imposes detention charges if empty containers released for loading and/or unloading containers released for unloading are not returned within a specified period of time (free time). *“Merchant shall be liable to Carrier for any detention charges imposed on Carrier imposed by VOCC as result of Merchants failure to return containers within applicable free time.”* (Emphasis supplied).

Rule 15.3 provides that the VOCC imposes demurrage charges if loaded containers are not removed from the marine terminal within a specified per of time (free time). The provision applies when removal of the containers from the terminal is the responsibility of the Carrier. It further provides that Merchant shall be liable to Carrier for any demurrage charges imposed on carrier by VOCC as a result of Merchant’s failure to remove containers within the applicable free time.

Rule 17.1 states that by tendering shipments to Carrier for transportation, Bakerly appoints Seafrigo as its agent for acquiring containers and chassis for such transportation and agrees to free time, as well as demurrage and detention, storage and other charges that accrue with respect to containers and chassis used for such transportation, all of which shall be for the account of the Merchant *except to the extent solely attributable to actions or omissions of Carrier.* (Emphasis supplied).

Rule 17.2.1 provides that any “surcharges, arbitraries, additionals or other similar add on charges assessed by the VOCC carrying Merchants cargo will be paid on Merchant’s behalf by Carrier and passed through to Merchant without mark up.”

Parties Course of Conduct

8. Bakerly’s newfound interpretation of the contracts is contrary to the parties well-established course of conduct, as well as the course of dealing in the maritime industry at large.

9. Beginning in 2018 when Seafrigo first started providing transportation services for Bakerly, it was the established practice between Seafrigo and Bakerly that Seafrigo would advance funds to third parties, such as terminal operators and VOCCs for detention and demurrage charges and Bakerly would then reimburse Seafrigo for those charges. Seafrigo did so as an accommodation to Bakerly in order to allow for the release of Bakerly's containers and to prevent such charges from continuing to accrue.
10. That was not only the established course of conduct between Seafrigo and Bakerly, it has been the established course of conduct between NVOCCs and shippers and consignees for decades. Requiring that shippers and consignees pay such charges in advance would unnecessarily slow ocean transportation and grind such transportation to a halt with containers sitting at ports and terminals for extended periods of time.
11. The vast amount of the charges in dispute are demurrage and detention charges assessed by VOCCs and marine terminals, which for most of the time period at issue were straight pass-through charges assessed without mark up.
12. Seafrigo only began assessing administrative costs associated with the invoices in dispute when the amount of money it had paid to third parties such as marine terminals had accumulated to such excessive amounts that it unnecessarily impacted Seafrigo's cash flow.
13. As reflected above, marine terminal operators always required payment of demurrage charges in order to obtain the release of Bakerly containers.
14. If Seafrigo failed to pay such charges, the containers would remain at the terminal and demurrage charges would continue to accrue.
15. Seafrigo invoiced Bakerly such charges on a regular basis.
16. Bakerly timely paid some of the demurrage, detention and other ancillary charges assessed by Seafrigo.
17. In other instances, Bakerly disputed the invoices, falsely claiming that more backup information was required.
18. Throughout the time period at issue Bakerly was fully aware that Seafrigo was going out of its own pocket to pay steamship lines and terminals for assessed detention and demurrage charges in order to allow Bakerly's containers to be released. Seafrigo has been doing so since the beginning of the parties' contractual relationship, dating back to 2018 (although such charges were not significant until late in 2020).
19. Bakerly at no time instructed Seafrigo that it should not advance detention and demurrage charges on its behalf.
20. Prior to initiating this litigation Bakerly never asserted that it had no contractual obligation to pay detention and demurrage associated with the cargo.

21. If Seafrigo had been informed that Bakerly thought that Seafrigo was assuming the obligation to pay detention, demurrage, per diem, and other ancillary charges, it would have refused to make the millions of dollars in advances it made on behalf of Bakerly.
22. Seafrigo was entitled to terminate its services to Bakerly at any time pursuant to both the Negotiated Rate Agreements under which the cargo moved and the applicable bills of lading. Seafrigo also at its sole discretion could refuse to make advances on Bakerly's behalf. Seafrigo did so as an accommodation to Bakerly.
23. The margins for the transportation services provided by NVOCCs are so narrow that it would be economically unfeasible for an NVOCC to assume the obligation to pay detention, demurrage, per diem, and other ancillary charges rather than having such charges be the responsibility of the shipper and/or consignee.
24. In my over thirty years of experience, it uniformly has been the obligation of the shipper and/or or consignee to pay for detention and demurrage charges, as opposed to the NVOCC, unless such charges are a result of the NVOCC's failure to perform.
25. Included among the charges being disputed by Bakerly are ones that arose due to the New York port being closed by snowstorms.
26. Other charges were the result of nationwide congestion that plagued the ocean transportation industry in 2021 and early 2022. Such charges were in no way caused by or attributable to Seafrigo and could not be avoided by the exercise of due diligence on the part of Seafrigo.
27. For an extended period, Bakerly was on notice of the charges that were accruing due to its dysfunctional warehousing operations but failed to correct the problem.
28. When Bakerly's containers arrived at the port or terminal, Bakerly was not in a position to receive the containers either because it lacked space to accept them or because its warehouse operators could not coordinate receipt of the containers.
29. As a result, Bakerly's containers sat at terminals for extended periods of time during which time steamship lines or terminals assessed large amounts of demurrage charges.
30. In 2021 Bakerly informed Seafrigo that it must limit delivery of inbound containers due to "complications and internal decisions" by Bakerly.
31. Seafrigo was informed that this decision was necessary despite Bakerly's recognition that it would result in additional costs in the form of demurrage, storage, or detention charges (which are the charges that Bakerly now refuses to pay).
32. There were also other instances in which Seafrigo was informed that one of Bakerly's warehouses could accept only 1-2 containers per week, thus resulting in significant demurrage charges.

33. There were extensive communications regarding Bakerly warehouses being unable to accept containers and efforts to divert such containers to alternative locations so as to avoid further demurrage from accruing.

34. Ultimately, the situation became so bad that Bakerly informed Seafrigo that Bakerly had terminated its relationship with one of its warehousemen, but significant amounts of demurrage accrued prior (and even subsequent) to that time.

35. In December 2021, I sent a message to Bakerly that Seafrigo would cease paying detention and demurrage charges on Bakerly's behalf because of Bakerly's failure to pay its outstanding invoices. The CEO of Bakerly pleaded with Seafrigo to continue to pay to move its containers, reflecting Bakerly's knowledge that Seafrigo was paying detention and demurrage on Bakerly's behalf.

36. Bakerly's defective warehousing system also caused significant detention charges to accrue because containers could not be emptied and made available for return to the port or terminal.

37. Bakerly's dysfunctional warehousing system also made it difficult to retain truckers willing to service Bakerly loads knowing that extended unnecessary time would have to be spent in waiting to deliver, unload, and return its containers. All detention and demurrage falling into this category was a direct result of the negligence of Bakerly.

38. Despite the delays plaguing both the industry in general and Bakerly warehouses specifically during the time at issue, Seafrigo's DWELL time for containers it was transporting was below the national average.

39. Bakerly has not paid Seafrigo for over \$800,000 in freight charges for services provided even though there is no dispute that such charges are owed and despite the fact that the Seafrigo bill of lading terms and conditions provide that such charges are deemed owed upon booking.

40. Seafrigo's Rules Tariff expressly provides that all freight and charges are payable without refund or offset. Tariff Rule 5.

I hereby declare under penalty of perjury that the foregoing is true and correct.



Alfonse "Al" Raffa

Date: December 7th, 2022

EXHIBIT 2



BAKERLY LLC

Quote# 0I00004781

DATE: 1/29/21

Validity: 03/31/21

All SEAFRIGO rates will be fixed when the shipment is received and shall remain so for the period of validity of this Rate Proposal.

This Rate Proposal does not include demurrage and detention charges, for which the shipper and/or consignee may be liable and port terminal handling charges.

This Rate Proposal may be withdrawn at any time before acceptance.

All shipments are subject to the rules in Seafrigo's bill of lading, its Rules Tariff and its standard trading conditions.

Approved Payment Terms:

30 days

\$10,000.00



ITEM DESCRIPTION	CONTAINER TYPE	TEMP SETTING	ORIGIN PORT	DESTINATION PORT	TRANSIT TIME	PORT TO PORT OCEAN FREIGHT	BAF	SECURITY B/L FEE	TOTAL
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	NY/NJ	8-10 DAYS	\$3,325.00	\$400.00	\$30.00	\$3,755.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	MIAMI	17 DAYS	\$3,390.00	\$400.00	\$30.00	\$3,820.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	OAKLAND	32 DAYS	\$3,950.00	\$450.00	\$30.00	\$4,430.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	LOS ANGELES	30 DAYS	\$3,950.00	\$450.00	\$30.00	\$4,430.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	PHILADELPHIA	8-10 DAYS	\$3,550.00	\$450.00	\$30.00	\$4,030.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	SAN JUAN, PR	27 DAYS	€ 1,745.00	€ 800.00	€ -	€ 2,545.00

Port to port ocean includes the ocean-freight, CAF & DTHC

BAF is subject to change without Notice

Above Pricing does not include import customs clearance

Above pricing does not include Marine Insurance but can be purchased upon request in writing from your company.

Insurance rate if requested : Marine insurance for cargo: 0.8 % Reefer on (C&F value + 10%)



Delivery Destinations

CITY	STATE	Term	PICK-UP PORT	TEMP	BASE & FUEL	REEFER CHARGE	Chassis (3 Days)	Fuel Surcharge	TOTAL
ALLENTOWN	PA	Live Unload	NY/NJ	FROZEN	\$ 605.00	\$ 150.00	\$ 105.00	20.00%	\$ 981.00
ELIZABETH	NJ	Live Unload	NY/NJ	FROZEN	\$ 300.00	\$ 150.00	\$ 105.00	20.00%	\$ 615.00
JERSEY CITY	NJ	Drop and Pick	NY/NJ	FROZEN	\$ 725.00	\$ 150.00	\$ 105.00	20.00%	\$ 1,125.00
SAN LEANDRO	CA	Live Unload	OAKLAND	FROZEN	\$ 400.00	\$ 150.00	\$ 105.00	27.00%	\$ 763.00
STOCKTON	CA	Live Unload	OAKLAND	FROZEN	\$ 590.00	\$ 150.00	\$ 105.00	27.00%	\$ 1,004.30
LONG BEACH	CA	Live Unload	LONG BEACH	FROZEN	\$ 375.00	\$ 150.00	\$ 105.00	27.00%	\$ 731.25
BROOKSHIRE	TX	Live Unload	HOUSTON	FROZEN	\$ 425.00	\$ 150.00	\$ 105.00	20.00%	\$ 765.00
DALLAS	TX	Live Unload	HOUSTON	FROZEN	\$ 1,100.00	\$ 150.00	\$ 105.00	20.00%	\$ 1,575.00
COLLEGE PARK	GA	Live Unload	SAVANNAH	FROZEN	\$ 875.00	\$ 150.00	\$ 105.00	20.00%	\$ 1,305.00
HIALEAH GARDENS	FL	Live Unload	MIAMI	FROZEN	\$ 250.00	\$ 150.00	\$ 105.00	20.00%	\$ 555.00
ALLENTOWN	PA	Live Unload	PHILADELPHIA	FROZEN	\$ 565.00	\$ 150.00	\$ 105.00	20.00%	\$ 933.00
JERSEY CITY	NJ	Live Unload	PHILADELPHIA	FROZEN	\$ 870.00	\$ 150.00	\$ 105.00	20.00%	\$ 1,299.00

* TMF (Pier Pass) applies for all containers via the port of Los Angeles / Long Beach @ \$68 / 40' : \$38 / 20'

* Extended Gate Fee applies for all containers via the port of Oakland @ \$40.00 per container.

* Landing Fee applies for all containers via the port of Miami @ \$45.00 per container.

* Port Usage Fee applies for all containers via the port of Boston / Long Beach @ \$70.00 per container.

***** **Truck/Port Congestion surcharge all POD : \$100.00 / 40'RF as of January 1st 2021**

Live Unload includes 2 hours for Unloading. Additional hours \$90 / hour)

Rate is for legal weight containers.

Subject to any applicable accessorial fees as per standard accessorial fees attached.

Fuel surcharge (subject to change without notice).

Chassis was formulated at minimum 3 days @ \$35 per day. Any additional days will be billed at \$35 per day



Customs Entry (incl. 3 lines. \$5 per line after that)	FDA (incl. 3 lines. \$5 per line after that)	ISF /10+2 Filing
\$95.00	\$15.00	\$25.00

Customs Bond:

If you do not currently have an annual customs bond, we can offer the following options:

Annual bond: \$350.00 for a Minimum bond of \$50,000* or

Single entry bond: \$5 per \$1000 calculated by (value FOB x3) [Min. \$75]

ISF Bond: \$100 / shipment if no annual bond in place

For higher bond amounts, please contact your Seafrigo Sales Representative

ACCESSORIAL TARIFF ONLY IF APPLICABLE

PLEASE CHECK WITH US FIRST BEFORE SHIPPING THE PRODUCTS IF YOU NEED ANY IMPORT PERMITS OR WHAT DOCUMENTS YOU WOULD NEED FOR THE PRODUCTS THAT YOU CONSIDER TO IMPORT.

Duty Rate: Depending on the HTS customs code of your products

Merchandise processing fees: 0.3464 % on FOB value – (Minimum \$26.22, Maximum \$508.70)

Harbor maintenance fees: 0.125% on FOB value – (No minimum or maximum)

Schedule of Additional Fees (If Necessary)

- 1) AQI/USDA release \$15.00
- 2) Customs VACIS Exam Coordination Fee (FCL) \$50.00
- 3) Full CBP and or Government Agency Exam (FCL) \$50.00
- 4) FDA Exam / Sampling Coordination Fee \$75.00
- 5) Messenger Fee \$20.00
- 6) FDA Refusals \$250.00
- 7) Drawbacks \$250.00
- 8) Customs VACIS Exam Coordination Fee (consolidations) Special
- 9) Full CBP and or Government Agency Exam (consolidation) Special
- 10) PTT \$35.00
- 11) FSIS Clearance/Coordination Fee (includes 3 lines, \$5 per line after that).

SEAFRIGO USA 2021 STANDARD ACCESSORIALS TARIFF

1. TERMINAL AND EQUIPMENT CHARGES			
Per diem Charge	At cost per terminal or carrier		
Demurrage	At cost per carrier		
Detention	At cost per carrier		
Administrative fee Per Diem/Demurrage/Detention	\$ 45.00	per	container
TMF (Long Beach)	\$ 38.00	per	20' container
TMF (Long Beach)	\$ 68.00	per	40' container
Extended gate fee (Oakland)	\$ 40.00	per	container
Port usage fee (Boston)	\$ 70.00	per	container
Landing fee (Miami)	\$ 45.00	per	container
Scale fee/Terminal Security (Everglade)	\$ 30.00	per	container
Chicago surcharge if out of Global 4 in Joliet, CN Rail in Joliet, Chicago			
Global Gateway in Joliet, BN Logistics Park in Elwood, IL Transport in			
Wilmington, and Conglobal in Channahon	\$200.00	per	container
Chicago lift on / lift off fee at rail ramp if required	\$150.00	per	container
Other terminal and equipment charges	At cost per terminal		
Administrative fee other terminal and equipment charges	\$ 5.00	per	container
2. TRUCKING			
Detention - Regular Business Hours (2 hour free - any portion there after)	\$ 90.00	per	hour
Detention - Saturday and Sunday (1 hour free - any portion there after)	\$ 150.00	per	hour
Detention - National Holiday (1 hour free - any portion there after)	\$ 250.00	per	hour
Night Pick up/Deliver fee (after 8pm EST before 5am EST)	\$ 150.00	per	pick up/delivery
Pre-pull	\$ 150.00	per	pick up/delivery
Saturday and Sunday Pick up/Delivery	\$ 250.00	per	pick up/delivery
National Holiday Pick up/Delivery	\$ 450.00	per	pick up/delivery
Dry run	full truck rate applied		
Same day/Rush Fee	\$ 200.00	per	pick up/delivery
Drop and Pick	full truck rate applied		
Labour rate/lumper fee	\$ 50.00	per	hour
Driver layover	\$ 350.00	per	container
Driver labor	\$ 75.00	per	hour
Container Drayage - Chassis Usage Fee	\$ 35.00	per	day (min. 3 days)
Chassis split fee	\$ 125.00	per	container/trailer
Trailer / Container Cleaning	terminal cost + \$45.00	per	leg of trip
Container Drayage - Genset	\$ 150.00	per	day (min. 3 days)
Container Drayage - Heavyweight Permit over 43,500 Lbs (1)	\$ 250.00	per	container
Container Drayage - Heavyweight Tri-Axle Chassis over 43,500Lbs (2)	\$ 250.00	per	container
Yard storage	\$ 150.00	per	day
Scale charge (DOT)	\$ 35.00	per	scale
NYCT / Staten Island surcharge	\$ 250.00	per	container
Additional Stop(s)	** see note (3) below **	per	stop
Reefer monitoring/plug in	\$ 175.00	per	container
Port Congestion Fee	\$ 175.00	per	container
Fuel surcharge	Always subjek to change		
2. MISCELLANEOUS			
Peak season surcharge	\$ 250.00	per	container
Hazardous Cargo surcharge	\$ 250.00	per	container
Bonded cargo surcharge	\$ 250.00	per	container
Wine & Spirit surcharge	\$ 250.00	per	container
Letter of credit	\$ 300.00	per	document
Fumigation container	\$ 250.00	per	container
Solas (VGM) - processing fee	\$ 45.00	per	container

Accessorials are being updated on a yearly basis

(1) DOT rule as per US State applies.

(2) DOT rule as per US State applies.

(3) Contingent upon distance between stops.



BAKERLY LLC

Quote# 0I00005207

DATE: 6/2/2021

Validity: 6/30/2021

All SEAFRIGO rates will be fixed when the shipment is received and shall remain so for the period of validity of this Rate Proposal.

This Rate Proposal does not include demurrage and detention charges, for which the shipper and/or consignee may be liable and port terminal handling charges.

This Rate Proposal may be withdrawn at any time before acceptance.

All shipments are subject to the rules in Seafrigo's bill of lading, its Rules Tariff and its standard trading conditions.

Approved Payment Terms:

30 days

\$10,000.00



ITEM DESCRIPTION	CONTAINER TYPE	TEMP SETTING	ORIGIN PORT	DESTINATION PORT	TRANSIT TIME	PORT TO PORT OCEAN FREIGHT	BAF	EIS FEE	TOTAL
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	NY/NJ	8-10 DAYS	\$ 5,155.00	\$ 550.00	\$ 500.00	\$ 6,205.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	MIAMI	17 DAYS	\$ 5,020.00	\$ 550.00	\$ 500.00	\$ 6,070.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	OAKLAND	32 DAYS	\$ 5,330.00	\$ 650.00	\$ 500.00	\$ 6,480.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	LOS ANGELES	30 DAYS	\$ 5,330.00	\$ 650.00	\$ 500.00	\$ 6,480.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	PHILADELPHIA	8-10 DAYS	\$ 5,225.00	\$ 550.00	\$ 500.00	\$ 6,275.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	SAN JUAN, PR	27 DAYS	€ 2,045.00	€ 800.00	€ 400.00	€ 3,245.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	HOUSTON	25 DAYS	\$ 5,020.00	\$ 550.00	\$ 500.00	\$ 6,070.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	SAVANNAH	17 DAYS	\$ 5,020.00	\$ 550.00	\$ 500.00	\$ 6,070.00

Port to port ocean includes the ocean-freight, CAF & DTHC

BAF is subject to change without Notice

Above Pricing does not include import customs clearance

Above pricing does not include Marine Insurance but can be purchased upon request in writing from your company.

Insurance rate if requested : Marine insurance for cargo: 0.8 % Reefer on (C&F value + 10%)



Delivery Destinations

CITY	STATE	Term	PICK-UP PORT	TEMP	BASE & FUEL	REEFER CHARGE	TOTAL
ALLENTOWN	PA	Live Unload	NY/NJ	FROZEN	\$ 1,176.00	\$ 150.00	\$ 1,326.00
ELIZABETH	NJ	Live Unload	NY/NJ	FROZEN	\$ 705.00	\$ 150.00	\$ 855.00
JERSEY CITY	NJ	Drop and Pick	NY/NJ	FROZEN	\$ 805.00	\$ 150.00	\$ 955.00
SAN LEANDRO	CA	Live Unload	OAKLAND	FROZEN	\$ 775.00	\$ 150.00	\$ 925.00
STOCKTON	CA	Live Unload	OAKLAND	FROZEN	\$ 950.00	\$ 150.00	\$ 1,100.00
LONG BEACH	CA	Live Unload	LONG BEACH	FROZEN	\$ 655.00	\$ 150.00	\$ 805.00
BROOKSHIRE	TX	Live Unload	HOUSTON	FROZEN	\$ 615.00	\$ 150.00	\$ 765.00
DALLAS	TX	Live Unload	HOUSTON	FROZEN	\$ 1,330.00	\$ 150.00	\$ 1,480.00
COLLEGE PARK	GA	Live Unload	SAVANNAH	FROZEN	\$ 1,290.00	\$ 150.00	\$ 1,440.00
HIALEAH GARDENS	FL	Live Unload	MIAMI	FROZEN	\$ 480.00	\$ 150.00	\$ 630.00
ALLENTOWN	PA	Live Unload	PHILADELPHIA	FROZEN	\$ 1,050.00	\$ 150.00	\$ 1,200.00
JERSEY CITY	NJ	Live Unload	PHILADELPHIA	FROZEN	\$ 1,255.00	\$ 150.00	\$ 1,405.00
CHARLESTON	SC	Live Unload	CHARLESTON	FROZEN	\$ 780.00	\$ 150.00	\$ 930.00
POOLER, GA	NJ	Live Unload	CHARLESTON	FROZEN	\$ 905.00	\$ 150.00	\$ 1,055.00
JACKSONVILLE	FL	Live Unload	MIAMI	FROZEN	\$ 1,830.00	\$ 150.00	\$ 1,980.00
LINDEN	NJ	Live Unload	NY/NJ	FROZEN	\$ 655.00	\$ 150.00	\$ 805.00
EASTON	PA	Live Unload	NY/NJ	FROZEN	\$ 1,155.00	\$ 150.00	\$ 1,305.00
MCDONOUGH	GA	Live Unload	SAVANNAH	FROZEN	\$ 2,010.00	\$ 150.00	\$ 2,160.00
FORT WORTH	TX	Live Unload	HOUSTON	FROZEN	\$ 1,600.00	\$ 150.00	\$ 1,750.00
MCALLEN	TX	Live Unload	HOUSTON	FROZEN	\$ 1,645.00	\$ 150.00	\$ 1,795.00
LA PORTE	TX	Live Unload	HOUSTON	FROZEN	\$ 450.00	\$ 150.00	\$ 600.00

* Delivery rates includes fuel surcharge, subject to change.

* Delivery rates includes the minimum chassis usage charge of 3 days.

* TMF (Pier Pass) applies for all containers via the port of Los Angeles / Long Beach @ \$68 / 40' : \$38 / 20'

* Extended Gate Fee applies for all containers via the port of Oakland @ \$40.00 per container.

* Landing Fee applies for all containers via the port of Miami @ \$45.00 per container.

* Port Usage Fee applies for all containers via the port of Boston / Long Beach @ \$70.00 per container.

* * * * * Truck/Port Congestion surcharge all POD : \$100.00 / 40'RF as of January 1st 2021

Live Unload includes 2 hours for Unloading. Additional hours \$90 / hour)

Rate is for legal weight containers.

Subject to any applicable accessorial fees as per standard accessorial fees attached.

Fuel surcharge (subject to change without notice).

Chassis was formulated at minimum 3 days @ \$35 per day. Any additional days will be billed at \$35 per day



Customs Entry (incl. 3 lines. \$5 per line after that)	FDA (incl. 3 lines. \$5 per line after that)	ISF /10+2 Filing
\$95.00	\$15.00	\$25.00

Customs Bond:

If you do not currently have an annual customs bond, we can offer the following options:

Annual bond: \$350.00 for a Minimum bond of \$50,000* or

Single entry bond: \$5 per \$1000 calculated by (value FOB x3) [Min. \$75]

ISF Bond: \$100 / shipment if no annual bond in place

For higher bond amounts, please contact your Seafrigo Sales Representative

ACCESSORIAL TARIFF ONLY IF APPLICABLE

PLEASE CHECK WITH US FIRST BEFORE SHIPPING THE PRODUCTS IF YOU NEED ANY IMPORT PERMITS OR WHAT DOCUMENTS YOU WILL NEED FOR THE PRODUCTS THAT YOU CONSIDER TO IMPORT.

Duty Rate: Depending on the HTS customs code of your products

Merchandise processing fees: 0.03463 % on FOB value - (Minimum \$26.22, Maximum %508.70)

Harbor maintenance fees: 0.125% on FOB value - (No minimum or maximum)

- 1) AQI/USDA release \$15.00
- 2) Customs VACIS Exam Coordination Fee (FCL) \$50.00
- 3) Full CBP and or Government Agency Exam (FCL) \$50.00
- 4) FDA Exam / Sampling Coordination Fee \$75.00
- 5) Messenger Fee \$20.00
- 6) FDA Refusals \$250.00
- 7) Drawbacks \$250.00
- 8) Customs VACIS Exam Coordination Fee (consolidations) Special
- 9) Full CBP and or Government Agency Exam (consolidation) Special
- 10) PTT \$35.00
- 11) FSIS Clearance/Coordination Fee \$25.00 (includes 3 lines, \$5 per line after that).
- 12) Weekend Airfreight Clearance \$250.00
- 13) APHIS CORE FEE \$25 (includes 5 lines free, \$5 per line after that)

SEAFRIGO USA 2021 STANDARD ACCESSORIALS TARIFF

1. TERMINAL AND EQUIPMENT CHARGES			
Per diem Charge	At cost per terminal or carrier		
Demurrage	At cost per carrier		
Detention	At cost per carrier		
Administrative fee Per Diem/Demurrage/Detention	\$ 45.00	per	container
TMF (Long Beach)	\$ 38.00	per	20' container
TMF (Long Beach)	\$ 68.00	per	40' container
Extended gate fee (Oakland)	\$ 40.00	per	container
Port usage fee (Boston)	\$ 70.00	per	container
Landing fee (Miami)	\$ 45.00	per	container
Scale fee/Terminal Security (Everglade)	\$ 30.00	per	container
Chicago surcharge if out of Global 4 in Joliet, CN Rail in Joliet, Chicago			
Global Gateway in Joliet, BN Logistics Park in Elwood, IL Transport in			
Wilmington, and Conglobal in Channahon	\$200.00	per	container
Chicago lift on / lift off fee at rail ramp if required	\$150.00	per	container
Other terminal and equipment charges	At cost per terminal		
Administrative fee other terminal and equipment charges	\$ 5.00	per	container
2. TRUCKING			
Detention - Regular Business Hours (2 hour free - any portion there after)	\$ 90.00	per	hour
Detention - Saturday and Sunday (1 hour free - any portion there after)	\$ 150.00	per	hour
Detention - National Holiday (1 hour free - any portion there after)	\$ 250.00	per	hour
Night Pick up/Deliver fee (after 8pm EST before 5am EST)	\$ 150.00	per	pick up/delivery
Pre-pull	\$ 150.00	per	pick up/delivery
Saturday and Sunday Pick up/Delivery	\$ 250.00	per	pick up/delivery
National Holiday Pick up/Delivery	\$ 450.00	per	pick up/delivery
Dry run	full truck rate applied		
Same day/Rush Fee	\$ 200.00	per	pick up/delivery
Drop and Pick	full truck rate applied		
Labour rate/lumper fee	\$ 50.00	per	hour
Driver layover	\$ 350.00	per	container
Driver labor	\$ 75.00	per	hour
Container Drayage - Chassis Usage Fee	\$ 35.00	per	day (min. 3 days)
Chassis split fee	\$ 125.00	per	container/trailer
Trailer / Container Cleaning	terminal cost + \$45.00	per	leg of trip
Container Drayage - Genset	\$ 150.00	per	day (min. 3 days)
Container Drayage - Heavyweight Permit over 43,500 Lbs (1)	\$ 250.00	per	container
Container Drayage - Heavyweight Tri-Axle Chassis over 43,500Lbs (2)	\$ 250.00	per	container
Yard storage	\$ 150.00	per	day
Scale charge (DOT)	\$ 35.00	per	scale
NYCT / Staten Island surcharge	\$ 250.00	per	container
Additional Stop(s)	** see note (3) below **	per	stop
Reefer monitoring/plug in	\$ 175.00	per	container
Port Congestion Fee	\$ 175.00	per	container
Fuel surcharge	Always subjec to change		
2. MISCELLANEOUS			
Peak season surcharge	\$ 250.00	per	container
Hazardous Cargo surcharge	\$ 250.00	per	container
Bonded cargo surcharge	\$ 250.00	per	container
Wine & Spirit surcharge	\$ 250.00	per	container
Letter of credit	\$ 300.00	per	document
Fumigation container	\$ 250.00	per	container
Solas (VGM) - processing fee	\$ 45.00	per	container

Accessorials are being updated on a yearly basis

(1) DOT rule as per US State applies.

(2) DOT rule as per US State applies.

(3) Contingent upon distance between stops.



BAKERLY LLC

Quote# OI00005327

DATE: 8/26/2021

Validity: 9/30/2021

All SEAFRIGO rates will be fixed when the shipment is received and shall remain so for the period of validity of this Rate Proposal.

This Rate Proposal does not include demurrage and detention charges, for which the shipper and/or consignee may be liable and port terminal handling charges.

This Rate Proposal may be withdrawn at any time before acceptance.

All shipments are subject to the rules in Seafrigo's bill of lading, its Rules Tariff and its standard trading conditions.

Approved Payment Terms:

30 days

\$10,000.00



ITEM DESCRIPTION	CONTAINER TYPE	TEMP SETTING	ORIGIN PORT	DESTINATION PORT	TRANSIT TIME	PORT TO PORT OCEAN FREIGHT	BAF	EIS FEE	TOTAL
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	NY/NJ	8-10 DAYS	\$ 5,455.00	\$ 600.00	\$ 850.00	\$ 6,905.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	MIAMI	17 DAYS	\$ 5,555.00	\$ 600.00	\$ 850.00	\$ 7,005.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	OAKLAND	32 DAYS	\$ 5,730.00	\$ 700.00	\$ 1,000.00	\$ 7,430.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	OAKLAND	32 DAYS	\$ 6,230.00	\$ 700.00	\$ 1,000.00	\$ 7,930.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	LOS ANGELES	30 DAYS	\$ 5,730.00	\$ 700.00	\$ 1,000.00	\$ 7,430.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	LOS ANGELES	30 DAYS	\$ 6,230.00	\$ 700.00	\$ 1,000.00	\$ 7,930.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	PHILADELPHIA	8-10 DAYS	\$ 5,525.00	\$ 600.00	\$ 850.00	\$ 6,975.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	SAN JUAN, PR	27 DAYS	€ 2,395.00	€ 850.00	€ 400.00	€ 3,645.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	HOUSTON	25 DAYS	\$ 5,555.00	\$ 600.00	\$ 850.00	\$ 7,005.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	SAVANNAH	17 DAYS	\$ 5,320.00	\$ 600.00	\$ 850.00	\$ 6,770.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	CHARLESTON	16 DAYS	\$ 5,320.00	\$ 600.00	\$ 850.00	\$ 6,770.00

(HAPAG/ONE option)
(MSC option)
(HAPAG/ONE option)
(MSC option)

Subject to GRI/PSS & fluctuation of the BAF

Port to port ocean includes the ocean-freight, CAF & DTHC

Above Pricing does not include import customs clearance

Above pricing does not include Marine Insurance but can be purchased upon request in writing from your company.

Insurance rate if requested : Marine insurance for cargo: 0.8 % Reefer on (C&F value + 10%)



Delivery Destinations

CITY	STATE	Term	PICK-UP PORT	TEMP	BASE/ FUEL/CHASSIS	REEFER CHARGE	TOTAL
ALLENTOWN	PA	Live Unload	NY/NJ	FROZEN	\$ 1,200.00	\$ 150.00	\$ 1,350.00
ELIZABETH	NJ	Live Unload	NY/NJ	FROZEN	\$ 700.00	\$ 150.00	\$ 850.00
JERSEY CITY	NJ	Drop and Pick	NY/NJ	FROZEN	\$ 930.00	\$ 150.00	\$ 1,080.00
SAN LEANDRO	CA	Live Unload	OAKLAND	FROZEN	\$ 815.00	\$ 200.00	\$ 1,015.00
STOCKTON	CA	Live Unload	OAKLAND	FROZEN	\$ 1,100.00	\$ 150.00	\$ 1,250.00
LONG BEACH	CA	Live Unload	LONG BEACH	FROZEN	\$ 880.00	\$ 200.00	\$ 1,080.00
BROOKSHIRE	TX	Live Unload	HOUSTON	FROZEN	\$ 900.00	\$ 175.00	\$ 1,075.00
DALLAS	TX	Live Unload	HOUSTON	FROZEN	\$ 1,400.00	\$ 175.00	\$ 1,575.00
COLLEGE PARK	GA	Live Unload	SAVANNAH	FROZEN	\$ 1,440.00	\$ 150.00	\$ 1,590.00
HIALEAH GARDENS	FL	Live Unload	MIAMI	FROZEN	\$ 1,135.00	\$ 200.00	\$ 1,335.00
ALLENTOWN	PA	Live Unload	PHILADELPHIA	FROZEN	\$ 1,200.00	\$ 150.00	\$ 1,350.00
JERSEY CITY	NJ	Live Unload	PHILADELPHIA	FROZEN	\$ 1,415.00	\$ 200.00	\$ 1,615.00
CHARLESTON	SC	Live Unload	CHARLESTON	FROZEN	\$ 780.00	\$ 150.00	\$ 930.00
POOLER, GA	NJ	Live Unload	CHARLESTON	FROZEN	\$ 1,505.00	\$ 200.00	\$ 1,705.00
JACKSONVILLE	FL	Live Unload	MIAMI	FROZEN	\$ 2,205.00	\$ 150.00	\$ 2,355.00
LINDEN	NJ	Live Unload	NY/NJ	FROZEN	\$ 930.00	\$ 150.00	\$ 1,080.00
EASTON	PA	Live Unload	NY/NJ	FROZEN	\$ 1,180.00	\$ 150.00	\$ 1,330.00
MCDONOUGH	GA	Live Unload	SAVANNAH	FROZEN	\$ 2,010.00	\$ 200.00	\$ 2,210.00
MCDONOUGH	GA	Live Unload	CHARLESTON	FROZEN	\$ 2,480.00	\$ 200.00	\$ 2,680.00
FORT WORTH	TX	Live Unload	HOUSTON	FROZEN	\$ 1,705.00	\$ 150.00	\$ 1,855.00
MCALLEN	TX	Live Unload	HOUSTON	FROZEN	\$ 1,700.00	\$ 150.00	\$ 1,850.00
LA PORTE	TX	Live Unload	HOUSTON	FROZEN	\$ 565.00	\$ 150.00	\$ 715.00
PHILADELPHIA	PA	Live Unload	NY/NJ	FROZEN	\$ 1,405.00	\$ 150.00	\$ 1,555.00
PHILADELPHIA	PA	Live Unload	PHILADELPHIA	FROZEN	\$ 805.00	\$ 200.00	\$ 1,005.00

* Delivery rates includes fuel surcharge, subject to change.

* Delivery rates includes the minimum chassis usage charge of 3 days.

* TMF (Pier Pass) applies for all containers via the port of Los Angeles / Long Beach @ \$68 / 40' : \$38 / 20'

* Extended Gate Fee applies for all containers via the port of Oakland @ \$40.00 per container.

* Landing Fee applies for all containers via the port of Miami @ \$45.00 per container.

* Port Usage Fee applies for all containers via the port of Boston / Long Beach @ \$70.00 per container.

* * * * * Truck/Port Congestion surcharge all POD : \$100.00 / 40'RF as of January 1st 2021

Live Unload includes 2 hours for Unloading. Additional hours \$90 / hour)

Rate is for legal weight containers.

Subject to any applicable accessorial fees as per standard accessorial fees attached.

Fuel surcharge (subject to change without

Chassis was formulated at minimum 3 days @ \$35 per day. Any additional days will be billed at \$35 per day



Customs Entry (incl. 3 lines. \$5 per line after that)	FDA (incl. 3 lines. \$5 per line after that)	ISF /10+2 Filing
\$95.00	\$15.00	\$25.00

Customs Bond:

If you do not currently have an annual customs bond, we can offer the following options:

Annual bond: \$350.00 for a Minimum bond of \$50,000* or

Single entry bond: \$5 per \$1000 calculated by (value FOB x3) [Min. \$75]

ISF Bond: \$100 / shipment if no annual bond in place

For higher bond amounts, please contact your Seafrigo Sales Representative

ACCESSORIAL TARIFF ONLY IF APPLICABLE

PLEASE CHECK WITH US FIRST BEFORE SHIPPING THE PRODUCTS IF YOU NEED ANY IMPORT PERMITS OR WHAT DOCUMENTS YOU WILL NEED FOR THE PRODUCTS THAT YOU CONSIDER TO IMPORT.

Duty Rate: Depending on the HTS customs code of your products

Merchandise processing fees: 0.03463 % on FOB value - (Minimum \$26.22, Maximun %508.70)

Harbor maintenance fees: 0.125% on FOB value - (No minimum or maximum)

- 1) AQI/USDA release \$15.00
- 2) Customs VACIS Exam Coordination Fee (FCL) \$50.00
- 3) Full CBP and or Government Agency Exam (FCL) \$50.00
- 4) FDA Exam / Sampling Coordination Fee \$75.00
- 5) Messenger Fee \$20.00
- 6) FDA Refusals \$250.00
- 7) Drawbacks \$250.00
- 8) Customs VACIS Exam Coordination Fee (consolidations) Special
- 9) Full CBP and or Government Agency Exam (consolidation) Special
- 10) PTT \$35.00
- 11) FSIS Clearance/Coordination Fee \$25.00 (includes 3 lines, \$5 per line after that).
- 12) Weekend Airfreight Clearance \$250.00
- 13) APHIS CORE FEE \$25 (includes 5 lines free, \$5 per line after that)

SEAFRIGO USA 2021 STANDARD ACCESSORIALS TARIFF

1. TERMINAL AND EQUIPMENT CHARGES			
Per diem Charge	At cost per terminal or carrier		
Demurrage	At cost per carrier		
Detention	At cost per carrier		
Administrative fee Per Diem/Demurrage/Detention	\$ 45.00	per	container
TMF (Long Beach)	\$ 38.00	per	20' container
TMF (Long Beach)	\$ 68.00	per	40' container
Extended gate fee (Oakland)	\$ 40.00	per	container
Port usage fee (Boston)	\$ 70.00	per	container
Landing fee (Miami)	\$ 45.00	per	container
Scale fee/Terminal Security (Everglade)	\$ 30.00	per	container
Chicago surcharge if out of Global 4 in Joliet, CN Rail in Joliet, Chicago			
Global Gateway in Joliet, BN Logistics Park in Elwood, IL Transport in			
Wilmington, and Conglobal in Channahon	\$200.00	per	container
Chicago lift on / lift off fee at rail ramp if required	\$150.00	per	container
Other terminal and equipment charges	At cost per terminal		
Administrative fee other terminal and equipment charges	\$ 5.00	per	container
2. TRUCKING			
Detention - Regular Business Hours (2 hour free - any portion there after)	\$ 90.00	per	hour
Detention - Saturday and Sunday (1 hour free - any portion there after)	\$ 150.00	per	hour
Detention - National Holiday (1 hour free - any portion there after)	\$ 250.00	per	hour
Night Pick up/Deliver fee (after 8pm EST before 5am EST)	\$ 150.00	per	pick up/delivery
Pre-pull	\$ 150.00	per	pick up/delivery
Saturday and Sunday Pick up/Delivery	\$ 250.00	per	pick up/delivery
National Holiday Pick up/Delivery	\$ 450.00	per	pick up/delivery
Dry run	full truck rate applied		
Same day/Rush Fee	\$ 200.00	per	pick up/delivery
Drop and Pick	full truck rate applied		
Labour rate/lumper fee	\$ 50.00	per	hour
Driver layover	\$ 350.00	per	container
Driver labor	\$ 75.00	per	hour
Container Drayage - Chassis Usage Fee	\$ 35.00	per	day (min. 3 days)
Chassis split fee	\$ 125.00	per	container/trailer
Trailer / Container Cleaning	terminal cost + \$45.00	per	leg of trip
Container Drayage - Genset	\$ 150.00	per	day (min. 3 days)
Container Drayage - Heavyweight Permit over 43,500 Lbs (1)	\$ 250.00	per	container
Container Drayage - Heavyweight Tri-Axle Chassis over 43,500Lbs (2)	\$ 250.00	per	container
Yard storage	\$ 150.00	per	day
Scale charge (DOT)	\$ 35.00	per	scale
NYCT / Staten Island surcharge	\$ 250.00	per	container
Additional Stop(s)	** see note (3) below **	per	stop
Reefer monitoring/plug in	\$ 175.00	per	container
Port Congestion Fee	\$ 175.00	per	container
Fuel surcharge	Always subjec to change		
2. MISCELLANEOUS			
Peak season surcharge	\$ 250.00	per	container
Hazardous Cargo surcharge	\$ 250.00	per	container
Bonded cargo surcharge	\$ 250.00	per	container
Wine & Spirit surcharge	\$ 250.00	per	container
Letter of credit	\$ 300.00	per	document
Fumigation container	\$ 250.00	per	container
Solas (VGM) - processing fee	\$ 45.00	per	container

Accessorials are being updated on a yearly basis

(1) DOT rule as per US State applies.

(2) DOT rule as per US State applies.

(3) Contingent upon distance between stops.



BAKERLY LLC

Quote# 0I00005650

DATE: 9/22/2021

Validity: 12/31/2021

All SEAFRIGO rates will be fixed when the shipment is received and shall remain so for the period of validity of this Rate Proposal.

This Rate Proposal does not include demurrage and detention charges, for which the shipper and/or consignee may be liable and port terminal handling charges.

This Rate Proposal may be withdrawn at any time before acceptance.

All shipments are subject to the rules in Seafrigo's bill of lading, its Rules Tariff and its standard trading conditions.

Approved Payment Terms:

30 days

\$10,000.00

ITEM DESCRIPTION	CONTAINER TYPE	TEMP SETTING	ORIGIN PORT	DESTINATION PORT	TRANSIT TIME	PORT TO PORT OCEAN FREIGHT	BAF	EIS FEE	TOTAL
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	NY/NJ	8-10 DAYS	\$ 6,355.00	\$ 600.00	\$ 850.00	\$ 7,805.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	MIAMI	17 DAYS	\$ 6,455.00	\$ 600.00	\$ 850.00	\$ 7,905.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	OAKLAND/ LOS ANGELES	30-32 DAYS	\$ 6,530.00	\$ 700.00	\$ 1,000.00	\$ 8,230.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	OAKLAND/ LOS ANGELES	30-32 DAYS	\$ 7,030.00	\$ 700.00	\$ 1,000.00	\$ 8,730.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	PHILADELPHIA	8-10 DAYS	\$ 6,430.00	\$ 600.00	\$ 850.00	\$ 7,880.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	SAN JUAN, PR	27 DAYS	€ 2,895.00	€ 850.00	€ 400.00	€ 4,145.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	HOUSTON	25 DAYS	\$ 6,555.00	\$ 600.00	\$ 850.00	\$ 8,005.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	SAVANNAH	17 DAYS	\$ 6,220.00	\$ 600.00	\$ 850.00	\$ 7,670.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	CHARLESTON	16 DAYS	\$ 6,220.00	\$ 600.00	\$ 850.00	\$ 7,670.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	AIRDRIE, AB VIA MONTREAL	10 DAYS	\$ 11,855.00	\$ 650.00	\$ 400.00	\$ 12,905.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	LANGLEY, BC VIA VANCOUVER		\$ 11,030.00	\$ 650.00	\$ 400.00	\$ 12,080.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	ST BRUNO, QC	10 DAYS	\$ 8,260.00	\$ 650.00	\$ 400.00	\$ 9,310.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	VAUGHAN, ON		\$ 9,850.00	\$ 650.00	\$ 400.00	\$ 10,900.00
FROZEN FOOD	40' REEFER	FROZEN	LE HAVRE	VERACRUZ, MX		\$ 6,750.00	\$ -	\$ -	\$ 6,750.00

(HAPAG/ONE option)
(MSC option)

DTHC collect

Subject to GRI/PSS & fluctuation of the BAF

Port to port ocean includes the ocean-freight, CAF & DTHC

Above Pricing does not include import customs clearance

Above pricing does not include Marine Insurance but can be purchased upon request in writing from your company.

Insurance rate if requested : Marine insurance for cargo: 0.8 % Reefer on (C&F value + 10%)



Delivery Destinations

CITY	STATE	Term	PICK-UP PORT	TEMP	BASE/ FUEL/CHASSIS	REEFER CHARGE	TOTAL
ALLENTOWN	PA	Live Unload	NY/NJ	FROZEN	\$ 1,200.00	\$ 150.00	\$ 1,350.00
ELIZABETH	NJ	Live Unload	NY/NJ	FROZEN	\$ 700.00	\$ 150.00	\$ 850.00
JERSEY CITY	NJ	Drop and Pick	NY/NJ	FROZEN	\$ 930.00	\$ 150.00	\$ 1,080.00
SAN LEANDRO	CA	Live Unload	OAKLAND	FROZEN	\$ 815.00	\$ 200.00	\$ 1,015.00
STOCKTON	CA	Live Unload	OAKLAND	FROZEN	\$ 1,100.00	\$ 150.00	\$ 1,250.00
LONG BEACH	CA	Live Unload	LONG BEACH	FROZEN	\$ 880.00	\$ 200.00	\$ 1,080.00
BROOKSHIRE	TX	Live Unload	HOUSTON	FROZEN	\$ 925.00	\$ 175.00	\$ 1,100.00
DALLAS	TX	Live Unload	HOUSTON	FROZEN	\$ 1,450.00	\$ 175.00	\$ 1,625.00
COLLEGE PARK	GA	Live Unload	SAVANNAH	FROZEN	\$ 1,440.00	\$ 150.00	\$ 1,590.00
HIALEAH GARDENS	FL	Live Unload	MIAMI	FROZEN	\$ 650.00	\$ 150.00	\$ 800.00
ALLENTOWN	PA	Live Unload	PHILADELPHIA	FROZEN	\$ 1,200.00	\$ 150.00	\$ 1,350.00
JERSEY CITY	NJ	Live Unload	PHILADELPHIA	FROZEN	\$ 1,415.00	\$ 200.00	\$ 1,615.00
CHARLESTON	SC	Live Unload	CHARLESTON	FROZEN	\$ 780.00	\$ 150.00	\$ 930.00
POOLER, GA	NJ	Live Unload	CHARLESTON	FROZEN	\$ 1,550.00	\$ 200.00	\$ 1,750.00
JACKSONVILLE	FL	Live Unload	MIAMI	FROZEN	\$ 2,205.00	\$ 150.00	\$ 2,355.00
LINDEN	NJ	Live Unload	NY/NJ	FROZEN	\$ 930.00	\$ 150.00	\$ 1,080.00
EASTON	PA	Live Unload	NY/NJ	FROZEN	\$ 1,180.00	\$ 150.00	\$ 1,330.00
MCDONOUGH	GA	Live Unload	SAVANNAH	FROZEN	\$ 2,100.00	\$ 200.00	\$ 2,300.00
MCDONOUGH	GA	Live Unload	CHARLESTON	FROZEN	\$ 2,480.00	\$ 200.00	\$ 2,680.00
FORT WORTH	TX	Live Unload	HOUSTON	FROZEN	\$ 1,705.00	\$ 150.00	\$ 1,855.00
MCALLEN	TX	Live Unload	HOUSTON	FROZEN	\$ 2,000.00	\$ 150.00	\$ 2,150.00
LA PORTE	TX	Live Unload	HOUSTON	FROZEN	\$ 655.00	\$ 150.00	\$ 805.00
PHILADELPHIA	PA	Live Unload	NY/NJ	FROZEN	\$ 1,405.00	\$ 150.00	\$ 1,555.00
PHILADELPHIA	PA	Live Unload	PHILADELPHIA	FROZEN	\$ 805.00	\$ 200.00	\$ 1,005.00
ELKTON	MD	Live Unload	BALTIMORE	FROZEN	\$ 1,000.00	\$ 150.00	\$ 1,150.00
ROCKY HILL	CT	Live Unload	NY/NJ	FROZEN	\$ 2,000.00	\$ 150.00	\$ 2,150.00
MIAMI	FL	Live Unload	MIAMI	FROZEN	\$ 615.00	\$ 150.00	\$ 765.00

* Delivery rates includes fuel surcharge, subject to change.

* Delivery rates includes the minimum chassis usage charge of 3 days.

* TMF (Pier Pass) applies for all containers via the port of Los Angeles / Long Beach @ \$68 / 40' : \$38 / 20'

* Extended Gate Fee applies for all containers via the port of Oakland @ \$40.00 per container.

* Landing Fee applies for all containers via the port of Miami @ \$45.00 per container.

* Port Usage Fee applies for all containers via the port of Boston / Long Beach @ \$70.00 per container.

***** Truck/Port Congestion surcharge all POD : \$100.00 / 40' RT as of January 1st 2021

Live Unload includes 2 hours for Unloading. Additional hours \$90 / hour)

Rate is for legal weight containers.

Subject to any applicable accessorial fees as per standard accessorial fees attached.

Fuel surcharge (subject to change without

Chassis was formulated at minimum 3 days @ \$35 per day. Any additional days will be billed at \$35 per day



Customs Entry (incl. 3 lines. \$5 per line after that)	FDA (incl. 3 lines. \$5 per line after that)	ISF /10+2 Filing
\$95.00	\$15.00	\$25.00

Customs Bond:

If you do not currently have an annual customs bond, we can offer the following options:

Annual bond: \$350.00 for a Minimum bond of \$50,000* or

Single entry bond: \$5 per \$1000 calculated by (value FOB x3) [Min. \$75]

ISF Bond: \$100 / shipment if no annual bond in place

For higher bond amounts, please contact your Seafrigo Sales Representative

ACCESSORIAL TARIFF ONLY IF APPLICABLE

PLEASE CHECK WITH US FIRST BEFORE SHIPPING THE PRODUCTS IF YOU NEED ANY IMPORT PERMITS OR WHAT DOCUMENTS YOU WILL NEED FOR THE PRODUCTS THAT YOU CONSIDER TO IMPORT.

Duty Rate: Depending on the HTS customs code of your products

Merchandise processing fees: 0.03463 % on FOB value - (Minimum \$26.22, Maximum %508.70)

Harbor maintenance fees: 0.125% on FOB value - (No minimum or maximum)

- 1) AQI/USDA release \$15.00
- 2) Customs VACIS Exam Coordination Fee (FCL) \$50.00
- 3) Full CBP and or Government Agency Exam (FCL) \$50.00
- 4) FDA Exam / Sampling Coordination Fee \$75.00
- 5) Messenger Fee \$20.00
- 6) FDA Refusals \$250.00
- 7) Drawbacks \$250.00
- 8) Customs VACIS Exam Coordination Fee (consolidations) Special
- 9) Full CBP and or Government Agency Exam (consolidation) Special
- 10) PTT \$35.00
- 11) FSIS Clearance/Coordination Fee \$25.00 (includes 3 lines, \$5 per line after that).
- 12) Weekend Airfreight Clearance \$250.00
- 13) APHIS CORE FEE \$25 (includes 5 lines free, \$5 per line after that)

SEAFRIGO USA 2021 STANDARD ACCESSORIALS TARIFF

1. TERMINAL AND EQUIPMENT CHARGES			
Per diem Charge	At cost per terminal or carrier		
Demurrage	At cost per carrier		
Detention	At cost per carrier		
Administrative fee Per Diem/Demurrage/Detention	\$ 45.00	per	container
TMF (Long Beach)	\$ 38.00	per	20' container
TMF (Long Beach)	\$ 68.00	per	40' container
Extended gate fee (Oakland)	\$ 40.00	per	container
Port usage fee (Boston)	\$ 70.00	per	container
Landing fee (Miami)	\$ 45.00	per	container
Scale fee/Terminal Security (Everglade)	\$ 30.00	per	container
Chicago surcharge if out of Global 4 in Joliet, CN Rail in Joliet, Chicago			
Global Gateway in Joliet, BN Logistics Park in Elwood, IL Transport in			
Wilmington, and Conglobal in Channahon	\$200.00	per	container
Chicago lift on / lift off fee at rail ramp if required	\$150.00	per	container
Other terminal and equipment charges	At cost per terminal		
Administrative fee other terminal and equipment charges	\$ 5.00	per	container
2. TRUCKING			
Detention - Regular Business Hours (2 hour free - any portion there after)	\$ 90.00	per	hour
Detention - Saturday and Sunday (1 hour free - any portion there after)	\$ 150.00	per	hour
Detention - National Holiday (1 hour free - any portion there after)	\$ 250.00	per	hour
Night Pick up/Deliver fee (after 8pm EST before 5am EST)	\$ 150.00	per	pick up/delivery
Pre-pull	\$ 150.00	per	pick up/delivery
Saturday and Sunday Pick up/Delivery	\$ 250.00	per	pick up/delivery
National Holiday Pick up/Delivery	\$ 450.00	per	pick up/delivery
Dry run	full truck rate applied		
Same day/Rush Fee	\$ 200.00	per	pick up/delivery
Drop and Pick	full truck rate applied		
Labour rate/lumper fee	\$ 50.00	per	hour
Driver layover	\$ 350.00	per	container
Driver labor	\$ 75.00	per	hour
Container Drayage - Chassis Usage Fee	\$ 35.00	per	day (min. 3 days)
Chassis split fee	\$ 125.00	per	container/trailer
Trailer / Container Cleaning	terminal cost + \$45.00	per	leg of trip
Container Drayage - Genset	\$ 150.00	per	day (min. 3 days)
Container Drayage - Heavyweight Permit over 43,500 Lbs (1)	\$ 250.00	per	container
Container Drayage - Heavyweight Tri-Axle Chassis over 43,500Lbs (2)	\$ 250.00	per	container
Yard storage	\$ 150.00	per	day
Scale charge (DOT)	\$ 35.00	per	scale
NYCT / Staten Island surcharge	\$ 250.00	per	container
Additional Stop(s)	** see note (3) below **	per	stop
Reefer monitoring/plug in	\$ 175.00	per	container
Port Congestion Fee	\$ 175.00	per	container
Fuel surcharge	Always subjec to change		
2. MISCELLANEOUS			
Peak season surcharge	\$ 250.00	per	container
Hazardous Cargo surcharge	\$ 250.00	per	container
Bonded cargo surcharge	\$ 250.00	per	container
Wine & Spirit surcharge	\$ 250.00	per	container
Letter of credit	\$ 300.00	per	document
Fumigation container	\$ 250.00	per	container
Solas (VGM) - processing fee	\$ 45.00	per	container

Accessorials are being updated on a yearly basis

(1) DOT rule as per US State applies.

(2) DOT rule as per US State applies.

(3) Contingent upon distance between stops.



SEAFRIGO USA INC

FCL QUOTATION

40'RF FOB FOS SUR MER TO DOOR JERSEY CITY, NJ VIA NEW YORK, NY

CUSTOMER DETAILS	QUOTE NUMBER	QUOTED BY
COMPANY: BAKERLY LLC	OI00004944	ANA DIAZ
ATTN: YUDITH QUINTERO - EXT 2457	EFFECTIVE DATE	EXPIRATION DATE
TEL: 786-539-5888	03/22/2021	04/30/2021
FAX:	COMMODITY	TRANSIT TIME / SERVICE TYPE
	FROZEN FOODSTUFF	19-21 DAYS FCL - Port To Door
PLACE OF RECEIPT / PORT OF LOADING	PORT OF DISCHARGE / PLACE OF DELIVERY	
FOS SUR MER	NEW YORK	JERSEY CITY

Good day,

Please see attached and confirm your acceptance.

DESCRIPTION OF CHARGES	CURRENCY	CHARGE LINE
OCEAN FREIGHT FOB FOS SUR MER TO NEW YORK, NY 40'RF	USD	4,290.00
BUNKER ADJ FACTOR	USD	550.00
CONTAINER DRAYAGE NEW YORK TO DOOR JERSEY CITY, NJ 40'RF	USD	640.00
CHASSIS SURCHARGE \$35/ DAY (MIN 3 DAYS)	USD	105.00
REEFER FEES	USD	150.00

This quote includes the CAF and DTHC.

Excludes origin fees.

** All delivery rates quoted are based on standard dock delivery unless otherwise specified. **

Insurance rate for your information:

Marine insurance: 0.8 % for Reefer / 0.6% for Dry (C&F value + 10%, Min \$75.00. upon request in writing from your company

Import customs clearance not included on this quote.



All SEAFRIGO rates will be fixed when the shipment is received and shall remain so for the period of validity of this Rate Proposal.

This Rate Proposal does not include demurrage and detention charges, for which the shipper and/or consignee may be liable and port terminal handling charges.

This Rate Proposal may be withdrawn at any time before acceptance.

All shipments are subject to the rules in Seafrigo's bill of lading, its Rules Tariff and its standard trading conditions.

Acceptance of this quotation is an acceptance of our Terms and Conditions. To view our full terms and conditions, please click the following link below:

OTI T&C: https://seafrigo-america.com/wp-content/uploads/2019/07/SFUSA_TC_2019.pdf

HBL T&C: <https://seafrigo-america.com/wp-content/uploads/2020/07/HBL-TC.pdf>

THE SHIPPER'S BOOKING OF CARGO AFTER RECEIVING THE TERMS OF THIS NRA OR NRA AMENDMENT CONSTITUTES ACCEPTANCE OF THE RATES AND TERMS OF THIS NRA OR NRA AMENDMENT.

SEAFRIGO USA, INC.

DATE: _____

NAME: Ana Diaz

TITLE: Seafrigo USA Sales

SIGNATURE: _____

BAKERLY LLC

DATE: _____

NAME: _____

TITLE: _____

SIGNATURE: _____

Best Rgds,
<ana diaz>



SEAFRIGO USA INC

LCL QUOTATION

LCL DRY - FCA LE HAVRE TO DOOR EASTON PA VIA ELIZABETH, NJ

CUSTOMER DETAILS		QUOTE NUMBER	YOUR CONTACT
COMPANY: BAKERLY LLC		OI00005277	ANA DIAZ
ATTN: BAKERLY LLC		EFFECTIVE DATE	EXPIRATION DATE
TEL: (610) 829-5206		06/09/2021	06/30/2021
FAX:		COMMODITY	TRANSIT TIME / SERVICE TYPE
		FOODSTUFF	7-8 DAYS
PLACE OF RECEIPT / PORT OF LOADING		PORT OF DISCHARGE / PLACE OF DELIVERY	
LE HAVRE	LE HAVRE	NEW YORK	ELIZABETH, NJ

Good day,

Please see attached and confirm your acceptance.

DESCRIPTION OF CHARGES	CURRENCY	CHARGE LINE
FOB CHARGES MINIMUM PER SHIPMENT	EUR	65.000
FROM 2 TO 10 PALLETS PER PALLET	EUR	65.000
AMS FEE PER SUPPLIER	EUR	25.000
ISPS TAX/ TID TAX/ SOLAS	EUR	20.000
OCEAN FREIGHT MINIMUM PER SHIPMENT	USD	335.000
OCEAN FREIGHT FROM 1 TO 5 PALLETS PER PALLET	USD	335.000
OCEAN FREIGHT MORE THAN 5 PALLETS PER PALLET	USD	310.000
EIS FEES PER CONTAINER	USD	25.000
INLAND CHARGES FROM ELIZABETH, NJ TO EASTON, PA (8 PALLETS DRY)	USD	865.000



***** Exchange Rates applied on this quote may change depending on the actual shipping dates and will be adjusted accordingly. *****

FUEL SURCHARGE ON BASE OCEAN FREIGHT 7%, (SUBJECT TO CHANGE WITHOUT NOTICE)

Goods to be delivered on fumigated American pallets 40" X 48" (NIMP 15).

Charges include unloading of your truck, in and out handling fee, transit & customs formalities, stuffing charges, haulage to the POL terminal, THC in Le Havre, pickup & delivery to our Dowd Ave facility in Elizabeth, NJ, breakbulk fees, Reloading on truck

Import customs clearance NOT included, must be done in NY/NJ. Coordination with customs broker will be followed up by our USA office.

Free time in Elizabeth: 5 working days. Storage charges will be assessed once free time expires. (\$30/pallet/month after that)

SHIPPING INSURANCE: 0,4% of the C&F + 10% (minimum \$60.00) upon request in writing from your company

SERVICE DETAIL:

Cut off Le Havre: Monday week A

ETD Le Havre: Saturday week A : Weekly departure

ETA New York: Monday week C : Transit time 9 days

Availability of the goods: Thursday / Friday week C

Door delivery: Week D

Delivery address at Le Havre for goods of any temperature:

PARC LOGISTIQUE SEAFRIGO (PLS)

Rue du Pont VII Port 3093 76600 Le Havre (HALL 3)

Making appointment mandatory for all deliveries in our warehouse.

(Dry / Chilled)Charlène at 02.35.24.77.55

(Frozen)Carole at 02.35.53.87.17

****Fuel surcharge is included, subject to change without notice****

**** All delivery rates quoted are based on standard dock delivery unless otherwise specified. ****

****Quote subject to Terms and Conditions of SEAFRIGO****



All SEAFRIGO rates will be fixed when the shipment is received and shall remain so for the period of validity of this Rate Proposal.

This Rate Proposal does not include demurrage and detention charges, for which the shipper and/or consignee may be liable and port terminal handling charges.

This Rate Proposal may be withdrawn at any time before acceptance.
All shipments are subject to the rules in Seafrigo's bill of lading, its Rules Tariff and its standard trading conditions.

Acceptance of this quotation is an acceptance of our Terms and Conditions. To view our full terms and conditions, please click the following link below:

OTI T&C: https://seafrigo-america.com/wp-content/uploads/2019/07/SFUSA_TC_2019.pdf
HBL T&C: <https://seafrigo-america.com/wp-content/uploads/2020/07/HBL-TC.pdf>

THE SHIPPER'S BOOKING OF CARGO AFTER RECEIVING THE TERMS OF THIS NRA OR NRA AMENDMENT CONSTITUTES ACCEPTANCE OF THE RATES AND TERMS OF THIS NRA OR NRA AMENDMENT.

SEAFRIGO USA, INC.

DATE: _____
NAME: Ana Diaz
TITLE: Seafrigo USA Sales
SIGNATURE: _____

BAKERLY LLC

DATE: _____
NAME: _____
TITLE: _____
SIGNATURE: _____

Best Rgds,
<Name Here>

EXHIBIT 3

BILL OF LADING

SEAFRIGO USA INC.

SHIPPER (Principal or Seller-license and address)			BILL OF LADING NUMBER		
			EXPORT REFERENCES BOOKING NUMBER		
			FORWARDING AGENT (References)		
CONSIGNEE (Non-negotiable unless consigned to order)			POINT AND COUNTRY OF ORIGIN		
NOTIFY PARTY / INTERMEDIATE CONSIGNEE (Name and address)			RELEASE INSTRUCTIONS / Presentation OFFICE		
PRE-CARRIAGE BY		PLACE OF RECEIPT			
OCEAN VESSEL		PORT OF LOADING	NUMBER OF ORIGINAL B(s)/L		
PORT OF DISCHARGE		PLACE OF DELIVERY	TYPE OF MOVE	CONTAINERIZED ☐ YES ☐ NO	
MARKS AND NUMBERS	NO.OF PKGS	DESCRIPTION OF PACKAGES AND GOODS PARTICULARS DECLARED BY SHIPPER		GROSS WEIGHT	MEASUREMENT
		NON NEGOTIABLE COPY			
		DECLARED VALUE _____ READ CLAUSE 7.1 HERE OF CONCERNING EXTRA FREIGHT AND CARRIER'S LIMITATION OF LIABILITY.			

FREIGHT RATES, CHARGES, WEIGHTS AND / OR MEASUREMENTS

SUBJECT TO CORRECTION		PREPAID		COLLECT	
TOTAL PREPAID					
TOTAL COLLECT					

Received by Carrier for shipment by ocean vessel between port of loading and port of discharge, and for arrangement or procurement of pre-carriage from place of receipt and on-carriage to place of delivery, where stated above, the goods as specified above in apparent good order and condition unless otherwise stated. The goods to be delivered at the above mentioned port of discharge or place of delivery, whichever applicable, subject always to the exceptions, limitations, conditions and liberties set out on the reverse side hereof, to which the Shipper and/or Consignee agree to accepting this Bill of Lading. IN WITNESS WHEREOF three (3) original Bills of Lading have been signed, not otherwise stated above, one of which being accomplished the others shall be void.

PLACE AND DATE _____
OF ISSUE
BY _____
AS AGENT FOR SEAFRIGO USA INC.

TERMS AND CONDITIONS

1 / CLAUSE PARAMOUNT :

This Bill of Lading shall have effect subject to the provisions of the Hague Rules contained in the International Convention for the unification of certain rules relating to Bills of Lading dated Brussels the 25th August 1924 as amended by the protocole at Brussels on 23rd February 1968 and 21st December 1979. In the event that this Bill of Lading covers shipment to or from the United States, then the Bill Of Lading shall have effect subject to the provision of the Carriage of Goods by Sea Act of the United States 46 U.S.C. sections 1300-1315 (hereafter, "COGSA"). The provisions stated in Hague rules or COGSA (except as may be otherwise specifically provided herein) shall govern before the goods are loaded on and after they are discharged from the ship and throughout the entire time the goods are in the custody of the carrier.

2 / DEFINITIONS :

- 2.1 • "Ship" means the vessel named in this Bill of Lading, or any conveyance owned, chartered, or operated by Carrier or used by Carrier for the performance of this contract.
- 2.2 • "Carrier" means SEAFRIGO USA INC OTI Licence Number 003616NF, on whose behalf this Bill of Lading has been signed.
- 2.3 • "Merchant" includes the Shipper, the Receiver, the Consignor, the Consignee, the Holder of this Bill of Lading and any person having a present or future interest in the Goods or any person acting on behalf of any of the above-mentioned persons.
- 2.4 • "Package" is the largest individual unit of partially or completely covered or contained cargo made up by or for the Shipper which is delivered and entrusted to Carrier, including palletized units and each container stuffed and sealed by the Shipper or on its behalf, although the Shipper may have furnished a description of the contents of such sealed container on this Bill of Lading.
- 2.5 • "Container" includes any container, trailer, transportable tank, lift van, flat, pallet, or any similar article of transport used to consolidate goods.

3 / SUBCONTRACTING :

- 3.1 • Carrier shall be entitled to subcontract on any terms the whole or any part of the handling, storage, or carriage of the goods and all duties undertaken by Carrier in relation to the goods.
- 3.2 • Every servant or agent or subcontractor of Carrier shall be entitled to the same rights, exemptions from liability, defenses and immunities to which Carrier is entitled. For these purposes, Carrier shall be deemed to be acting as agent or trustee for such servants or agents, who shall be deemed to be parties to the contract evidenced in this Bill of Lading.

4 / ROUTE OF TRANSPORT :

- 4.1 • Carrier is entitled to perform the transport in any reasonable manner and by any reasonable means, methods and routes.
- 4.2 • The Ship shall have the liberty to, at any time, adjust navigational instruments, make trial trips, dry dock, go to repair yards, shift berths, take in fuel or stores, embark or disembark any persons, carry contraband and hazardous goods, sail with or without pilots and save or attempt to save life or property. Delays resulting from such activities shall not be deemed a deviation.

5 / HINDRANCES AFFECTING PERFORMANCE :

- 5.1 • Carrier shall use reasonable endeavors to complete transport and to deliver the goods at the place designated for delivery.
- 5.2 • If at any time the performance of this contract as evidenced by this Bill of Lading in the opinion of Carrier is or will be affected by any hindrance, risk, delay, difficulty or disadvantage of any kind including strike and if by virtue of the above Carrier has no duty to complete the performance of the contract, Carrier, whether or not the transport is commenced may elect to :
 - a) treat the performance of this contract as terminated and place the goods at Merchant's disposal at any place Carrier shall deem safe and convenient, or
 - (b) deliver the goods at the place of delivery.In any event, Carrier shall be entitled to full freight for any goods received for transportation and additional compensation for extra costs resulting from the circumstances referred to above.

6 / BASIC LIABILITY :

- 6.1 • Carrier shall be liable for loss of or damage to the goods occurring between the time when it takes goods into its charge and the time of delivery.
- 6.2 • If it is established that the loss of or damage to the goods occurred during sea carriage, liability shall be governed either by the Hague rules or by COGSA (see section 1).
- 6.3 • If it cannot be determined when the loss of or damage to the goods occurred, it shall be presumed that such loss or damage occurred while the goods were in the custody of Carrier.
- 6.4 • Carrier does not undertake that the goods shall be delivered at any particular time and shall not be liable for any direct or indirect losses caused by any delay.
- 6.5 • Carrier shall not be liable for any loss or damage arising from :
 - (a) an act or omission of Merchant or person other than Carrier acting on behalf of Merchant from whom Carrier took the goods in charge,
 - (b) compliance with the instructions of any person authorized to give them,
 - (c) handling, loading, stowage or unloading of the goods by or on behalf of Merchant,
 - (d) inherent vice of the goods,
 - (e) lack of insufficiency of or defective condition of packing in the case of goods, which by their nature, are liable to wastage or damage when not packed or when not properly packed,
 - (f) insufficiency or inadequacy of marks or numbers on the goods, coverings or unit loads,
 - (g) fire, unless caused by actual fault or privity of Carrier,
 - (h) any cause or event which Carrier could not avoid and the consequences of which he could not prevent by the exercise of due diligence.
- 6.6 • With respect to the transportation performed by Inland Carriers to the port of loading or from the port of discharge, the responsibility of Carrier shall be to procure transportation by such carriers (one or more) and such transportation shall be subject to the Inland Carrier's contracts of carriage, tariffs and any law compulsorily applicable.

7 / COMPENSATION FOR LOSS AND DAMAGE :

- 7.1 • Unless otherwise mandated by compulsorily applicable law, Carrier's liability for compensation for loss of or damage to goods shall in no case exceed the amount of US \$500 per package or per customary freight unit, unless the Merchant, with the consent of Carrier, has declared by writing a higher value for the goods in the space provided on the front of this Bill of Lading and paid extra freight per Carrier's tariff, in which case such higher value shall be the limit of Carrier's liability. Where a container is stuffed by shipper or on its behalf, and the container is sealed when received by Carrier for shipment, the Carrier's liability will be limited to US \$500 with respect to the contents of each such container, except when the Shipper declares by writing the value on the face hereof and pays additional charges on such declared value. The freight charged on sealed containers when no higher valuation is declared by the Shipper is based on a value of US \$500 per container. However, Carrier shall not, in any case, be liable for an amount greater than the actual loss to the person entitled to make the claim.
- 7.2 • In any case where Carrier's liability for compensation may exceed the amounts set forth in clause 7.1 above, compensation shall be calculated by reference to the value of the goods, according to their current market price, at the time and place they are delivered, or should have been delivered, in accordance with this contract.
- 7.3 • If the value of the goods is less than US \$500 per package or per customary freight unit, their value for compensation purposes shall be deemed to be the invoice value, plus freight and insurance, if paid.

8 / DESCRIPTION OF GOODS :

Merchant warrants to Carrier that all particulars of the goods, including, without limitation, the marks, number, quantity and weight, furnished by Merchant are correct and Merchant shall indemnify Carrier against all losses arising from any inaccuracy.

9 / CARRIER'S CONTAINERS :

- 9.1 • If goods are not received by Carrier already in containers, Carrier may pack them in any type container.
- 9.2 • Merchant shall be liable to Carrier for damage to Carrier's containers or equipment if such damage occurs while such equipment is in control of Merchant or his agents.
- 9.3 • Merchant indemnifies Carrier for any damage or injury to persons or property caused by Carrier's containers during handling by or when in possession or control of Merchant.
- 9.4 • Merchant undertakes to return such containers to Carrier within the time provided for in Carrier's applicable tariff; otherwise, Merchant shall pay Carrier for the demurrage or detention charges applicable to the containers.

10 / CONTAINER PACKED BY MERCHANT :

- If Carrier receives the goods already packed into containers :
 - 1. This Bill of Lading is prima facie evidence of the receipt of the particular number of containers set forth, and that number only. Carrier accepts no responsibility with respect to the order and condition of the contents of the containers;
 - 2. Merchant warrants that the stowage and seals of the containers are safe and proper and suitable for handling and carriage;
 - 3. Delivery shall be deemed as full and complete performance when the containers are delivered by Carrier with the seals intact; and
 - 4. Carrier has the right to open and inspect the containers at any time without notice to Merchant, and expenses resulting from same shall be borne by Merchant.

11 / DANGEROUS GOODS :

- 11.1 • Merchant may not tender goods of a dangerous nature without written application to Carrier and Carrier's acceptance of the same. In the application, Merchant must identify the nature of the goods with reasonable specificity as well as the names and addresses of the shippers and consignees.
- 11.2 • Merchant shall distinctly and permanently mark the nature of the goods on the outside of the package and container and shall submit to Carrier or to the appropriate authorities all necessary documents required by law or by Carrier for the transportation of such goods.
- 11.3 • If the goods subsequently, in the judgement of Carrier, become a danger to Carrier, the Ship, or other cargo, Carrier may dispose of the goods without compensation to Merchant and Merchant shall indemnify Carrier for any loss or expenses arising from such action.

12 / PERISHABLE GOODS :

- 12.1 • Goods of a perishable nature shall be carried in ordinary Containers without special protection, services or other measures unless there is noted on the reverse side of this Bill of Lading that the Goods will be carried in a refrigerated, heated, electrically ventilated or otherwise specially equipped Container or are to receive special attention in any way. The Merchant undertakes not to tender for transportation any Goods which require refrigeration without given written notice of their nature and the required temperature setting of the thermostatic controls before receipt of the Goods by the Carrier in case of refrigerated Container(s) packed by or on behalf of the Merchant. The Merchant undertakes that the Goods have been properly stowed in the Container and that the thermostatic controls have been properly stowed in the Container and that the thermostatic controls have been adequately set by him before receipt of the Goods by the Carrier and, if necessary, that the Goods have been pre-chilled before the loading into the Container. The Merchant's attention is drawn to the fact that refrigerated Containers are not designed to freeze down Goods which has not been presented for stuffing at or below its designated carrying temperature and the Carrier shall not be responsible for the consequences of cargo presented at a higher temperature than that required for the transportation. If the above requirements are not complied with the carrier shall not be liable for any loss of or damage to the Goods howsoever arising.
- 12.2 • The term "apparent good order and condition" when used in this Bill of Lading with reference to Goods which require refrigeration does not mean that the Goods, when received were verified by the Carrier as being at the designated carrying temperature.
- 12.3 • The Carrier shall in no event be held liable for damage to Goods due to condensation.

13 / SOLAS WEIGHT CERTIFICATION :

Merchant acknowledges that it is required to provide verified weights obtained on calibrated, certified equipment of all cargo that is to be tendered to steamship lines and represents that Carrier is entitled to rely on the accuracy of such weights and to counter-sign, endorse or otherwise provide its own certified weight to the steamship lines. The merchant agrees that it shall indemnify and hold the carrier harmless from any and all claims, losses, penalties or other costs resulting from any incorrect or questionable statements of the weight provided by Merchant or its agent or contractor on which the carrier relies.

14 / DECK CARGO :

- 14.1 • Carrier has the right to carry the goods in any container under deck or on deck.
- 14.2 • Carrier is not required to note "on deck storage" on the face of this Bill of Lading and goods so carried shall constitute under deck storage for all purposes including the General Average.
- 14.3 • Except as otherwise provided by any law applicable to this contract, if this Bill of Lading states that the cargo is slowed on deck, then Carrier shall not be liable for any non-delivery, misdelivery, delay or loss to goods carried on deck, whether or not caused by Carrier's negligence or the ship's unseaworthiness.

15 / HEAVY LIFT :

- 15.1 • Single packages with a weight exceeding 2.240 pounds gross not presented to Carrier in enclosed containers must be declared in writing by Merchant before receipt of the packages by Carrier. The weight of such packages must be clearly and durably marked on the outside of the package in letters and figures not less than two inches high.
- 15.2 • If Merchant fails to comply with the above provisions, Carrier shall not be liable for any loss of or damage to the goods, and Merchant shall be liable for any loss of or damage to persons or property resulting from such failure and Merchant shall indemnify Carrier against any loss or liability suffered or incurred by Carrier as a result of such failure.

16 / DELIVERY :

- 16.1 • Carrier shall have the right to deliver the goods at any time at any place designated by Carrier within the commercial or geographic limits of the port of discharge or place of delivery shown in this Bill of Lading.
- 16.2 • Carrier's responsibility shall cease when delivery has been made to Merchant, any person authorized by Merchant to receive the goods, or in any manner or to any other person in accordance with the custom and usage of the port of discharge.
- 16.3 • If goods should remain in Carrier's custody after discharge from the ship and possession is not taken by Merchant, after notice, within the time allowed in Carrier's applicable tariff, the goods may be considered to have been delivered to Merchant, and, at Carrier's option, may be stored at Merchant's expense.

17 / NOTICE OF CLAIM :

- 17.1 • Written notice of claims for loss of or damage to goods occurring or presumed to have occurred while in the custody of Carrier must be given to Carrier at the port of

discharge before or at the time of removal of the goods by one entitled to delivery. If such notice is not provided, removal shall be prima facie evidence of delivery by Carrier. If such loss or damage is not apparent, Carrier must be given written notice within three (3) days of the delivery.

18 / FREIGHT AND CHARGES :

- 18.1 • Freight may be calculated on the basis of the particulars of the goods furnished by Merchant. Carrier and Merchant agree that it may be difficult or impossible to assess damages if freight is incorrectly declared. Therefore, in case of incorrect declaration of the goods, Merchant shall pay a sum equal to three times the difference between the correct freight and the freight charged as liquidated damages, notwithstanding any other sum having been stated herein as freight payable. Quotations as to fees, rates of duty, freight charges, insurance premiums or other charges given by Carrier to Merchant are for informational purposes only and are subject to change without notice and shall not under any circumstances be binding upon Carrier unless the Carrier in writing specifically undertakes the handling of transportation of the shipment at a specific rate.
- 18.2 • Freight shall be deemed earned upon booking of goods by Carrier, whether the freight be intended to be prepaid or collected at destination. Payment shall be in full and in cash, in the currency named in this Bill of Lading, or another currency at Carrier's option, interest at 12% shall run from the date when freight and charges are due and not returnable in any event. If the services of a freight forwarder are used for this transportation, those services shall be deemed to be performed as agent of Merchant and payment of freight to the freight forwarder is not payment to Carrier. Full freight shall be paid on damaged or unsound goods. In any referral for collection or action against the Merchant for monies due to Carrier, upon recovery by the Carrier, the Merchant shall pay the expenses of collection and/or litigation, including reasonable attorney's fees.
- 18.3 • Merchant shall be liable for all dues, duties, fines, taxes and charges, including consular fees, levied on the goods. Merchant shall be liable for return freight and charges on the goods if they are refused export or import by any government.
- 18.4 • All persons encompassed within the definition of "Merchant" as provided in section 2 of this Bill of Lading shall be jointly and severally liable to Carrier for the payment of all freight and charges, including advances.
- 18.5 • All persons encompassed within the definition of "Merchant" as provided in section 2 of this Bill of Lading shall be jointly and severally indemnify the Carrier for all claims, fines, penalties, damages, costs and other amounts which may be incurred or imposed upon the Carrier by reason of any breach of the Merchant of any of the provisions of this Bill of Lading or of any statutory or regulatory requirements.

19 / LIEN :

The Carrier shall have a general lien on any and all property (and documents relating thereto) of the Merchant, in its possession, custody or control or en route, for all claims for charges, expenses or advances incurred by the Carrier in connection with any shipments or operations of the Merchant and if such claim remains unsatisfied for ten (10) days after demand for its payment is made, the Carrier may sell at public auction or private sale or otherwise dispose of the goods, upon ten (10) days written notice, registered mail (R.R.R.) to the Merchant, the goods, wares and/or merchandise or so much necessary to satisfy such lien, and apply the net proceeds of such sale to the payment of the amount due the Carrier. Any surplus from such sale shall be transmitted to the Merchant, and the Merchant shall be liable for any deficiency in the sale. If the goods are not claimed during a reasonable time in the Carrier opinion, the Carrier will make at his discretion and subject to his lien and without responsibility auction, sale, abandon or otherwise dispose of the goods at the risk and expenses of the merchant.

20 / TIME BAR :

Carrier shall be discharged from all liability for loss of or damage to goods unless suit is brought within nine (9) months after delivery of the goods or the date when the goods should have been delivered. The time bar for overcharge claims shall be that set forth in Carrier's applicable tariff or thirty six (36) months, whichever is shorter and of legal effect under the laws of the country having jurisdiction over this contract.

21 / JURISDICTION :

Disputes arising under this Bill of Lading shall be determined by the Tribunal of Commerce at Le Havre under the laws of France, and no other court shall have jurisdiction with regards to any such action.

22 / GENERAL AVERAGE :

- 22.1 • General Average shall be adjusted at New York, or any other port at Carrier's option, according to the York-Antwerp Rules of 1974. The General Average statement shall be prepared by adjusters appointed by Carrier.
- 22.2 • In the event of accident, damage, danger or disaster after commencement of the voyage resulting from any cause whatsoever, whether due to negligence or not, for the consequence of which Carrier is not responsible by statute, contract or otherwise, Merchant shall contribute with Carrier in General average to the payment of any sacrifice, loss or expense of a General Average nature that may be made or incurred, and shall pay salvage or special charges in respect of the goods. If a salving vessel is owned or operated by Carrier, Salvage shall be paid for as fully as if the salving vessel or vessels belonged to strangers.

23 / BOTH-TO-BLAME COLLISION CLAUSE :

If the ship comes into collision with another vessel as a result of negligence of the other vessel and any negligence or fault on the part of Carrier or its servants or subcontractors, Merchant shall indemnify Carrier against all loss or liability to the other or non-carrying vessel or her owners, insofar as such loss or liability represents loss of, or damage to, or any claim what so ever of Merchant paid or payable by the other or non-carrying vessel or her owners to Merchant and set-off, recouped or recovered by the other or non-carrying vessel or her owners as part of their claim against the carrying ship or her owner. This provision shall apply as well where the owners, operators or those in charge of any ship or ships or objects other than, or in addition to, the colliding ships or objects are at fault with respect to a collision or contact.

24 / CARRIER'S TARIFFS :

- 24.1 • The goods carried under this Bill of Lading are also subject to all the terms and conditions of tariff(s) on file with the Federal Maritime Commission, the Interstate Commerce Commission or any other regulatory agency which governs a particular portion of the carriage and the terms are incorporated herein as part of the terms and conditions of this Bill of Lading.
- 24.2 • Copies of Carrier's tariffs may be obtained from carrier or its agents upon request or from the governmental body with whom the tariff has been filed.

25 / SEVERABILITY :

The terms of this Bill of Lading shall be severable, and, if any part or term hereof shall be held invalid, such holding shall not affect the validity of enforceability of any other part or term hereof.

26 / VARIATION OF THE CONTRACT :

No servant or agent of the Carrier shall have power to waive or vary any of the terms hereof unless such variation is in writing and is specifically authorized or ratified in writing by the Carrier.

EXHIBIT 4

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
1

+-----+
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 1 Effective: 22Feb2017
(I)(R)

GEOGRAPHIC SCOPE

This tariff covers the transportation of the commodities listed herein between all ports and points in the United States and all ports and points worldwide. Carrier offers service only on those routings for which rates are published herein or in Negotiated Rate Arrangements or NVOCC Service Arrangements.

===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code

Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
2

-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022
-----+-----

-----+-----
Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.
-----+-----

RULE: 2 Effective: 22Feb2017
(I) (R)

APPLICATION OF RATES AND CHARGES

2.1 Rates apply on either a per container or weight/measurement basis. Except as provided in an individual TRI, whenever ocean freight and assessorial charges are assessed on a weight/measurement basis, same shall be assessed on the gross weight or the overall measurement of the cargo, whichever computation produces the greater revenue to the Carrier. As used in the context of weight/measurement rates, references to W and M mean 800 pounds and 1 cubic meter, respectively.

2.2 Rates are either port, ramp, CY, CFS or door.

A. With respect to rates at origin:

Rates that are port at origin apply from the ocean terminal at the port of loading.

Rates that are ramp or CY at origin apply from the inland rail carriers ramp at the place of receipt of the cargo by Carrier.

Rates that are door at origin apply from the location at which the container is stuffed and at which Carrier takes possession of the cargo.

Rates that are CFS at origin apply from the carriers CFS warehouse at the place of receipt of the cargo by Carrier.

All transportation of cargo prior to the point at which Carriers rates begin to apply as set forth above shall be at the risk and expense of Merchant.

B. With respect to rates at destination:

Rates that are port at destination apply to the ocean terminal at the port of discharge.

Rates that are ramp or CY at destination apply to the inland rail carriers ramp at the place of delivery.

Rates that are door at destination apply to Merchants facility at the place of delivery.

Rates that are CFS at origin apply from the carriers CFS warehouse at the place of receipt of the cargo by Carrier.

All transportation of cargo subsequent to the point at which Carriers rates cease to apply as set forth above shall be at the risk and expense of Merchant.

2.3 Packages containing articles of more than one description shall be charged on the basis on the rate

provided for the highest rated articles contained therein.

2.4 Prohibited or restricted articles:

Except as otherwise provided, the following articles will not be handled:

- A. Cargo, loose on platforms or pallets, except when prior arrangements have been concluded with carrier.
- B. Cargo which because of its inherent vice is likely to impregnate or otherwise damage carrier's containers or other cargo.
- C. Cargo which requires protection from heat or cold.
- D. Bank bills, coin or currency, deeds, drafts, notes or valuable paper of any kind; jewelry including costume or novelty jewelry, except where otherwise specifically provided; postage stamps or letters and packets of letters with or without postage stamps affixed; precious metals or articles manufactured therefrom; precious stones; revenue stamps; works of art; antiques, or other related or unrelated old, rare or precious articles of extraordinary value except when prior arrangements have been concluded with carrier.
- E. Animals, Birds and Fish, alive.

2.5 Insurance

Rates named herein do not include Marine Insurance, and no premiums for account of shipper may be absorbed by the carrier.

2.6 Shipper's load and count

Where containers are loaded by shipper or his agent and sealed, carrier will accept such shipments subject to "Shipper's Load and Count" and Bill of Lading shall be so claused and carrier will not be responsible either directly or indirectly for damage resulting from improper loading or mixing of articles in the container or any discrepancy in count or concealed damage to articles.

The shipper shall furnish carrier with a list of contents showing description of goods and the gross weight and cubic measurements of the contents of the container. Carrier reserves the right to open and inspect the contents of a container and so indicates on the Bill of Lading, resealing the container. When containers loaded with goods moving subject to shipper's load and count are delivered to consignee or his agent, consignee or his agent must furnish carrier with a claim-free receipt prior to release of container or contents for delivery.

===== End of Rule Text =====

3

-----+-----

DXI Tariff Report

Page 1

Access date: 26May2022 Print date: 26May2022

-----+-----

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

-----+-----

RULE: 3 Effective: 22Feb2017

(I)(R)

RATE APPLICABILITY RULE

All tariff rates, rules and charges applicable to a given shipment will be those published or otherwise in effect when the cargo is received by the ocean carrier or its agent, including originating carriers in the case of rates for through transportation.

===== End of Rule Text =====

-----+-----

-----+-----

SEAFRIGO USA INC.

Tariff Code

Rule Report

SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003

011198-003

4

-----+-----

DXI Tariff Report

Page1

Access date: 26May2022Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 4Effective: 22Feb2017

(I)(R)

MINIMUM BILL OF LADING CHARGES

Except as otherwise specifically provided by tariff,
Negotiated Rate Arrangement or contract, the minimum charge
for a single shipment from one shipper to one consignee
shall be the freight and charges applicable to 800 pounds or
one cubic meter.

===== End of Rule Text =====

SEAFRIGO USA INC.

Tariff Code

Rule Report

SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003

011198-003

5

-----+-----

DXI Tariff Report

Page1

Access date: 26May2022Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 5 Effective: 22Feb2017
(I)(R)

PAYMENT OF FREIGHT CHARGES

5.1 Except as otherwise provided in the relevant TRI, all freight and charges to destination shall be considered earned and shall be payable by Merchant, without refund or offset in whole or in part, upon receipt of the goods by Carrier or its agent.

5.2 Except as indicated in individual rate publications or contracts, all rates and charges in this tariff must be paid in U.S. currency. Unless other arrangements are made, payment shall be made to Carrier or its agent at origin.

5.3 Carrier may extend credit, in its sole discretion, to qualified shippers or consignees on the following terms:

A "qualified" shipper or consignee shall mean persons with

1. sufficient provable financial resources; or
2. a history of satisfactory financial dealings with Carrier; or
3. credit references satisfactory to Carrier.

Credit will be extended on terms consistent with market rates at the time and place of shipment and on Carrier's assessment, in its sole discretion, of the credit risk of the particular shipper or consignee.

===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
6

DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 6 Effective: 22Feb2017

(I) (R)

BILL OF LADING

TERMS AND CONDITIONS

1 / CLAUSE PARAMOUNT :

This Bill of Lading shall have effect subject to the provisions of the Hague Rules contained in the International Convention for the unification of certain rules relating to Bills of Lading dated Brussels the 25th August 1924 as amended by the protocole at Brussels on 23rd February 1968 and 21st December 1979. In the event that this Bill of Lading covers shipment to or from the United States, then the Bill Of Lading shall have effect subject to the provision of the Carriage of Goods by Sea Act of the United States 46 U.S.C. sections 1300-1315 (hereafter, COGSA). The provisions stated in Hague rules or COGSA (except as may be otherwise specifically provided herein) shall govern before the goods are loaded on and after they are discharged from the ship and throughout the entire time the goods are in the custody of the carrier.

2 / DEFINITIONS :

2.1 Ship means the vessel named in this Bill of Lading, or any conveyance owned, chartered, or operated by Carrier or used by Carrier for the performance of this contract.

2.2 Carrier means SEAFRIGO USA INC OTI Licence Number 003616NF, on whose behalf this Bill of Lading has been signed.

2.3 Merchant includes the Shipper, the Receiver, the Consignor, the Consignee, the Holder of this Bill of Lading and any person having a present or future interest in the Goods or any person acting on behalf of any of the above-mentioned persons.

2.4 Package is the largest individual unit of partially or completely covered or contained cargo made up by or for the Shipper which is delivered and entrusted to Carrier, including palletized units and each container stuffed and sealed by the Shipper or on its behalf, although the Shipper may have furnished a description of the contents of such sealed container on this Bill of Lading.

2.5 Container includes any container, trailer, transportable tank, lift van, flat, pallet, or any similar article of transport used to consolidate goods.

3 / SUBCONTRACTING :

3.1 Carrier shall be entitled to subcontract on any terms the whole or any part of the handling, storage, or carriage of the goods and all duties undertaken by Carrier in relation to the goods.

3.2 Every servant or agent or subcontractor of Carrier shall be entitled to the same rights, exemptions from liability, defenses and immunities to which Carrier is entitled. For these purposes, Carrier shall be deemed to be acting as agent or trustee for such servants or agents, who shall be deemed to be parties to the contract evidenced in this Bill of Lading.

4 / ROUTE OF TRANSPORT :

4.1 Carrier is entitled to perform the transport in any

reasonable manner and by any reasonable means, methods and routes.

4.2 The Ship shall have the liberty to, at any time, adjust navigational instruments, make trial trips, dry dock, go to repair yards, shift berths, take in fuel or stores, embark or disembark any persons, carry contraband and hazardous goods, sail with or without pilots and save or attempt to save life or property. Delays resulting from such activities shall not be deemed a deviation.

5 / HINDRANCES AFFECTING PERFORMANCE :

5.1 Carrier shall use reasonable endeavors to complete transport and to deliver the goods at the place designated for delivery.

5.2 If at any time the performance of this contract as evidenced by this Bill of Lading in the opinion of Carrier is or will be affected by any hindrance, risk, delay, difficulty or disadvantage of any kind including strike and if by virtue of the above Carrier has no duty to complete the performance of the contract, Carrier, whether or not the transport is commenced may elect to :

(a) treat the performance of this contract as terminated and place the goods at Merchants disposal at any place Carrier shall deem safe and convenient, or

(b) deliver the goods at the place of delivery.

In any event, Carrier shall be entitled to full freight for any goods received for transportation and additional compensation for extra costs resulting from the circumstances referred to above.

6 / BASIC LIABILITY :

6.1 Carrier shall be liable for loss of or damage to the goods occurring between the time when it takes goods into its charge and the time of delivery.

6.2 If it is established that the loss of or damage to the goods occurred during sea carriage, liability shall be governed either by the Hague rules or by COGSA (see section 1).

6.3 If it cannot be determined when the loss of or damage to the goods occurred, it shall be presumed that such loss or damage occurred while the goods were in the custody of Carrier.

6.4 Carrier does not undertake that the goods shall be delivered at any particular time and shall not be liable for any direct or indirect losses caused by any delay.

6.5 Carrier shall not be liable for any loss or damage arising from :

(a) an act or omission of Merchant or person other than Carrier acting on behalf of Merchant from whom Carrier took the goods in charge,

(b) compliance with the instructions of any person authorized to give them,

(c) handling, loading, stowage or unloading of the goods by or on behalf of Merchant,

SEAFRIGO USA INC.

Tariff Code

Rule Report

SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003

011198-003

6

DXI Tariff Report

Page 2

Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 6 BILL OF LADING
(Continued...)

9 / CARRIERS CONTAINERS :

(d) inherent vice of the goods,

(e) lack of insufficiency of or defective condition of packing in the case of goods, which by their nature, are liable to wastage or damage when not packed or when not properly packed,

(f) insufficiency or inadequacy of marks or numbers on the goods, coverings or unit loads,

(g) fire, unless caused by actual fault or privity of Carrier,

(h) any cause or event which Carrier could not avoid and the consequences of which he could not prevent by the exercise of due diligence.

6.6 With respect to the transportation performed by Inland Carriers to the port of loading or from the port of discharge, the responsibility of Carrier shall be to procure transportation by such carriers (one or more) and such transportation shall be subject to the Inland Carriers contracts of carriage, tariffs and any law compulsorily applicable.

7 / COMPENSATION FOR LOSS AND DAMAGE :

7.1 Unless otherwise mandated by compulsorily applicable law, Carriers liability for compensation for loss of or damage to goods shall in no case exceed the amount of US \$500 per package or per customary freight unit, unless the Merchant, with the consent of Carrier, has declared by writing a higher value for the goods in the space provided on the front of this Bill of Lading and paid extra freight per Carriers tariff, in which case such higher value shall be the limit of Carriers liability. Where a container is stuffed by shipper or on its behalf, and the container is sealed when received by Carrier for shipment, the Carriers liability will be limited to US \$500 with respect to the contents of each such container, except when the Shipper declares by writing the value on the face hereof and pays additional charges on such declared value. The freight charged on sealed containers when no higher valuation is declared by the Shipper is based on a value of US \$500 per container. However, Carrier shall not, in any case, be liable for an amount greater than the actual loss to the person entitled to make the claim.

7.2 In any case where Carriers liability for compensation may exceed the amounts set forth in clause 7.1 above, compensation shall be calculated by reference to the value of the goods, according to their current market price, at the time and place they are delivered, or should have been delivered, in accordance with this contract.

7.3 If the value of the goods is less than US \$500 per package or per customary freight unit, their value for compensation purposes shall be deemed to be the invoice value, plus freight and insurance, if paid.

8 / DESCRIPTION OF GOODS :

Merchant warrants to Carrier that all particulars of the goods, including, without limitation, the marks, number, quantity and weight, furnished by Merchant are correct and Merchant shall indemnify Carrier against all losses arising from any inaccuracy.

9.1 If goods are not received by Carrier already in containers, Carrier may pack them in any type container.

9.2 Merchant shall be liable to Carrier for damage to Carriers containers or equipment if such damage occurs while such equipment is in control of Merchant or his agents.

9.3 Merchant indemnifies Carrier for any damage or injury to persons or property caused by Carriers containers during handling by or when in possession or control of Merchant.

9.4 Merchant undertakes to return such containers to Carrier within the time provided for in Carriers applicable tariff; otherwise, Merchant shall pay Carrier for the demurrage or detention charges applicable to the containers.

10 / CONTAINER PACKED BY MERCHANT :

If Carrier receives the goods already packed into containers :

1. This Bill of Lading is prima facie evidence of the receipt of the particular number of containers set forth, and that number only. Carrier accepts no responsibility with respect to the order and condition of the contents of the containers;

2. Merchant warrants that the stowage and seals of the containers are safe and proper and suitable for handling and carriage;

3. Delivery shall be deemed as full and complete performance when the containers are delivered by Carrier with the seals intact; and

4. Carrier has the right to open and inspect the containers at any time without notice to Merchant, and expenses resulting from same shall be borne by Merchant.

11 / DANGEROUS GOODS :

11.1 Merchant may not tender goods of a dangerous nature without written application to Carrier and Carriers acceptance of the same. In the application, Merchant must identify the nature of the goods with reasonable specificity as well as the names and addresses of the shippers and consignees.

11.2 Merchant shall distinctly and permanently mark the nature of the goods on the outside of the package and container and shall submit to Carrier or to the appropriate authorities all necessary documents required by law or by Carrier for the transportation of such goods.

11.3 If the goods subsequently, in the judgement of Carrier, become a danger to Carrier, the Ship, or other cargo, Carrier may dispose of the goods without compensation to Merchant and Merchant shall indemnify Carrier for any loss or expenses arising from such action.

12 / PERISHABLE GOODS :

12.1 Goods of a perishable nature shall be carried in ordinary Containers without special protection, services or other measures unless there is noted on the reverse side of this Bill of Lading that the Goods will be carried in a refrigerated, heated, electrically ventilated or otherwise

SEAFRIGO USA INC.

Tariff Code

Rule Report

SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003

011198-003

6

DXI Tariff Report

Page 3

Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 6 BILL OF LADING
(Continued...)

specially equipped Container or are to receive special attention in any way. The Merchant undertakes not to tender for transportation any Goods which require refrigeration without given written notice of their nature and the

clearly and durably marked on the outside of the package in letters and figures not less than two inches high.

15.2 If Merchant fails to comply with the above provisions,

required temperature setting of the thermostatic controls before receipt of the Goods by the Carrier in case of refrigerated Container(s) packed by or on behalf of the Merchant. The Merchant undertakes that the Goods have been properly stowed in the Container and that the thermostatic controls have been properly stowed in the Container and that the thermostatic controls have been adequately set by him before receipt of the Goods by the Carrier and, if necessary, that the Goods have been pre-chilled before the loading into the Container. The Merchants attention is drawn to the fact that refrigerated Containers are not designed to freeze down Goods which has not been presented for stuffing at or below its designated carrying temperature and the Carrier shall not be responsible for the consequences of cargo presented at a higher temperature than that required for the transportation. If the above requirements are not complied with the carrier shall not be liable for any loss of or damage to the Goods howsoever arising.

12.2 The term apparent good order and condition when used in this Bill of Lading with reference to Goods which require refrigeration does not mean that the Goods, when received were verified by the Carrier as being at the designated carrying temperature.

12.3 The Carrier shall in no event be held liable for damage to Goods due to condensation.

13 / SOLAS WEIGHT CERTIFICATION :

Merchant acknowledges that it is required to provide verified weights obtained on calibrated, certified equipment of all cargo that is to be tendered to steamship lines and represents that Carrier is entitled to rely on the accuracy of such weights and to counter-sign, endorse or otherwise provide its own certified weight to the steamship lines. The merchant agrees that it shall indemnify and hold the carrier harmless from any and all claims, losses, penalties or other costs resulting from any incorrect or questionable statements of the weight provided by Merchant or its agent or contractor on which the carrier relies.

14 / DECK CARGO :

14.1 Carrier has the right to carry the goods in any container under deck or on deck.

14.2 Carrier is not required to note on deck storage on the face of this Bill of Lading and goods so carried shall constitute under deck storage for all purposes including the General Average.

14.3 Except as otherwise provided by any law applicable to this contract, if this Bill of Lading states that the cargo is stowed on deck, then Carrier shall not be liable for any non-delivery, misdelivery, delay or loss to goods carried on deck, whether or not caused by Carriers negligence or the ships unseaworthiness.

15 / HEAVY LIFT :

15.1 Single packages with a weight exceeding 2.240 pounds gross not presented to Carrier in enclosed containers must be declared in writing by Merchant before receipt of the packages by Carrier. The weight of such packages must be

Carrier shall not be liable for any loss of or damage to the goods, and Merchant shall be liable for any loss of or damage to persons or property resulting from such failure and Merchant shall indemnify Carrier against any loss or liability suffered or incurred by Carrier as a result of such failure.

16 / DELIVERY :

16.1 Carrier shall have the right to deliver the goods at any time at any place designated by Carrier within the commercial or geographic limits of the port of discharge or place of delivery shown in this Bill of Lading.

16.2 Carriers responsibility shall cease when delivery has been made to Merchant, any person authorized by Merchant to receive the goods, or in any manner or to any other person in accordance with the custom and usage of the port of discharge.

16.3 If goods should remain in Carriers custody after discharge from the ship and possession is not taken by Merchant, after notice, within the time allowed in Carriers applicable tariff, the goods may be considered to have been delivered to Merchant, and, at Carriers option, may be stored at Merchants expense.

17 / NOTICE OF CLAIM :

17.1 Written notice of claims for loss of or damage to goods occurring or presumed to have occurred while in the custody of Carrier must be given to Carrier at the port of discharge before or at the time of removal of the goods by one entitled to delivery. If such notice is not provided, removal shall be prima facie evidence of delivery by Carrier. If such loss or damage is not apparent, Carrier must be given written notice within three (3) days of the delivery.

18 / FREIGHT AND CHARGES :

18.1 Freight may be calculated on the basis of the particulars of the goods furnished by Merchant. Carrier and Merchant agree that it may be difficult or impossible to assess damages if freight is incorrectly declared. Therefore, in case of incorrect declaration of the goods, Merchant shall pay a sum equal to three times the difference between the correct freight and the freight charged as liquidated damages, notwithstanding any other sum having been stated herein as freight payable. Quotations as to fees, rates of duty, freight charges, insurance premiums or other charges given by Carrier to Merchant are for informational purposes only and are subject to change without notice and shall not under any circumstances be binding upon Carrier unless the Carrier in writing specifically undertakes the handling of transportation of the shipment at a specific rate.

18.2 Freight shall be deemed earned upon booking of goods by Carrier, whether the freight be intended to be prepaid or collected at destination. Payment shall be in full and in cash, in the currency named in this Bill of Lading, or another currency at Carriers option, interest at 12% shall run from the date when freight and charges are due and not

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
6

DXI Tariff Report
Page 4
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 6 BILL OF LADING
(Continued...)

returnable in any event. If the services of a freight forwarder are used for this transportation, those services shall be deemed to be performed as agent of Merchant and payment of freight to the freight forwarder is not payment to Carrier. Full freight shall be paid on damaged or unsound goods. In any referral for collection or action against the Merchant for monies due to Carrier, upon recovery by the

laws of France, and no other court shall have jurisdiction with regards to any such action.

22 / GENERAL AVERAGE :

22.1 General Average shall be adjusted at New York, or any other port at Carriers option, according to the York-Antwerp

Carrier, the Merchant shall pay the expenses of collection and/or litigation, including reasonable attorneys fees.

18.3 Merchant shall be liable for all dues, duties, fines, taxes and charges, including consular fees, levied on the goods. Merchant shall be liable for return freight and charges on the goods if they are refused export or import by any government.

18.4 All persons encompassed within the definition of Merchant as provided in section 2 of this Bill of Lading shall be jointly and severally liable to Carrier for the payment of all freight and charges, including advances.

18.5 All persons encompassed within the definition of Merchant as provided in section 2 of this Bill of Lading shall be jointly and severally indemnify the Carrier for all claims, fines, penalties, damages, costs and other amounts which may be incurred or imposed upon the Carrier by reason of any breach of the Merchant of any of the provisions of this Bill of Lading or of any statutory or regulatory requirements.

19 / LIEN :

The Carrier shall have a general lien on any and all property (and documents relating thereto) of the Merchant, in its possession, custody or control or en route, for all claims for charges, expenses or advances incurred by the Carrier in connection with any shipments or operations of the Merchant and if such claim remains unsatisfied for ten (10) days after demand for its payment is made, the Carrier may sell at public auction or private sale or otherwise dispose of the goods, upon ten (10) days written notice, registered mail (R.R.R.) to the Merchant, the goods, wares and/or merchandise or so much necessary to satisfy such lien, and apply the net proceeds of such sale to the payment of the amount due the Carrier. Any surplus from such sale shall be transmitted to the Merchant, and the Merchant shall be liable for any deficiency in the sale. If the goods are not claimed during a reasonable time in the Carrier opinion, the Carrier will make at his discretion and subject to his lien and without responsibility auction, sale, abandon or otherwise dispose of the goods at the risk and expenses of the merchant.

20 / TIME BAR :

Carrier shall be discharged from all liability for loss of or damage to goods unless suit is brought within nine (9) months after delivery of the goods or the date when the goods should have been delivered. The time bar for overcharge claims shall be that set forth in Carriers applicable tariff or thirty six (36) months, whichever is shorter and of legal effect under the laws of the country having jurisdiction over this contract.

21 / JURISDICTION :

Disputes arising under this Bill of Lading shall be determined by the Tribunal of Commerce at Le Havre under the

Rules of 1974. The General Average statement shall be prepared by adjusters appointed by Carrier.

22.2 In the event of accident, damage, danger or disaster after commencement of the voyage resulting from any cause whatsoever, whether due to negligence or not, for the consequence of which Carrier is not responsible by statute, contract or otherwise, Merchant shall contribute with Carrier in General average to the payment of any sacrifice, loss or expense of a General Average nature that may be made or incurred, and shall pay salvage or special charges in respect of the goods. If a salving vessel is owned or operated by Carrier, Salvage shall be paid for as fully as if the salving vessel or vessels belonged to strangers.

23 / BOTH-TO-BLAME COLLISION CLAUSE :

If the ship comes into collision with another vessel as a result of negligence of the other vessel and any negligence or fault on the part of Carrier or its servants or subcontractors, Merchant shall indemnify Carrier against all loss or liability to the other or non-carrying vessel or her owners, insofar as such loss or liability represents loss of, or damage to, or any claim what so ever of Merchant paid or payable by the other or non-carrying vessel or her owners to Merchant and set-off, recouped or recovered by the other or non-carrying vessel or her owners as part of their claim against the carrying ship or her owner. This provision shall apply as well where the owners, operators or those in charge of any ship or ships or objects other than, or in addition to, the colliding ships or objects are at fault with respect to a collision or contact.

24 / CARRIERS TARIFFS :

24.1 The goods carried under this Bill of Lading are also subject to all the terms and conditions of tariff(s) on file with the Federal Maritime Commission, the Interstate Commerce Commission or any other regulatory agency which governs a particular portion of the carriage and the terms are incorporated herein as part of the terms and conditions of this Bill of Lading.

24.2 Copies of Carriers tariffs may be obtained from carrier or its agents upon request or from the governmental body with whom the tariff has been filed.

25 / SEVERABILITY :

The terms of this Bill of Lading shall be severable, and, if any part or term hereof shall be held invalid, such holding shall not affect the validity of enforceability of any other part or term hereof.

26 / VARIATION OF THE CONTRACT :

No servant or agent of the Carrier shall have power to waive or vary any of the terms hereof unless such variation is in writing and is specifically authorized or ratified in writing by the Carrier.

===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7

DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 Effective: 22Feb2017
(I)(R)

SURCHARGES AND ARBITRARIES

Please refer to the following sub-rules

===== End of Rule Text =====

SEAFRIGO USA INC.	
Tariff Code	
Rule Report	
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003	
011198-003	
7 01	
-----+-----	
DXI Tariff Report	
Page 1	
Access date: 26May2022 Print date: 26May2022	

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.	

RULE: 7 01 Effective: 22Feb2017	
(I)(R)	
CURRENCY ADJUSTMENT FACTOR (CAF)	
Per VOCC's charge	
===== End of Rule Text =====	

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 02
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 02 Effective: 22Feb2017
(I)(R)

BUNKER/FUEL SURCHARGE (BAF)

Per VOCC's charge
===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 03
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 03 Effective: 22Feb2017
(I)(R)

ORIGINATING CFS SURCHARGE

Per VOCC's charge
===== End of Rule Text =====

```
-----
-----
SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 04
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022
-----
Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.
-----
RULE: 7 04 Effective: 22Feb2017
( I )( R )

DOCUMENTATION FEE

Per VOCC's charge
===== End of Rule Text =====
```

```
-----
-----
SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 05
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022
-----
Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.
-----
RULE: 7 05 Effective: 22Feb2017
( I )( R )

INLAND FUEL CHARGE (IFS)
Per VOCC's charge
===== End of Rule Text =====
```


SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 06
-----+-----

DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 06 Effective: 22Feb2017
(I)(R)

PEAK SEASON SURCHARGE (PSS)

Per VOCC's charge

===== End of Rule Text =====

SEAFRIGO USA INC. Tariff Code Rule Report SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003 011198-003 7 07	
-----+-----	
DXI Tariff Report Page 1 Access date: 26May2022 Print date: 26May2022	

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.	

RULE: 7 07 Effective: 22Feb2017 (I)(R)	

ALAMEDA CORRIDOR CHARGE (ACC)	20-foot container - \$23.00
Unless otherwise indicated in VOCC's charge, all cargo moving through the ports of Los Angeles or Long Beach that is transported by rail through or out of Southern California (i.e. the counties of Kern, San Bernardino, San Luis Obispo, Santa Barbara, Ventura, Los Angeles, Orange, Riverside, San Diego, and Imperial), whether or not actually carried over the Alameda Corridor, shall be subjected to a charge, as established by the Ports of Los Angeles or Long Beach, which as of January 1, 2017, were the following amounts:	40-foot container - \$45.00
	45-foot container - \$51.00
	Other size containers - \$0.75 per linear foot
	This charged is subject to change by the Ports or other governmental authorities. This charge will be included on the bill of lading and will be paid by the cargo interest before release of the cargo to the consignee.
===== End of Rule Text =====	

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 08
-----+-----

DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 08 Effective: 22Feb2017
(I)(R)

AUTOMATED MANIFEST SYSTEM (AMS) SURCHARGE

Unless otherwise specified in rate filings in this tariff,
all rates for cargo destined for the U.S. shall be subject
to an Automated Manifest System (AMS) surcharge of US\$30 per
bill of lading.

===== End of Rule Text =====

```
-----
-----
SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 09
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022
-----
Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.
-----
RULE: 7 09 Effective: 22Feb2017
( I )( R )

PANAMA CANAL CHARGE (PCC)

Per VOCC's charge
===== End of Rule Text =====
```


SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 10
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 10 Effective: 22Feb2017
(I)(R)

SUEZ CANAL CHARGE (SCC)

Per VOCC's charge
===== End of Rule Text =====

SEAFRIGO USA INC. Tariff Code Rule Report	
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003 011198-003 7 11	
-----+-----	
DXI Tariff Report Page 1	
Access date: 26May2022 Print date: 26May2022	

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.	

RULE: 7 11 Effective: 10Aug2018 (A)	
TRAFFIC MITIGATION FEE (TMF)	PierPASS Traffic Migration Fee (PPS) in the following amounts:
Unless otherwise stated, all rates in this tariff for cargo exiting the marine terminal gates by road in the ports of Los Angeles or Long Beach during Peak Hours (Monday through Friday, 3:00AM to 6:00PM) will be subject to the	\$ 80.00 per 20' container \$160.00 per 40' container ===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 12
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 12 Effective: 10Aug2018
(I)(R)

EXTENDED GATE FEE

AN EXTENDED GATE FEE WILL APPLY AS FOLLOWS:

DESTINATION OAKLAND - \$40.00 PER CONTAINER
===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 13
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 13 Effective: 10Aug2018
(I)(R)

PORT USAGE FEE

A PORT USAGE FEE WILL APPLY AS FOLLOWS:

DESTINATION BOSTON - \$70.00 PER CONTAINER
===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 14
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 14 Effective: 10Aug2018
(I)(R)

LANDING FEE

A LANDING FEE WILL APPLY AS FOLLOWS:

DESTINATION MIAMI - \$40.00 PER CONTAINER
===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 15
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 15 Effective: 10Aug2018
(I)(R)

SCALE FEE

A SCALE FEE WILL APPLY AS FOLLOWS:

DESTINATION PORT EVERGLADES - \$30.00 PER CONTAINER

SCALE CHARGE (DOT) - \$35.00 PER SCALE
===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 16
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 16 Effective: 10Aug2018
(I)(R)

TERMINAL SECURITY
TERMINAL SECURITY WILL APPLY AS FOLLOWS:

DESTINATION PORT EVERGLADES - \$30.00 PER CONTAINER
===== End of Rule Text =====

SEAFRIGO USA INC.		
Tariff Code		
Rule Report		
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003		
011198-003		
7 17		
-----+-----		
DXI Tariff Report		
Page 1		
Access date: 26May2022 Print date: 26May2022		

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.		

RULE: 7 17 Effective: 10Aug2018		
(I)(R)		
ADMINISTRATIVE FEE		
AN ADMINISTRATIVE FEE WILL APPLY AS FOLLOWS:		
PER DIEM/DEMURRAGE/DETENTION - \$45.00 PER CONTAINER		
OTHER TERMINAL AND EQUIPMENT CHARGES - \$5.00 PER CONTAINER		
===== End of Rule Text =====		
DEFINED TABLE: ADMIN FEE		
LOCATION		PER
(COUNTRY)	NOTE	CTR

USA	ALL OTHER	5.00
USA	DEMURRAGE	45.00
USA	DETENTION	45.00
USA	PER DIEM	45.00

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 18
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 18 Effective: 10Aug2018
(I)(R)

HAZARDOUS CARGO SURCHARGE

HAZARDOUS CARGO SURCHARGE WILL APPLY IN THE AMOUNT OF
\$250.00 PER CONTAINER
===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 19
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 19 Effective: 10Aug2018
(I)(R)

BONDED CARGO SURCHARGE

BONDED CARGO SURCHARGE WILL APPLY IN THE AMOUNT OF \$250.00
PER CONTAINER
===== End of Rule Text =====

```
-----
-----
                                SEAFRIGO USA INC.
                                Tariff Code
                                Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
                                011198-003
                                7 20
-----+-----
                                DXI Tariff Report
                                Page      1
                                Access date: 26May2022  Print date: 26May2022
-----
Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.
-----
RULE:  7 20    Effective: 10Aug2018
( I )( R )

WINE & SPIRIT SURCHARGE

WINE & SPIRIT SURCHARGE WILL APPLY IN THE AMOUNT OF $250.00
PER CONTAINER
===== End of Rule Text =====
```


SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 21
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 21 Effective: 10Aug2018
(I)(R)

FUMIGATION CONTAINER

FUMIGATION CONTAINER WILL APPLY IN THE AMOUNT OF \$250.00 PER
CONTAINER
===== End of Rule Text =====

SEAFRIGO USA INC.		
Tariff Code		
Rule Report		
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003		
011198-003		
7 22		

DXI Tariff Report		
Page 1		
Access date: 26May2022 Print date: 26May2022		

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.		

RULE: 7 22 Effective: 10Aug2018		
(I)(R)		
DETENTION		
Detention - Regular Business Hours (2 hour free)		
- any portion there after \$ 90.00 per hour		
Detention - Saturday and Sunday (2 hour free)		
- any portion there after \$150.00 per hour		
Detention - National Holiday (2 hour free)		
- any portion there after \$250.00 per hour		
===== End of Rule Text =====		
DEFINED TABLE: DETENTION		
LOCATION		PER
(COUNTRY)	NOTE	HOURLY
-----		(USD)
USA	HOLIDAY	250.00
USA	REGULAR	90.00
USA	SAT/SUN	150.00

SEAFRIGO USA INC.			
Tariff Code			
Rule Report			
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003			
011198-003			
7 23			
-----+-----			
DXI Tariff Report			
Page 1			
Access date: 26May2022 Print date: 26May2022			

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.			

RULE: 7 23 Effective: 10Aug2018			
(I)(R)			
PICKUP/DELIVERY FEE			
Night Pick up/Deliver fee (after 8pm EST before 5am EST)			
\$150.00 per pick up/delivery			
Saturday and Sunday Pick up/Delivery			
\$250.00 per pick up/delivery			
National Holiday Pick up/Delivery			
\$450.00 per pick up/delivery			
===== End of Rule Text =====			
DEFINED TABLE: PICKUP/DELIVERY FEE			
LOCATION		PER	
(COUNTRY)		PICKUP\	
NOTE		DELIVERY	
-----		(USD)	
USA	HOLIDAY	450.00	
USA	NIGHT	150.00	
USA	SAT/SUN	250.00	

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 24

-----+-----
DXI Tariff Report

Page 1

Access date: 26May2022 Print date: 26May2022
-----Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 24 Effective: 10Aug2018
(I)(R)

LABOUR RATE/LUMPER FEE

LABOUR RATE/LUMPER FEE - AT COST +10% PER HOUR

===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report

SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003

011198-003

7 25

-----+-----

DXI Tariff Report

Page 1

Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 25 Effective: 10Aug2018

(I)(R)

DRY RUN

DRY RUN - FULL TRUCK RATE APPLIES

===== End of Rule Text =====

-----+-----

DXI Tariff Report

Page1

Access date: 26May2022Print date: 26May2022

-----+-----

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

-----+-----

RULE: 7 26Effective: 10Aug2018

(I)(R)

DRIVER LAYOVER

DRIVER LAYOVER - \$250.00 PER HOUR

===== End of Rule Text =====

-----+-----

SEAFRIGO USA INC.

Tariff Code

Rule Report

SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003

011198-003

7 27

-----+-----

DXI Tariff Report

Page1

Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 27 Effective: 10Aug2018
(I)(R)

DRIVER LABOR

DRIVER LABOR - PER PERSON - \$75.00 PER HOUR

===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 28

-----+-----

DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 28 Effective: 10Aug2018
(I)(R)

CHASSIS USAGE FEE

Container Drayage - Chassis Usage Fee
\$30.00 per day (min. 3 days)
===== End of Rule Text =====

DEFINED TABLE: CHASSIS USAGE

LOCATION (COUNTRY)	DAYS	PER DAY (USD)
USA	FIVE	150
USA	FOUR	120
USA	MIN THREE	90
USA	SIX	180

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 29

DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 29 Effective: 10Aug2018
(I)(R)

GENSET

Container Drayage - Genset
\$150.00 per day (min. 3 days)
===== End of Rule Text =====

DEFINED TABLE: GENSET

LOCATION (COUNTRY)	DAYS	PER DAY (USD)
USA	FIVE	750
USA	FOUR	600
USA	MIN THREE	450
USA	SIX	900

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 30

-----+-----

DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 30 Effective: 10Aug2018
(I) (R)

HEAVYWEIGHT PERMIT

Container Drayage - Heavyweight Permit(1)
\$250.00 per container
(1) DOT rule per US State applies.
===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 31
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 31 Effective: 10Aug2018
(I)(R)

TRI-AXLE CHASSIS

Container Drayage - Heavyweight Tri-Axle Chassis(2)
\$250.00 per container

(2) DOT rule per US State applies.

===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 32
-----+-----

DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 32 Effective: 10Aug2018
(I)(R)

YARD STORAGE

Yard storage - \$90.00 per day
===== End of Rule Text =====

```
-----  
-----  
SEAFRIGO USA INC.  
Tariff Code  
Rule Report  
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003  
011198-003  
7 33  
-----+-----  
DXI Tariff Report  
Page 1  
Access date: 26May2022 Print date: 26May2022  
-----  
Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.  
-----  
RULE: 7 33 Effective: 10Aug2018  
( I )( R )  
  
STATEN ISLAND SURCHARGE  
  
Staten Island surcharge - $250.00 per container  
===== End of Rule Text =====
```


SEAFRIGO USA INC. Tariff Code Rule Report SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003 011198-003 7 34	
-----+-----	
DXI Tariff Report Page 1 Access date: 26May2022 Print date: 26May2022	

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.	

RULE: 7 34 Effective: 10Aug2018 (I)(R)	
ADDITIONAL STOPS	
Additional stops (3) - \$ 150.00 minimum per stop	
(3) Contingent upon distance between stops.	
===== End of Rule Text =====	

```
-----
-----
                                SEAFRIGO USA INC.
                                Tariff Code
                                Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
                                011198-003
                                7 35
-----+-----
                                DXI Tariff Report
                                Page      1
                                Access date: 26May2022  Print date: 26May2022
-----
Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.
-----
RULE:  7 35    Effective: 10Aug2018
( I )( R )

REEFER MONITORING/PLUG IN

Reefer monitoring/plug in - $75.00 per container / day
===== End of Rule Text =====
```


SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 36
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 36 Effective: 10Aug2018
(I)(R)

CONGESTION FEE - PORT
Congestion fee - Port
(Minimum & Maximum) \$ 150.00 / \$ 300.00 per container
===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
7 37
-----+-----

DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 7 37 Effective: 10Aug2018
(I)(R)

PER DIEM CHARGE

Per Diem Charge - At cost per terminal or carrier

===== End of Rule Text =====

SEAFRIGO USA INC. Tariff Code Rule Report SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003 011198-003 8	
-----+-----+-----	
DXI Tariff Report Page 1 Access date: 26May2022 Print date: 26May2022	

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.	

RULE: 8 Effective: 22Feb2017 (I)(R)	
PASS THROUGH CHARGES EFFECTIVE UPON PUBLICATION	vessel operating carriers. When Carrier passes these charges through to Shippers without mark-up, they will be published in this Tariff with an effective date matching the effective date of the underlying service provider, which shall also be specified in the tariff item. Although Carrier will endeavor to publish these pass through charges as quickly as possible after it receives notice, they may, in some cases, take effect upon publication.
Carrier may publish with immediate effect changes in charges and additional charges which are not under the control of Carrier and which Carrier passes through to its customers without mark-up. Certain of Carrier's charges to Shippers are based on rates charged to Carrier by third parties, such as terminals, public authorities, motor carriers and	===== End of Rule Text =====

SEAFRIGO USA INC. Tariff Code Rule Report	
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003 011198-003 9	
-----+-----+-----	
DXI Tariff Report Page 1	
Access date: 26May2022 Print date: 26May2022	

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.	

RULE: 9 Effective: 22Feb2017 (I)(R)	
AD VALOREM RATES	specified herein.
9.1 The liability of the carrier as to the value of shipment at the rates herein provided shall be determined in accordance with the clauses of the carrier's regular Bill of Lading form.	9.3 Where value is declared on any piece or package in excess of the Bill of Lading limit of value of \$500.00, the Ad Valorem rate, specifically provided against the item, shall be five percent (5%) of the value declared in excess of the said Bill of Lading Limit of Value and is in addition to the base rate.
9.2 If the shipper desires to be covered for a valuation in excess of that allowed by the carrier's regular Bill of Lading form, the shipper must so stipulate in carrier's Bill of Lading covering such shipments and such additional liability only will be assumed by the carrier at the request of the shipper and upon payment of an additional charge based on the total declared valuation in addition to the stipulated rates applying on the commodities shipped as	9.4 Where the rates are specified herein for individual items as applying on an Ad Valorem basis, the value used in assessing freight charges shall be the value shown on the shippers export declaration as filed with the applicable government authorities.
	===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
10
-----+-----

DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 10 Effective: 22Feb2017
(I)(R)

CO-LOADING IN FOREIGN COMMERCE

10.1 DEFINITION: Co-loading shall mean the combining of cargo, in the import and export foreign commerce of the U.S., by two or more NVOCC's for tendering to an ocean carrier under the name of one or more of the NVOCC's.

10.2 EXTENT OF ACTIVITY: Carrier participates in co-loading agreements on a Carrier-to-Carrier relationship. Carrier also participates in co-loading on a Shipper/Carrier relationship, meaning the receiving NVOCC issues a Bill of Lading to the tendering NVOCC for carriage of the tendered cargo. Carrier shall co-load cargo at its discretion and shall notify shipper of such action by annotating each

applicable Bill of Lading with the identity of any other NVOCC with which its shipment has been co-load.

10.3 LIABILITY: Carrier's liability to the shipper shall be as specified on the shipper's Bill of Lading regardless of whether or not the cargo has been co-loaded.

10.4 PAYMENT OF FREIGHT CHARGES: Where Carrier engages in co-loading, Carrier will be responsible to pay the receiving NVOCC's charges in order to transport the shipper's cargo to its destination and there will be no additional charge assessed to the shipper. Where carrier is the tendering NVOCC, carrier shall be responsible to the receiving NVOCC for payment of charges for the transportation of cargo.

===== End of Rule Text =====

 SEAFRIGO USA INC.
 Tariff Code
 Rule Report
 SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
 011198-003
 11

-----+-----
 DXI Tariff Report
 Page 1
 Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 11 Effective: 22Feb2017
 (I)(R)

DANGEROUS AND HAZARDOUS CARGO

11.1 These terms apply to all commodities which bear standard caution labels as required by the "U.S. Code of Federal Regulations".

11.2 Dangerous Cargo consists of those commodities which are required by the "U.S. Code of Federal Regulations" to be confined to on deck stowage only. Such commodities shall be assessed the Cargo, NOS rate, unless otherwise provided.

11.3 Hazardous Cargo consists of those commodities for which on deck stowage is not required and which may be stowed under deck in conformity with "U.S. Code of Federal Regulations". Such commodities shall be assessed the Cargo, NOS rate unless otherwise provided.

11.4 Carrier will hold shipper(s) solely responsible for any penalties and/or damages resulting from failure to comply with the foregoing.

11.5 All shipments tendered pursuant to this rule are subject to prior booking with the carrier and are governed by the International Maritime Dangerous Goods Code (IMCO) and Code of Federal Regulations Title 46 Parts 140-155 and Title 49 Parts 100-199.

11.6 Included in the foregoing are the regulations of the U.S. Department of Transportation specifying that, among other things, the following information requirements must accompany each shipment of hazardous goods from the U.S.

- A. A 24 Hour Telephone Number
 It is required that the shipper provide on the

organization in foreign countries and in the U.S. having or having immediate access to, knowledge about the hazardous material and comprehensive emergency response and accident mitigation information for the material. The Carrier cannot accept shipments of chemicals and other hazardous materials which do not provide a 24 hour telephone number.

- B. Emergency Response Measures to Accompany the Cargo
 The following emergency response information must accompany each hazardous materials shipment and be kept with the vehicle/vessel operator:

- a description of the hazardous material
- immediate health hazard information and preliminary first aid measures
- immediate precautions and methods of handling spills, leaks and fires, etc.

- C. NOS Shipments Must Show Technical Name
 NOS Descriptions of hazardous goods on the shipping paper must be accompanied by the chemical's technical name. Any fines or penalties incurred due to the failure of the shippers to conform to the regulations will be for the account of the shipper. In addition, shipper shall indemnify and hold carrier harmless from and against any liability for damage to property or person arising from the ocean or inland transportation and handling of hazardous cargoes, except where such liability is the exclusive fault of the carrier.

shipping document (e.g. the Bill of Lading) a 24
hour emergency telephone number of a person or

===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
12

-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 12 Effective: 22Feb2017
(I)(R)

RETURNED CARGO

Cargo will be returned to regular Ports of Call at the current inbound rates. Shippers and/or Owners must show evidence of inbound movement on outbound Bill of Lading prior to return shipment by furnishing copy of inbound Bill of Lading. Period allowed for return of shipment shall not exceed one year.

===== End of Rule Text =====

SEAFRIGO USA INC. Tariff Code Rule Report SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003 011198-003 13	
-----+-----	
DXI Tariff Report Page 1 Access date: 26May2022 Print date: 26May2022	

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.	

RULE: 13 Effective: 22Feb2017 (I)(R)	
SHIPPERS REQUEST IN FOREIGN COMMERCE	other implementation of the tariff. Routine requests for rate information sailing schedules, space availability and the like are not included in the foregoing.
13.1 Shippers may transmit requests, consultations and complaints to	13.3 Shippers' request for rate action must include at least the following information:
SEAFRIGO USA INC. 735 DOWD AVE ELIZABETH, NJ 07201	- Shipper's Name/Address/Telephone Number
13.2 As used in this rule, the phrase "request and Complaint" means any communication requesting a change in tariff rates, rules or regulations; objecting to rate increases or other tariff changes; and protects against erroneous billings due to an incorrect commodity classification, incorrect weight or measurement of cargo, or	- Commodity Description - Port/Point of Loading
	- Port/Point of Discharge
	- Cargo Quantity
	- Anticipated Shipment Date
	===== End of Rule Text =====

 SEAFRIGO USA INC.
 Tariff Code
 Rule Report
 SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
 011198-003
 14

-----+-----
 DXI Tariff Report
 Page 1
 Access date: 26May2022 Print date: 26May2022

 Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 14 Effective: 22Feb2017
 (I) (R)

OVERCHARGE CLAIMS

14.1 All billed charges, whether prepaid or collect, are subject to correction if the description furnished by the shipper or shippers is found to be in error or if the weights or measurements are found to be incorrect. Claims for refunds of excess freight charges will be allowed only when proof of error has been determined as indicated below and only when the original paid freight bill is submitted within 3 years of the date the cause of action accrues.

Claims seeking the refund of freight overcharges may be submitted to the Carrier or the Federal Maritime Commission, Washington, DC 20573, within 3 years of the date the cause of action accrues, giving full particulars including all relevant facts, conditions or circumstances pertaining to the claim.

Claims for freight rate adjustment filed in writing shall be acknowledged by the carrier within twenty days of receipt by written notice to the claimant of the tariff provisions actually applied and claimant's rights under the Shipping

Act, 1984.

14.2 Overcharges: Claims for refunds of freight charges.

- A. For the purpose of uniformity in handling, claims for excess measurement will not be considered unless presented to the Carrier in writing and refunds will be made only as follows:

Where error has been made in calculation of measurement by the dock staff at loading port.

Against re-measurement at port of loading prior to vessel's departure.

By re-measurement at port of discharge by a certified marine surveyor.

- B. In case of claims by Shipper for overcharge in weight, certified invoices of weigher's certificates will be considered evidence of correct weight.

===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
15
-----+-----

DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 15 Effective: 22Feb2017
(I)(R)

FREE TIME, DETENTION AND DEMURRAGE

15.1 Carrier is a non-vessel operating common carrier and the equipment it uses to provide transportation services to Merchant is provided by the vessel-operating common carrier (VOCC) that operates the vessel transporting the cargo.

15.2 The VOCC imposes detention charges if empty containers released for loading and/or loaded containers released for unloading are not returned within a specified period of time (free time). Merchant shall be liable to Carrier for any detention charges imposed on Carrier by VOCC as a result of

Merchants failure to return containers within applicable free time

15.3 The VOCC imposes demurrage charges if loaded containers are not removed from the marine terminal within a specified period of time (free time). Where service is port at destination and removal of containers from the VOCCs marine terminal is responsibility of Merchant, Merchant shall be liable to Carrier for any demurrage charges imposed on Carrier by VOCC as a result of Merchants failure to remove containers within applicable free time.

===== End of Rule Text =====

SEAFRIGO USA INC. Tariff Code Rule Report SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003 011198-003 16	
-----+-----	
DXI Tariff Report Page 1 Access date: 26May2022 Print date: 26May2022	

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.	

RULE: 16 Effective: 22Feb2017 (I)(R)	
NVOCC NEGOTIATED RATE ARRANGEMENTS (NRA'S)	carrier in the case of through transportation).
As per 46 CFR Part 532 -- NVOCC Negotiated Rate Arrangements -- Carrier has elected to utilize NVOCC Negotiated Rate Arrangements (NRAs) for its shipments in addition to its Tariff Rates.	"Tariff Rate" means a price stated in a tariff for providing a specified level of transportation service for a stated cargo quantity, from origin to destination, on and after a stated effective date or within a defined time frame.
DEFINITIONS:	EXTENT OF ACTIVITY:
"NVOCC Negotiated Rate Arrangement" or "NRA" means a written and binding arrangement between an NRA shipper and an eligible NVOCC to provide specific transportation service for a stated cargo quantity, from origin to destination, on and after receipt of the cargo by the carrier or its agent (or the originating	Carrier participates in NRA's and utilizes Tariff Rates. As required by 46 CFR Section 532.4, Carriers governing rule publication is available free of charge to the public at www.plustariff.com . ===== End of Rule Text =====

SEAFRIGO USA INC. Tariff Code Rule Report SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003 011198-003 17	

DXI Tariff Report Page 1 Access date: 26May2022 Print date: 26May2022	

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.	

RULE: 17 Effective: 22Feb2017 (I)(R)	
USE OF EQUIPMENT	
17.1 General Provisions	agreed to by Carrier in writing.
Merchant acknowledges and agrees that Carrier, as an NVOCC, does not own or operate equipment (i.e., chassis or containers). Merchants use of chassis and containers shall be subject to the requirements of the VOCCs and/or chassis leasing companies that own and/or operate the containers and chassis used to transport Merchants cargo. Merchant, by tendering shipments to Carrier for transportation, appoints Carrier as its agent for acquiring containers and chassis for such transportation and agreeing to free time, as well as demurrage and detention, storage and other charges that accrue with respect to containers and chassis used for such transportation, all of which shall be for the account of the Merchant except to the extent solely attributable to actions or omissions of Carrier.	2. If Carrier specifies or agrees to the pick-up of a Container at a terminal, container yard, or container depot other than that nominated, all local tariff pick-up charges shall be paid by the Merchant.
17.2 Merchants Risk and Expense	3. If the Merchant picks-up a Container at a location to which Carrier has not consented in writing, all local empty pick-up charges shall be paid by the Merchant.
Except as otherwise specifically provided in this Tariff Rule, and Carriers bill of lading terms and conditions, the following shall be at the Merchants risk and all expenses in connection therewith shall be for the Merchants account:	4. Containers may only be interchanged during the normal working hours of the terminal, container yard, or container depot unless prior written arrangements are made for interchange at other times in which case any additional charges shall be for Merchant's account.
1. The pick up, transport, and delivery of the containers/goods moving between the port of loading or port of discharge on the one hand, and Merchant's facility on the other hand, except to the extent the goods are door cargo; and	5. Shipper-Packed Containers accepted for carriage by Carrier will be on the basis of "Shipper's Load and Count."
2. The care and custody of equipment.	B. At Destination
17.3 No Representation or Warranties	Stuffed Containers which are removed from a container yard or terminal by Merchant or its agent for unstuffing at Merchant's expense and risk, are subject to the following conditions.
Carrier makes no representations or warranties, express or implied, as to the condition of the equipment or its fitness for any particular use.	1. Containers must be returned by Merchant to the container yard or terminal from which they were originally removed or to Carrier's designated location within port area unless Carrier agrees to accept delivery elsewhere.
17.4 Use of Equipment	2. Containers may only be interchanged during the regular working day unless prior arrangements are made for interchange at other times in which case all additional costs shall be for Merchant's account.
Equipment may not be used by or interchanged to anyone except the Merchant or its Motor Carrier, and only for the stuffing, unstuffing, and transport of goods carried by or booked for carriage with Carrier.	3. Equipment shall be returned in a good condition. The Merchant shall remove all dunnage, debris, any placards for hazardous cargo or contamination from the equipment prior to redelivering the equipment to Carrier. In the event Merchant fails to comply with this provision, then such removal and all costs shall be for Merchant's account.
17.5 Use of Equipment: Removal of containers for stuffing/unstuffing by the Merchant	
A. At Origin	
The empty pick-up, stuffing, and return of containers are always at the Merchant's risk and expense, subject	

to the following conditions:

1. Containers must be returned by the Merchant to the terminal, container yard, or container depot from which they were picked up unless return to a different location is specified or

17.6 Except as otherwise provided, Free Time allowed and Detention Charges assessed will be per the provisions of the underlying Vessel Operating Common Carrier Tariff and Equipment Interchange Agreements.

===== End of Rule Text =====

SEAFRIGO USA INC.

Tariff Code

Rule Report

SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003

011198-003

18

DXI Tariff Report

Page 1

Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 18 Effective: 22Feb2017
(I)(R)

DEFINITIONS AND SYMBOLS

"Carrier" means Seafrigo USA Inc.

"Merchant" means the persons named as shipper, exporter, consignee and/or receiver on the bill of lading, any holder of the bill of lading, the actual recipient of the goods, any person owning or entitled to the possession of the goods or of the bill of lading, and anyone acting on behalf of any of the foregoing persons.

"TRI" means a tariff rate item consisting of a freight rate for the transportation of a stated cargo quantity from origin to destination under a single specified set of transportation conditions.

"NVOCC" means a non-vessel-operating common carrier as defined in the Shipping Act of 1984, 46 U.S.C. Sections 40101 et seq.

"VOCC" means a vessel operating carrier as defined in the Shipping Act of 1984, 46 U.S.C. Sections 40101 et seq.

===== End of Rule Text =====

SEAFRIGO USA INC. Tariff Code Rule Report SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003 011198-003 19	
-----+-----	
DXI Tariff Report Page 1 Access date: 26May2022 Print date: 26May2022	

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.	

RULE: 19 Effective: 22Feb2017 (I)(R)	
FORCE MAJEURE	interferences with commercial intercourse arising from the above conditions and affecting the carrier's operations,
Without prejudice to any rights or privileges of Carrier under its Bill of Lading, dock receipts or booking the contracts or under applicable provisions of law, in the event of:	Carrier reserves the right to:
War, hostilities, warlike operations, riots, civil insurrections, embargoes, blockades, port congestion, strike, imminent strike or harbor disturbances, widespread electrical power failures affecting port operations, Acts of God including earthquakes, extreme weather conditions or other natural catastrophes, regulations of any governmental authority pertaining thereto or any other official	cancel any outstanding booking or contract of carriage, or to route shipments by any other means of transportation whether by all-water, air-water or land-water in accordance with rates, charges, rules and regulations established in this tariff that would have applied in the absence of the Force Majeure condition and subject to Bill of Lading provisions that are applicable to actual routing of the cargo. ===== End of Rule Text =====

 SEAFRIGO USA INC.
 Tariff Code
 Rule Report
 SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
 011198-003
 20
 -----+-----

DXI Tariff Report
 Page 1
 Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 20 Effective: 22Feb2017
 (I)(R)

FINANCIAL RESPONSIBILITY: BONDS AND AGENTS

SECURITY INSURANCE COMPANY
 1300 E. WOODFIELD ROAD - SUITE 512
 SCHAUMBURG, IL 60173

20.1 Bonding of NVOCCs

- A. Carrier has filed with the Federal Maritime Commission a bond as required by regulations under 46 CFR 515 to ensure the financial responsibility of the Carrier for the payment of any judgement for damages arising from its transportation related activities, orders for reparations issued pursuant to section 11 of the Shipping Act of 1984 as amended by the Ocean Shipping Reform Act of 1998, or penalties assessed pursuant to Section 13 thereof.

B. Bond No. 91002

C. Bond issued by:

AVALON RISK MANAGEMENT, INC.
 MANAGING GENERAL AGENT FOR AEGIS

20.2 Agent For Service Of Process.

- A. Carrier's agent for the service of judicial and administrative process including subpoenas follows in paragraph 3. In any instance in which the designated legal agent cannot be served because of death, disability or unavailability, the Secretary of the Federal Maritime Commission will be deemed to be the carrier's legal agent for service of process.
- B. Service of administrative process, other than subpoenas, may be effected upon the legal agent by mailing a copy of the documents to be served by certified or registered mail, return receipt requested.

===== End of Rule Text =====

```

-----
-----
SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
21
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022
-----
Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.
-----
RULE: 21 Effective: 22Feb2017
( I )( R )

RATES "PER VOCC CHARGE"

Carrier is a Non-Vessel-Operating Common Carrier (NVOCC)
that assumes responsibility for the transportation of
Merchants cargo and uses the services of Vessel Operating
Common Carriers (VOCCs) to physically transport the cargo.
The ocean freight rates of the VOCC plus Carriers mark-up
are assessed to Merchant as Carriers rate for Merchants

shipments as set forth in this Tariff or a Negotiated Rate
Arrangement (NRA) or NVOCC Service Arrangement (NSA). Any
surcharges, arbitraries, additional or other similar add-on
charges assessed by the VOCC carrying Merchants cargo will
be paid on Merchants behalf by Carrier and passed through
to Merchant without mark-up. Such passed through charges,
when set forth in this Tariff shall be designated by the
notation Per VOCC Charge.
===== End of Rule Text =====

```


SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
22
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 22 Effective: 22Feb2017
(I)(R)

HOUSEHOLD GOODS AND PERSONAL EFFECTS

All Bills of Lading for Household Goods and Personal Effects shall be endorsed as follows:

"Released to valuation not exceeding US\$50.00 per 100 kilos for each article"

If valuation not so released, Merchant must declare value on the Bill of Lading and pay the tariff Ad Valorem rate in addition to the rate applicable on Household Goods. When Furniture is consigned to an individual person, the Household Goods rate will apply unless the shipper presents to Carrier the manufacturer's commercial invoice and detailed packing list certifying that all items of the shipment are brand new goods at the time of booking.
===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
23

-----+-----

DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 23 Effective: 22Feb2017
(I)(R)

SOLAS WEIGHT CERTIFICATION

Merchant acknowledges that it is required to provide a certification of verified weights obtained on calibrated, certified equipment of all containerized cargo that is to be tendered to steamship lines. Shipper agrees that Carrier is entitled to rely on the accuracy of such weight certification and to counter-sign or endorse it as Carriers

own certified weight to the steamship line carrying the cargo. The Merchant agrees that it shall indemnify and hold the Carrier harmless from any and all claims, losses, penalties or other costs resulting from any failure to provide a verified gross weight of the cargo or incorrect or questionable verification of the weight provided by Merchant or its agent or contractor on which the Carrier relies.
===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
24
-----+-----

DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 24 Effective: 22Feb2017
(I)(R)

ABANDONED CARGO

24.1 Cargo may be deemed by Carrier to be abandoned by the Merchant when (1) the Charges against the cargo exceed an estimated 50% of the value of the cargo or (2) twenty-one (21) calendar days have elapsed since (a) the cargo was discharged from the carrying vessel, or, (b) in the case of an intermodal shipment, the cargo has been made available for delivery by Carriers subcontractor, whichever occurs first. Carrier is entitled to exercise a lien against the abandoned cargo for all penalties, rates, assessments, or any other charges whatsoever including but not limited to the costs of destruction if necessary (hereinafter the Charges) that are due and owing in relation to the abandoned cargo. In order to satisfy such lien, Carrier may sell the cargo at a public or private sale. Notwithstanding any sale of the cargo, the Merchant shall still be required to satisfy full amount of the lien less any recovery that the Carrier makes for the sale or salvage. The Merchant shall also be liable for all costs associated with the sale or salvage of the cargo.

24.2 Should the Merchant voluntarily wish to abandon the cargo, it must submit a written request to Carrier. Only Merchants named on the bill of lading or Merchants who are holders in due course of an original to order bill of lading covering the cargo may submit a request to Carrier to abandon the cargo. Any such Merchants intending to abandon the cargo must provide Carrier with a letter of abandonment and must also surrender an original bill of lading (if used), or if an original bill of lading is not used, such other documentation as may be required by Carrier. Carrier reserves the right to require additional documentation, including, but not limited to, commercial invoices and packing lists. Merchants who voluntarily abandon the cargo shall be responsible for all Charges attributable to that cargo as set forth in paragraph A above and such Merchant shall be obligated to reimburse Carrier for any difference between the proceeds of the sale of the cargo and the actual Charges that have been assessed against the cargo as sell as any costs associated with such sale.

===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
25
-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 25 Effective: 22Feb2017
(I)(R)

CARGO, N.O.S.

Articles which are not provided for in rate tariffs,
Negotiated Rate Arrangements or NVOCC Service Arrangements
making reference hereto will be freighted at the rates named
under the commodity description "Cargo, N.O.S."
===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
26

-----+-----+-----
DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 26 Effective: 22Feb2017
(I)(R)

WOOD PACKING MATERIALS

The U.S. Department of Agriculture Animal and Plant Health Inspection Service ("APHIS") has Issued regulations regarding treatment, marking, and other requirements with respect to solid wood packing materials, regulated wood packaging materials, and other wood articles imported into the United States. See, 7 CFR Part 319.40.

It is jointly the responsibility of the shipper and consignee to ensure full compliance with these and any other applicable regulations. Any costs incurred by Carrier,

including the cost of any inspection, detention, unloading, re-stuffing, re-exportation, or other action taken by Carrier, as a result of a failure to comply with APHIS regulations regarding the importation of logs, lumber, other unmanufactured wooden articles, and solid wood packing material or regulated wood packing material (whether in actual use as packing for regulated or non-regulated articles or imported as cargo) into the United States, shall be the responsibility, jointly and severally, of the shipper and consignee, and shall be paid to Carrier prior to the release of the cargo to the consignee.

===== End of Rule Text =====

Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
27

DXI Tariff Report

Page 1

Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 27 Effective: 22Feb2017
(I)(R)

SHIPPER RESPONSIBILITY FOR LEGAL AND REGULATORY REQUIREMENTS

27.1 In the course of international transportation, commodities may be subject to rules, regulations or laws that may restrict, prohibit, or otherwise make illegal the transportation of such commodities from, to, between, or through, various countries, persons or business entities. It is expressly the responsibility of the Merchant to investigate, know, understand, and comply with all such regulations that pertain to their respective commodity (ies) including but not limited to licenses and/or permits certificate/registration requirements at Origin or Destination, and the safe transport of same. Any and all fines, penalties or other amounts assessed, however described, no matter whether civil or criminal, or any other costs including, but not limited to demurrage, detention, storage, handling, inland transportation unloading, stuffing and restuffing of containers, attorney fees and any additional equipment costs resulting, directly or indirectly, in whole or in part, from the Merchant's failure to comply with this Rule will be the sole responsibility of the Merchant, which shall indemnify, defend and hold Carrier harmless for the same regardless of whether Carrier negligence was a contributing cause. Ignorance of any rule, regulation or law shall not be considered as a defense in any such matter.

27.2 Carrier assumes no responsibility to investigate, know, or advise the Merchant of any such rule, regulation or law. Merchant shall also indemnify and hold Carrier harmless from any loss, damage delay, expense or liability including attorney's fees incurred or levied on Carrier or the Goods by reason of any non-compliance with requirements of Customs or other governmental agencies resulting from the non-provision, or late presentation of, required documentation.

27.3 In the event that cargo is refused entry or detained for inspection, unloading, or modification of any type due to rules, regulations, or laws that restrict, prohibit, or otherwise make illegal the transportation of any such commodity from, to, between, or through any country, persons or business entities, the Merchant shall arrange for all procedures to clear the container and carrier shall be

entitled, at its sole discretion, to pursue any and all means available to Carrier to either make the cargo safe or compliant for such transport, or to return the cargo to the origin at the Merchant's cost and expense, or to destroy the cargo. If the cargo is returned to port of origin, the return rate charged shall be according to the applicable returned cargo rate in this tariff, and shall be prepaid before the containers are returned. The Merchant may not attempt to abandon such cargo. Any and all costs and expenses, however described, which are incurred by Carrier resulting, directly or indirectly, in whole or in part, from the Merchant's failure to comply with this Rule will be the sole responsibility of the Merchant which shall indemnify, defend and hold Carrier harmless for and against all such costs and expenses including attorney's fees regardless of whether Carriers negligence was a contributing cause. Any cargo that is misdeclared in any way, intentionally or not, shall also be subject to this rule.

27.4 Carrier shall not release cargo to a consignee until all fines, penalties, costs (including attorney's fees), bonds, penalties, or sanctions provided for in this Rule have been paid or Carrier has been reimbursed for payment of same.

27.5 In the event a container is inspected, stored, unloaded, re-exported, or otherwise detained by a governmental agency because the Merchant has failed to comply with a statutory or regulatory requirement, the Merchant shall pay to Carrier an administrative charge of \$200.00, in addition to all other costs, expenses, charges, and other amounts due under this rule.

27.6 Shipper, Consignee, and Cargo Owner shall be jointly, severally and absolutely liable to Carrier or to any other party, without regard to intent, negligence, or any other factor for personal injuries or death, or damage to or loss of cargo or other property, during any time the container is being inspected or detained by any government agency, or is being transported to or from such inspection or detention, as a result of an act or omission of the Shipper, Consignee, or Cargo Owner.

===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003

011198-003

28

DXI Tariff Report

Page 1

Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 28 Effective: 22Feb2017
(I)(R)

PROHIBITED OR RESTRICTED ARTICLES

Goods of an explosive, inflammable, radioactive, corrosive, damaging, noxious, hazardous, poisonous, injurious or dangerous nature only will only be permitted upon Carrier's acceptance of a prior written application by Merchant for the carriage of such goods and only when the shipping containers, markings, and packing requirements for such articles and the handling, stowage, and transportation of such articles are in accordance with applicable governmental

regulations or as otherwise provided herein. Such application must accurately state the nature, name, label and classification of the goods as well as the method of rendering them innocuous, with the full names and addresses of the shipper and the consignee. Carrier reserves the right to refuse to accept or transport any goods which in its judgment are objectionable or likely to injure the vessel, docks, or other cargo, or for which in the carrier's judgment it has no safe and suitable stowage.

===== End of Rule Text =====

SEAFRIGO USA INC.

Tariff Code

Rule Report

SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003

011198-003

29

DXI Tariff Report

Page 1

Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 29 Effective: 22Feb2017
(I) (R)

CALCULATION OF NON-PUBLISHED RATES

The provisions of this rule apply as noted hereunder, for the calculation of non-published rates from a through freight rate of a 40ft X 8'6" container which is either filed as "base freight rate", "all inclusive" or filed as being "inclusive of" any charges in addition to base ocean freight. This rule applies only on per container rates.

In the absence of specific per container rates for 20', 40'x 9'6", 45'x 9'6" and 48'x 9'6" containers, the following rules will apply:

For All Destinations:

IN THE ABSENCE OF SPECIFIC PER CONTAINER RATE FOR 20' X 8'6" CONTAINER, THE STANDARD 20FT CONTAINER SHALL BE RATED AT 90% OF THE CURRENT STANDARD 40FT. CONTAINER RATES AND ROUNDED OFF TO THE NEAREST (5) DOLLARS.

IN THE ABSENCE OF SPECIFIC PER CONTAINER RATE FOR 40' X 9'6" CONTAINER, THE HIGH CUBE CONTAINER SHALL BE RATED AT 12.5% OVER AND IN ADDITION TO THE CURRENT 40FT STANDARD RATE AND ROUNDED OFF TO THE NEAREST FIVE (5) DOLLARS.

IN THE ABSENCE OF SPECIFIC PER CONTAINER RATE FOR 45' X 9'6" CONTAINER, THE 45FT HIGH CUBE CONTAINER SHALL BE RATED AT 26.6% PERCENT OVER AND IN ADDITION TO THE CURRENT 40FT STANDARD RATE AND ROUNDED OFF TO THE NEAREST FIVE (5) DOLLARS.

IN THE ABSENCE OF SPECIFIC PER CONTAINER RATE FOR 48' X 9'6" CONTAINER, THE 45FT HIGH CUBE CONTAINER SHALL BE RATED AT 43.3% PERCENT OVER AND IN ADDITION TO THE CURRENT 40FT STANDARD RATE AND ROUNDED OFF TO THE NEAREST FIVE (5) DOLLARS.

IN THE ABSENCE OF SPECIFIC PER CHARGE OR SURCHARGE FOR 20' X 8'6", 40 X 9'6", 45' X 9'6" OR 48' X 9'6" CONTAINER THE FORMULA SHALL BE APPLICABLE SAME AS CONTAINER RATE

(20 FT CONTAINER CHARGE = 0.9 X 40' CONTAINER CHARGE
40' HC CONTAINER CHARGE = 1.125 X 40' CONTAINER CHARGE
45 FT CONTAINER CHARGE = 1.266 X 40' CONTAINER CHARGE
48 FT CONTAINER CHARGE = 1.433 X 40' CONTAINER CHARGE)

BUT IF ARBITRARIES AND OTHER SURCHARGES ARE EXPRESSLY SPECIFIED FOR 20', 40' HIGH CUBE, 45' or 48' THE AMOUNT(S) SHALL BE APPLICABLE REGARDLESS OF THE ABOVE.

===== End of Rule Text =====

SEAFRIGO USA INC.

Tariff Code

Rule Report

SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003

011198-003

30

DXI Tariff Report

Page 1

Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 30 Effective: 22Feb2017
(I)(R)

CARRIER'S LIEN

Carrier shall have a general lien on any and all property (and documents relating thereto) of Merchant in its possession, custody or control or en route, which shall survive delivery, for all claims for charges, expenses or advances incurred by Carrier in connection with any shipments of Merchant. Carrier may sell at public auction or

private sale, upon 10 days written notice, registered mail to Merchant, the goods, wares and/or merchandise or so much as may be necessary to satisfy such lien and the costs of recovery, including the value of management time and effort, and apply the net proceeds of such sale to the payment of the amount due Carrier. The surplus, if any, from such sale shall be transmitted to Merchant, and Merchant shall be liable for any deficiency in the sale.

===== End of Rule Text =====

RULE: 31 Effective: 22Feb2017

(I)(R)

ACCESS TO TARIFF INFORMATION

Tariff information available at the following website:
https://rates.descartes.com

===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
32

-----+-----

DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 32 Effective: 22Feb2017

(I)(R)

NSA ESSENTIAL TERMS

The essential terms of any NVOCC Service Arrangement (NSA) into which Carrier may enter are set forth herein pursuant to the relevant NSA number:

1. NSA No. _____

a. Origin:
b. Destination:
c. Commodity:
d. Minimum volume:
e. Duration:
===== End of Rule Text =====

SEAFRIGO USA INC.
Tariff Code
Rule Report
SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003
011198-003
33

-----+-----

DXI Tariff Report
Page 1
Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 33 Effective: 22Feb2017
(I)(R)

ALL INFORMATION CONTAINED WITHIN THIS TARIFF IS TRUE AND
ACCURATE AND NO UNLAWFUL ALTERATIONS WILL BE PERMITTED

AND GOVERNING RULES AND REGULATIONS APPLYING THERETO

SEAFRIGO USA INC.

BETWEEN
PORTS AND POINTS IN THE U.S.A.

ORGANIZATION NUMBER: 011198
LOCATION OF TARIFF: <http://rates.descartes.com>

AND
WORLD PORTS AND POINTS

(A NON-VESSEL OPERATING COMMON CARRIER)

735 DOWD AVENUE
ELIZEBETH, NJ 07201
TEL: 201-770-1143
FAX: 201-867-9320

OCEAN FREIGHT TARIFF NO. 003

FOR LIST OF DEFINITIONS AND SYMBOLS, SEE RULE 18

FINANCIAL RESPONSIBILITY: BONDS AND AGENTS, SEE RULE 20

FOR ACCESS TO TARIFF INFORMATION, SEE RULE 31

===== End of Rule Text =====

SEAFRIGO USA INC.

Tariff Code

Rule Report

SEAFRIGO USA INC. - IMPORT/EXPORT FREIGHT RATE TARIFF 003

011198-003

34

-----+-----
DXI Tariff Report

Page 1

Access date: 26May2022 Print date: 26May2022

Except as otherwise provided, rates apply per 1000.0 KGS or 1.0 CBM, whichever produces the greater revenue.

RULE: 34 Effective: 22Aug2018
(C)

NVOCC SERVICE ARRANGEMENTS (NSA)

As per Part 531 NVOCC Service Arrangements of the CFR,
Carrier has elected to utilize a combination of NVOCC
Service Arrangements (NSAs), and Open Tariff Rates.

defined service level. The NSA may also specify provisions
in the event of nonperformance on the part of any party.

A "Tariff Rate" means a price stated in a tariff for
providing a specified level of transportation service for a
stated cargo quantity, from origin to destination, on and

DEFINITIONS:

An "NVOCC Service Arrangement", (NSA) means a written contract, other than a bill of lading or receipt, between one or more NSA shippers and an individual NVOCC or two or more affiliated NVOCCs, in which the NSA shipper makes a commitment to provide a certain minimum quantity or portion of its cargo or freight revenue over a fixed time period, and the NVOCC commits to a certain rate or rate schedule and

after a stated effective date or within a defined time frame.

EXTENT OF ACTIVITY:

Carrier participates in NSAs and utilizes Open Tariff Rates. As required by Part 531.4 of the CFR, the governing rule publication is available to the public at <http://rates.descartes.com> free of charge.
===== End of Rule Text =====

EXHIBIT – 6

LIST OF SNOWSTORM DEMURRAGE AND DETENTION INVOICES/CHARGES

Year	Month	Seafrigo #	PO #	Invoice Amount	Invoice Type	Invoice Status
21	1	IMP10-20-08632-02	PO003746	\$ 750.00	Per Diem	Paid
21	1	IMP10-20-09056-02	PO003785	\$ 4,070.00	Demurrage	Paid
21	1	IMP10-20-09059-03	PO003615	\$ 1,280.00	Demurrage	Paid
21	1	IMP10-20-09063-02	PO003706	\$ 3,680.00	Demurrage	Paid
21	1	IMP10-20-09338-02	PO003929	\$ 15,286.53	Demurrage	Paid
21	1	IMP10-20-09338-03	PO003929	\$ 570.00	Per Diem	Paid
21	1	IMP10-20-09444-02	PO004050	\$ 18,120.26	Demurrage	Paid
21	1	IMP10-20-09444-03	PO004050	\$ 2,386.57	Demurrage	Paid
21	1	IMP10-20-09464-02	PO004049	\$ 15,133.75	Demurrage	Paid
21	1	IMP10-20-09465-02	PO004092	\$ 15,925.52	Demurrage	Paid
21	1	IMP10-20-09468-02	PO003813	\$ 15,895.00	Demurrage	Paid
21	1	IMP10-20-09469-02	PO004045	\$ 15,133.75	Demurrage	Paid
21	1	IMP10-20-09469-03	PO004045	\$ 690.00	Per Diem	Paid
21	1	IMP10-20-09470-02	PO004039	\$ 14,372.50	Demurrage	Paid
21	1	IMP10-20-09581-02	PO004093	\$ 17,324.73	Demurrage	Paid
21	1	IMP10-20-09582-02	PO003927	\$ 15,133.75	Demurrage	Paid
21	1	IMP10-20-09608-02	PO004046	\$ 15,005.00	Demurrage	Paid
21	1	IMP10-20-09610-03	PO004010	\$ 12,350.50	Demurrage	Paid
21	1	IMP10-20-09650-02	PO003786	\$ 6,280.00	Demurrage	Paid
21	1	IMP10-20-09651-02	PO004009	\$ 6,279.00	Demurrage	Paid
21	1	IMP10-20-09652-03	PO004052	\$ 7,139.00	Demurrage	Paid
21	1	IMP10-20-09653-02	PO003924	\$ 6,279.00	Demurrage	Paid
21	1	IMP10-20-09735-03	PO003828	\$ 2,346.00	Demurrage	Paid
21	1	IMP10-20-09736-02	PO004040	\$ 9,736.00	Demurrage	Paid
21	1	IMP10-20-09738-02	PO003890	\$ 6,294.00	Demurrage	Paid
21	1	IMP10-20-09925-03	PO004095	\$ 6,880.00	Demurrage	Paid
21	1	IMP10-20-09927-02	PO003824	\$ 6,880.00	Demurrage	Paid
21	1	IMP10-20-09928-02	PO003889	\$ 6,880.00	Demurrage	Paid
21	1	IMP10-20-09929-02	PO003777	\$ 6,087.50	Demurrage	Paid
21	1	IMP10-20-09930-02	PO003825	\$ 6,880.00	Demurrage	Paid
21	1	IMP10-20-09931-02	PO003779	\$ 6,880.00	Demurrage	Paid
21	1	IMP10-20-09932-02	PO003818	\$ 6,880.00	Demurrage	Paid
21	1	IMP10-20-09933-02	PO003829	\$ 9,287.50	Demurrage	Paid
21	1	IMP10-20-09934-02	PO003886	\$ 6,880.00	Demurrage	Paid
21	1	IMP10-20-09935-02	PO003816	\$ 5,287.50	Demurrage	Paid
21	1	IMP10-20-09936-02	PO003888	\$ 7,680.00	Demurrage	Paid
21	1	IMP10-20-09937-02	PO003823	\$ 6,087.50	Demurrage	Paid
21	1	IMP10-20-09938-02	PO003815	\$ 6,087.50	Demurrage	Paid
21	1	IMP10-20-09939-02	PO003778	\$ 6,880.00	Demurrage	Paid
21	1	IMP10-20-09939-03	PO003778	\$ 500.00	Per Diem	Paid
21	1	IMP10-20-09940-02	PO003817	\$ 6,880.00	Demurrage	Paid
21	1	IMP10-20-09941-02	PO003854	\$ 5,847.50	Demurrage	Paid
21	1	IMP10-20-10209-02	PO003855	\$ 647.50	Demurrage	Paid
21	1	IMP10-20-10219-02	PO003930	\$ 1,280.00	Demurrage	Paid
21	1	IMP10-20-10220-02	PO004041	\$ 647.50	Demurrage	Paid
21	1	IMP10-20-10221-02	PO004051	\$ 1,287.50	Demurrage	Paid
21	1	IMP10-20-10226-02	PO003933	\$ 3,687.50	Demurrage	Paid
21	1	IMP10-20-10228-02	PO004048	\$ 647.50	Demurrage	Paid
21	1	IMP10-20-10231-02	PO003948	\$ 3,165.00	Demurrage	Paid
21	1	IMP10-20-10232-02	PO003949	\$ 3,165.00	Demurrage	Paid
21	1	IMP10-20-10233-02	PO003921	\$ 3,885.00	Demurrage	Paid
21	1	IMP10-20-10450-02	PO004086	\$ 1,237.48	Demurrage	Paid
21	1	IMP10-20-10462-03	PO004054	\$ 1,216.69	Demurrage	Paid
21	1	IMP10-20-10465-02	PO004085	\$ 1,237.48	Demurrage	Paid
21	1	IMP10-20-10466-02	PO004061	\$ 1,591.05	Demurrage	Paid
21	1	IMP10-20-10476-02	PO004083	\$ 1,237.48	Demurrage	Paid

Invoice Type	Seafrigo #	PO #	Sum of Invoice Amount
Demurrage	IMP10-20-09056-02	PO003785	\$ 4,070.00
	IMP10-20-09059-03	PO003615	\$ 1,280.00
	IMP10-20-09063-02	PO003706	\$ 3,680.00
	IMP10-20-09338-02	PO003929	\$ 15,286.53
	IMP10-20-09444-02	PO004050	\$ 18,120.26
	IMP10-20-09444-03	PO004050	\$ 2,386.57
	IMP10-20-09464-02	PO004049	\$ 15,133.75
	IMP10-20-09465-02	PO004092	\$ 15,925.52
	IMP10-20-09468-02	PO003813	\$ 15,895.00
	IMP10-20-09469-02	PO004045	\$ 15,133.75
	IMP10-20-09470-02	PO004039	\$ 14,372.50
	IMP10-20-09581-02	PO004093	\$ 17,324.73
	IMP10-20-09582-02	PO003927	\$ 15,133.75
	IMP10-20-09608-02	PO004046	\$ 15,005.00
	IMP10-20-09610-03	PO004010	\$ 12,350.50
	IMP10-20-09650-02	PO003786	\$ 6,280.00
	IMP10-20-09651-02	PO004009	\$ 6,279.00
	IMP10-20-09652-03	PO004052	\$ 7,139.00
	IMP10-20-09653-02	PO003924	\$ 6,279.00
	IMP10-20-09735-03	PO003828	\$ 2,346.00
	IMP10-20-09736-02	PO004040	\$ 9,736.00
	IMP10-20-09738-02	PO003890	\$ 6,294.00
	IMP10-20-09925-03	PO004095	\$ 6,880.00
	IMP10-20-09927-02	PO003824	\$ 6,880.00
	IMP10-20-09928-02	PO003889	\$ 6,880.00
	IMP10-20-09929-02	PO003777	\$ 6,087.50
	IMP10-20-09930-02	PO003825	\$ 6,880.00
	IMP10-20-09931-02	PO003779	\$ 6,880.00
	IMP10-20-09932-02	PO003818	\$ 6,880.00
	IMP10-20-09933-02	PO003829	\$ 9,287.50
	IMP10-20-09934-02	PO003886	\$ 6,880.00
	IMP10-20-09935-02	PO003816	\$ 5,287.50
	IMP10-20-09936-02	PO003888	\$ 7,680.00
	IMP10-20-09937-02	PO003823	\$ 6,087.50
	IMP10-20-09938-02	PO003815	\$ 6,087.50
	IMP10-20-09939-02	PO003778	\$ 6,880.00
	IMP10-20-09940-02	PO003817	\$ 6,880.00
	IMP10-20-09941-02	PO003854	\$ 5,847.50
	IMP10-20-10209-02	PO003855	\$ 647.50
	IMP10-20-10219-02	PO003930	\$ 1,280.00
	IMP10-20-10220-02	PO004041	\$ 647.50
	IMP10-20-10221-02	PO004051	\$ 1,287.50
	IMP10-20-10226-02	PO003933	\$ 3,687.50
	IMP10-20-10228-02	PO004048	\$ 647.50

Demurrage	IMP10-20-10231-02	PO003948	\$	3,165.00
	IMP10-20-10232-02	PO003949	\$	3,165.00
	IMP10-20-10233-02	PO003921	\$	3,885.00
	IMP10-20-10450-02	PO004086	\$	1,237.48
	IMP10-20-10462-03	PO004054	\$	1,216.69
	IMP10-20-10465-02	PO004085	\$	1,237.48
	IMP10-20-10466-02	PO004061	\$	1,591.05
	IMP10-20-10476-02	PO004083	\$	1,237.48
Demurrage Total			\$	358,668.54
Per Diem	IMP10-20-08632-02	PO003746	\$	750.00
	IMP10-20-09338-03	PO003929	\$	570.00
	IMP10-20-09469-03	PO004045	\$	690.00
	IMP10-20-09939-03	PO003778	\$	500.00
Per Diem Total			\$	2,510.00
Grand Total			\$	361,178.54

EXHIBIT – 7

SPREADSHEET COMPARISON BETWEEN SEAFRIGO AND CEVA

PO#	US Port	US Terminal	Voyage nb	Vessel name	ETA US	Final Dest.	Forwarder	Invoice number	Invoice Amount	Invoice Type	Invoice Status
PO001325	New York	Maher	0LB9V	CMA CGM TOSCA	10/13/21	Lineage Linden, NJ	SEAFRIGO	USI210002384	\$ 3,680.00	Demurrage	On Hold
PO001325	New York	Maher	0LB9V	CMA CGM TOSCA	10/13/21	Lineage Linden, NJ	SEAFRIGO	USI210002384	\$ 1,600.00	Demurrage	On Hold
PO001326	New York	Maher	025W	HAMBURG BAY	10/13/21	Lineage Linden, NJ	SEAFRIGO	USI210004516	\$ 21,179.50	Demurrage	On Hold
PO001326	New York	Maher	025W	HAMBURG BAY	10/13/21	Lineage Linden, NJ	SEAFRIGO	USI210004560	\$ 2,052.00	Demurrage	On Hold
PO001326	New York	Maher	025W	HAMBURG BAY	10/13/21	Lineage Linden, NJ	SEAFRIGO	USI210003541	\$ 2,782.35	Demurrage	On Hold
PO001326	New York	Maher	025W	HAMBURG BAY	10/13/21	Lineage Linden, NJ	SEAFRIGO	USI210003816	\$ 2,133.87	Demurrage	On Hold
PO001326	New York	Maher	025W	HAMBURG BAY	10/13/21	Lineage Linden, NJ	SEAFRIGO	USI210003823	\$ 903.67	Demurrage	On Hold
PO001327	New York	Maher	ORP9F	MANDALAY	10/13/21	Seafrigo, NJ	SEAFRIGO	USI220000482	\$ 1,580.00	Per Diem	On Hold
PO001714	New York	Maher	ORP9F	MANDALAY	10/12/21	Lineage Jersey City, NJ	CEVA		\$ -		
PO001716	New York	Maher	025W	PALENA	10/13/21	Honor Foods, PA	SEAFRIGO	USI210003667	\$ 6,716.85	Demurrage	On Hold
PO001722	New York	Maher	025W	PALENA	10/13/21	Lineage Linden, NJ	SEAFRIGO		\$ -		
PO001733	New York	Maher	ORP9F	MANDALAY	10/12/21	Lineage Linden, NJ	CEVA		\$ -		
PO001742	New York	Maher	ORP9F	MANDALAY	10/12/21	Lineage Linden, NJ	CEVA		\$ -		
PO002671	New York	Maher	0LB9V	CMA CGM TOSCA	10/13/21	Lineage Linden, NJ	SEAFRIGO		\$ -		
PO001168	New York	Maher	OLB9SE1MA	EVER LASTING	10/04/21	Lineage Jersey City, NJ	CEVA		\$ -		
PO001204	New York	Maher	OLB9SE1MA	EVER LASTING	10/04/21	Lineage Jersey City, NJ	CEVA		\$ -		
PO001205	New York	Maher	OLB9SE1MA	EVER LASTING	10/04/21	Lineage Jersey City, NJ	CEVA		\$ -		
PO001264	New York	Maher	OLB9RW1MA	EVER LASTING	10/04/21	Lineage Jersey City, NJ	CEVA		\$ -		
PO001265	New York	Maher	OLB9RW1MA	EVER LASTING	10/04/21	Lineage Jersey City, NJ	CEVA		\$ -		
PO001266	New York	Maher	OLB9RW1MA	EVER LASTING	10/04/21	Lineage Jersey City, NJ	CEVA		\$ -		
PO001359	New York	Maher	OLB9RW1MA	EVER LASTING	10/04/21	Lineage Jersey City, NJ	CEVA		\$ -		
PO001734	New York	Maher	OLB9RW1MA	EVER LASTING	10/04/21	Lineage Linden, NJ	CEVA		\$ -		
PO001322	New York	Maher	058W	EVER LASTING	10/04/21	Seafrigo, NJ	SEAFRIGO	USI210001306	\$ 5,925.00	Demurrage	On Hold
PO001322	New York	Maher	058W	EVER LASTING	10/04/21	Seafrigo, NJ	SEAFRIGO	USI210002385	\$ 4,800.00	Demurrage	On Hold
PO001322	New York	Maher	058W	EVER LASTING	10/04/21	Seafrigo, NJ	SEAFRIGO	USI210003188	\$ 800.00	Demurrage	On Hold
PO001322	New York	Maher	058W	EVER LASTING	10/04/21	Seafrigo, NJ	SEAFRIGO	USI210003190	\$ 4,000.00	Demurrage	On Hold
PO001322	New York	Maher	058W	EVER LASTING	10/04/21	Seafrigo, NJ	SEAFRIGO	USI210000990	\$ 1,389.00	Demurrage	On Hold
PO001322	New York	Maher	058W	EVER LASTING	10/04/21	Seafrigo, NJ	SEAFRIGO	USI220000756	\$ 750.00	Per Diem	On Hold

								Values		
ETA US	Forwarder	US Port	US Terminal	Final Dest.	PO#	Invoice Type	Invoice number	Count of Invoice number	Sum of Invoice Amount	
10/4/2021	CEVA	New York	Maher	Lineage Jersey City, NJ	PO001168	(blank)	(blank)	\$	-	
					PO001204	(blank)	(blank)	\$	-	
					PO001205	(blank)	(blank)	\$	-	
					PO001264	(blank)	(blank)	\$	-	
					PO001265	(blank)	(blank)	\$	-	
					PO001266	(blank)	(blank)	\$	-	
				PO001359	(blank)	(blank)	\$	-		
					Lineage Linden, NJ	PO001734	(blank)	(blank)	\$	-
CEVA Total								\$	-	
	SEAFRIGO	New York	Maher	Seafrigo, NJ	PO001322	Demurrage	USI210000990	1 \$	1,389.00	
							USI210001306	1 \$	5,925.00	
							USI210002385	1 \$	4,800.00	
							USI210003188	1 \$	800.00	
							USI210003190	1 \$	4,000.00	
						Per Diem	USI220000756	1 \$	750.00	
SEAFRIGO Total								6 \$	17,664.00	
10/12/2021	CEVA	New York	Maher	Lineage Jersey City, NJ	PO001714	(blank)	(blank)	\$	-	
				Lineage Linden, NJ	PO001733	(blank)	(blank)	\$	-	
					PO001742	(blank)	(blank)	\$	-	
CEVA Total								\$	-	
10/13/2021	SEAFRIGO	New York	Maher	Honor Foods, PA	PO001716	Demurrage	USI210003667	1 \$	6,716.85	
				Lineage Linden, NJ	PO001325	Demurrage	USI210002384	2 \$	5,280.00	
					PO001326	Demurrage	USI210003541	1 \$	2,782.35	
							USI210003816	1 \$	2,133.87	
							USI210003823	1 \$	903.67	
							USI210004516	1 \$	21,179.50	
							USI210004560	1 \$	2,052.00	
				Seafrigo, NJ	PO001327	Per Diem	USI220000482	1 \$	1,580.00	
SEAFRIGO Total								9 \$	42,628.24	
Grand Total								15 \$	60,292.24	

EXHIBIT – 8

LIST OF DUPLICATED PURCHASE ORDERS

Invoice Type	PO #	Invoice Status	Sum of Invoice Amount	Count of Seafargo #
On Hold	PO000686	On Hold	\$ 12,074.28	2
		Paid	\$ 1,538.70	1
	PO000686 Total		\$ 13,612.98	3
	PO000687	On Hold	\$ 4,464.43	3
	PO000687 Total		\$ 4,464.43	3
	PO000691	On Hold	\$ 13,496.86	3
	PO000691 Total		\$ 13,496.86	3
	PO000695	On Hold	\$ 3,037.55	1
		Paid	\$ 3,037.55	1
	PO000695 Total		\$ 6,075.10	2
	PO000713	On Hold	\$ 12,074.28	2
	PO000713 Total		\$ 12,074.28	2
	PO000714	On Hold	\$ 10,067.02	4
	PO000714 Total		\$ 10,067.02	4
On Hold	PO000720	On Hold	\$ 8,329.60	2
	PO000720 Total		\$ 8,329.60	2
	PO000731	On Hold	\$ 828.50	1
		Paid	\$ 4,910.00	1
	PO000731 Total		\$ 5,738.50	2
	PO000986	Paid	\$ 12,136.86	2
	PO000986 Total		\$ 12,136.86	2
	PO001017	On Hold	\$ 9,280.00	3
	PO001017 Total		\$ 9,280.00	3
	PO001018	On Hold	\$ 4,800.00	1
		Paid	\$ 3,069.00	1
	PO001018 Total		\$ 7,869.00	2
	PO001019	On Hold	\$ 20,428.33	3
		Paid	\$ 4,800.00	1
On Hold	PO001019 Total		\$ 25,228.33	4
	PO001138	Paid	\$ 5,177.13	2
	PO001138 Total		\$ 5,177.13	2
	PO001143	On Hold	\$ 7,236.75	3
	PO001143 Total		\$ 7,236.75	3
	PO001147	On Hold	\$ 8,560.42	2
	PO001147 Total		\$ 8,560.42	2
	PO001172	On Hold	\$ 5,298.25	3
	PO001172 Total		\$ 5,298.25	3
	PO001185	On Hold	\$ 7,755.50	4
	PO001185 Total		\$ 7,755.50	4
	PO001188	On Hold	\$ 1,389.97	1
		Paid	\$ 800.00	1
	PO001188 Total		\$ 2,189.97	2
On Hold	PO001189	On Hold	\$ 10,288.75	3
	PO001189 Total		\$ 10,288.75	3
	PO001208	On Hold	\$ 2,768.00	2
	PO001208 Total		\$ 2,768.00	2
	PO001232	On Hold	\$ 782.00	1
		Paid	\$ 4,995.75	1
	PO001232 Total		\$ 5,777.75	2
	PO001255	On Hold	\$ 7,269.09	5
	PO001255 Total		\$ 7,269.09	5
	PO001263	On Hold	\$ 3,352.50	2
	PO001263 Total		\$ 3,352.50	2
	PO001269	Paid	\$ 6,189.00	2
	PO001269 Total		\$ 6,189.00	2
On Hold	PO001287	On Hold	\$ 28,761.43	6
	PO001287 Total		\$ 28,761.43	6
	PO001288	On Hold	\$ 4,812.90	2
	PO001288 Total		\$ 4,812.90	2
	PO001289	On Hold	\$ 11,271.44	2
	PO001289 Total		\$ 11,271.44	2
	PO001290	On Hold	\$ 4,772.40	2
	PO001290 Total		\$ 4,772.40	2
	PO001303	On Hold	\$ 3,177.90	2
	PO001303 Total		\$ 3,177.90	2
	PO001305	On Hold	\$ 1,330.60	3
	PO001305 Total		\$ 1,330.60	3
	PO001322	On Hold	\$ 16,914.00	5
	PO001322 Total		\$ 16,914.00	5
On Hold	PO001325	On Hold	\$ 5,280.00	2
	PO001325 Total		\$ 5,280.00	2
	PO001326	On Hold	\$ 29,051.39	5
	PO001326 Total		\$ 29,051.39	5
On Hold	PO001344	On Hold	\$ 12,074.28	2

Invoice Type	Invoice Status	Sum of Invoice Amount	Count of Seafargo #
On Hold	On Hold	\$ 884,242.87	245
	Paid	\$ 138,420.23	55
On Hold Total		\$ 1,022,663.10	300
On Hold	On Hold	\$ 10,242.55	12
	Paid	\$ 7,349.00	5
On Hold Total		\$ 17,591.55	17
Grand Total		\$ 1,040,254.65	317

Invoice Status	Invoice Type	Sum of Invoice Amount	Count of Seafargo #
On Hold	Demurrage	\$ 884,242.87	245
	Per Diem	\$ 10,242.55	12
On Hold Total		\$ 894,485.42	257
Paid	Demurrage	\$ 138,420.23	55
	Per Diem	\$ 7,349.00	5
Paid Total		\$ 145,769.23	60
Grand Total		\$ 1,040,254.65	317

PO001344	Paid	\$	1,538.70	1
PO001344 Total		\$	13,612.98	3
PO001347	On Hold	\$	4,348.30	3
PO001347 Total		\$	4,348.30	3
PO001350	On Hold	\$	2,808.25	2
PO001350 Total		\$	2,808.25	2
PO001352	On Hold	\$	6,268.97	2
PO001352 Total		\$	6,268.97	2
PO001616	On Hold	\$	3,009.50	2
PO001616 Total		\$	3,009.50	2
PO001617	On Hold	\$	3,463.50	3
PO001617 Total		\$	3,463.50	3
PO001620	On Hold	\$	4,090.00	2
PO001620 Total		\$	4,090.00	2
PO001628	On Hold	\$	1,837.50	2
PO001628 Total		\$	1,837.50	2
PO001735	On Hold	\$	728.76	2
PO001735 Total		\$	728.76	2
PO001755	On Hold	\$	4,584.50	2
PO001755 Total		\$	4,584.50	2
PO001756	On Hold	\$	4,704.25	2
PO001756 Total		\$	4,704.25	2
PO001757	On Hold	\$	21,470.00	3
PO001757 Total		\$	21,470.00	3
PO001758	On Hold	\$	4,704.25	2
PO001758 Total		\$	4,704.25	2
PO001766	On Hold	\$	8,610.50	5
PO001766 Total		\$	8,610.50	5
PO001767	On Hold	\$	6,235.83	4
PO001767 Total		\$	6,235.83	4
PO001768	On Hold	\$	7,236.75	3
PO001768 Total		\$	7,236.75	3
PO001775	On Hold	\$	9,881.25	2
PO001775 Total		\$	9,881.25	2
PO001784	On Hold	\$	10,102.00	2
PO001784 Total		\$	10,102.00	2
PO001802	On Hold	\$	4,694.75	2
PO001802 Total		\$	4,694.75	2
PO001889	On Hold	\$	6,235.83	4
PO001889 Total		\$	6,235.83	4
PO001890	On Hold	\$	9,051.09	6
PO001890 Total		\$	9,051.09	6
PO001893	On Hold	\$	2,848.48	3
PO001893 Total		\$	2,848.48	3
PO001896	On Hold	\$	7,236.75	3
PO001896 Total		\$	7,236.75	3
PO002127	On Hold	\$	6,188.00	2
PO002127 Total		\$	6,188.00	2
PO002143	On Hold	\$	6,188.00	2
PO002143 Total		\$	6,188.00	2
PO002149	On Hold	\$	6,797.00	2
PO002149 Total		\$	6,797.00	2
PO002151	On Hold	\$	6,977.00	3
PO002151 Total		\$	6,977.00	3
PO002152	On Hold	\$	16,432.00	3
PO002152 Total		\$	16,432.00	3
PO002153	On Hold	\$	6,977.00	3
PO002153 Total		\$	6,977.00	3
PO002154	On Hold	\$	14,462.00	5
PO002154 Total		\$	14,462.00	5
PO002168	On Hold	\$	17,278.00	2
PO002168 Total		\$	17,278.00	2
PO002174	On Hold	\$	22,796.00	3
PO002174 Total		\$	22,796.00	3
PO002178	On Hold	\$	20,174.00	2
PO002178 Total		\$	20,174.00	2
PO002184	On Hold	\$	23,898.00	2
PO002184 Total		\$	23,898.00	2
PO002194	On Hold	\$	15,679.50	2
PO002194 Total		\$	15,679.50	2
PO002205	On Hold	\$	4,090.00	2
PO002205 Total		\$	4,090.00	2
PO002212	On Hold	\$	14,985.00	5
PO002212 Total		\$	14,985.00	5
PO002213	On Hold	\$	6,977.00	3
PO002213 Total		\$	6,977.00	3
PO002214	On Hold	\$	20,212.00	3

PO002214 Total	\$	20,212.00	3
PO002246 On Hold	\$	4,704.25	2
PO002246 Total	\$	4,704.25	2
PO002248 On Hold	\$	14,985.00	5
PO002248 Total	\$	14,985.00	5
PO002251 On Hold	\$	9,789.00	2
PO002251 Total	\$	9,789.00	2
PO002252 On Hold	\$	11,499.00	4
PO002252 Total	\$	11,499.00	4
PO002566 On Hold	\$	25,536.00	2
PO002566 Total	\$	25,536.00	2
PO002578 On Hold	\$	21,103.50	2
PO002578 Total	\$	21,103.50	2
PO002588 On Hold	\$	11,702.00	3
PO002588 Total	\$	11,702.00	3
PO002591 On Hold	\$	20,590.00	5
PO002591 Total	\$	20,590.00	5
PO002594 On Hold	\$	7,537.00	3
PO002594 Total	\$	7,537.00	3
PO002598 On Hold	\$	21,984.00	2
PO002598 Total	\$	21,984.00	2
PO002603 On Hold	\$	34,788.50	2
PO002603 Total	\$	34,788.50	2
PO002618 On Hold	\$	10,257.00	3
PO002618 Total	\$	10,257.00	3
PO002669 On Hold	\$	8,897.50	3
PO002669 Total	\$	8,897.50	3
PO003018 On Hold	\$	10,634.50	2
PO003018 Total	\$	10,634.50	2
PO003049 On Hold	\$	2,412.50	2
PO003049 Total	\$	2,412.50	2
PO003055 On Hold	\$	3,425.00	2
PO003055 Total	\$	3,425.00	2
PO003062 On Hold	\$	3,425.00	2
PO003062 Total	\$	3,425.00	2
PO003454 On Hold	\$	2,425.00	2
PO003454 Total	\$	2,425.00	2
PO003477 On Hold	\$	6,887.00	3
PO003477 Total	\$	6,887.00	3
PO003637 On Hold	\$	3,078.50	2
PO003637 Total	\$	3,078.50	2
PO004050 Paid	\$	20,506.83	2
PO004050 Total	\$	20,506.83	2
PO004080 Paid	\$	1,255.00	3
PO004080 Total	\$	1,255.00	3
PO004089 Paid	\$	1,058.00	2
PO004089 Total	\$	1,058.00	2
PO004127 Paid	\$	1,155.00	2
PO004127 Total	\$	1,155.00	2
PO004254 Paid	\$	1,925.00	2
PO004254 Total	\$	1,925.00	2
PO004255 Paid	\$	1,540.00	2
PO004255 Total	\$	1,540.00	2
PO004256 Paid	\$	1,540.00	2
PO004256 Total	\$	1,540.00	2
PO004260 Paid	\$	1,540.00	2
PO004260 Total	\$	1,540.00	2
PO004261 Paid	\$	1,155.00	2
PO004261 Total	\$	1,155.00	2
PO004270 Paid	\$	1,925.00	2
PO004270 Total	\$	1,925.00	2
PO004296 Paid	\$	3,695.00	2
PO004296 Total	\$	3,695.00	2
PO004302 Paid	\$	3,173.50	3
PO004302 Total	\$	3,173.50	3
PO004332 Paid	\$	1,540.00	2
PO004332 Total	\$	1,540.00	2
PO004383 Paid	\$	1,925.00	2
PO004383 Total	\$	1,925.00	2
PO005010 Paid	\$	4,373.00	2
PO005010 Total	\$	4,373.00	2
PO005020 Paid	\$	8,625.00	2
PO005020 Total	\$	8,625.00	2
PO005116 Paid	\$	12,257.00	2
PO005116 Total	\$	12,257.00	2
PO005198 On Hold	\$	9,144.13	1
PO005198 Paid	\$	3,535.66	1

	PO005198 Total	\$	12,679.79	2
	PO005201 Paid	\$	15,173.00	2
	PO005201 Total	\$	15,173.00	2
	PO005404 On Hold	\$	12,074.28	2
	PO005404 Total	\$	12,074.28	2
	PO005405 Paid	\$	2,330.55	2
	PO005405 Total	\$	2,330.55	2
	PO005406 On Hold	\$	12,074.28	2
	PO005406 Total	\$	12,074.28	2
	PO000884 On Hold	\$	1,510.00	3
	PO000884 Total	\$	1,510.00	3
	PO001318 On Hold	\$	4,595.00	2
	PO001318 Total	\$	4,595.00	2
	PO001706 On Hold	\$	2,500.00	2
	PO001706 Total	\$	2,500.00	2
	PO001753 On Hold	\$	(15.50)	2
	PO001753 Total	\$	(15.50)	2
	PO003702 On Hold	\$	358.05	1
	PO003702 Paid	\$	390.00	1
	PO003702 Total	\$	748.05	2
	PO003828 Paid	\$	4,172.00	2
	PO003828 Total	\$	4,172.00	2
	PO004988 On Hold	\$	891.95	1
	PO004988 Paid	\$	345.00	1
	PO004988 Total	\$	1,236.95	2
	PO004768 On Hold	\$	403.05	1
	PO004768 Paid	\$	2,442.00	1
	PO004768 Total	\$	2,845.05	2
Grand Total		\$	1,040,254.65	317

Year	Month	Seafigo #	PO #	Invoice Amount	Invoice Type	Invoice Status
21	1	IMP10-20-09444-02	P0004050	\$ 18,120.26	Demurrage	Paid
21	1	IMP10-20-09444-03	P0004050	\$ 2,385.57	Demurrage	Paid
21	2	IMP10-20-09735-04	P0003828	\$ 1,552.00	Per Diem	Paid
21	3	IMP10-20-09735-05	P0003828	\$ 2,620.00	Per Diem	Paid
21	3	IMP10-21-00309-02	P0004089	\$ (9,522.00)	Demurrage	Paid
21	3	IMP10-21-00309-02	P0004089	\$ 10,580.00	Demurrage	Paid
21	3	IMP10-21-00625-02	P0004302	\$ 574.50	Demurrage	Paid
21	3	IMP10-21-00625-03	P0004302	\$ 1,242.50	Demurrage	Paid
21	3	IMP10-21-00625-04	P0004302	\$ 1,356.50	Demurrage	Paid
21	3	IMP10-21-00898-02	P0004261	\$ 855.00	Demurrage	Paid
21	3	IMP10-21-00898-03	P0004261	\$ 300.00	Demurrage	Paid
21	3	IMP10-21-00899-02	P0004080	\$ 855.00	Demurrage	Paid
21	3	IMP10-21-00899-03	P0004080	\$ 300.00	Demurrage	Paid
21	3	IMP10-21-00899-04	P0004080	\$ 100.00	Demurrage	Paid
21	3	IMP10-21-00900-02	P0004127	\$ 855.00	Demurrage	Paid
21	3	IMP10-21-00900-03	P0004127	\$ 300.00	Demurrage	Paid
21	3	IMP10-21-00901-02	P0004332	\$ 1,140.00	Demurrage	Paid
21	3	IMP10-21-00901-03	P0004332	\$ 400.00	Demurrage	Paid
21	3	IMP10-21-00902-02	P0004255	\$ 1,140.00	Demurrage	Paid
21	3	IMP10-21-00902-03	P0004255	\$ 400.00	Demurrage	Paid
21	3	IMP10-21-00903-02	P0004260	\$ 1,140.00	Demurrage	Paid
21	3	IMP10-21-00903-03	P0004260	\$ 400.00	Demurrage	Paid
21	3	IMP10-21-00904-02	P0004256	\$ 1,140.00	Demurrage	Paid
21	3	IMP10-21-00904-03	P0004256	\$ 400.00	Demurrage	Paid
21	3	IMP10-21-00905-02	P0004383	\$ 1,425.00	Demurrage	Paid
21	3	IMP10-21-00905-03	P0004383	\$ 500.00	Demurrage	Paid
21	3	IMP10-21-00906-02	P0004254	\$ 1,425.00	Demurrage	Paid
21	3	IMP10-21-00906-03	P0004254	\$ 500.00	Demurrage	Paid
21	3	IMP10-21-00907-02	P0004270	\$ 1,425.00	Demurrage	Paid
21	3	IMP10-21-00907-03	P0004270	\$ 500.00	Demurrage	Paid
21	3	IMP10-21-01022-03	P0004296	\$ 1,287.50	Demurrage	Paid
21	3	IMP10-21-01022-04	P0004296	\$ 2,407.50	Demurrage	Paid
21	6	IMP10-20-08385-02	P0003702	\$ 390.00	Per Diem	Paid
21	7	IMP10-21-04549-02	P0005010	\$ 1,042.00	Demurrage	Paid
21	7	IMP10-21-04549-03	P0005010	\$ 3,331.00	Demurrage	Paid
21	7	IMP10-21-04864-02	P0005020	\$ 7,843.00	Demurrage	Paid
21	7	IMP10-21-04864-03	P0005020	\$ 782.00	Demurrage	Paid
21	7	IMP10-21-05577-04	P0005116	\$ 4,692.00	Demurrage	Paid
21	8	IMP10-21-05338-02	P0000986	\$ 10,655.00	Demurrage	Paid
21	8	IMP10-21-05338-03	P0000986	\$ 1,481.86	Demurrage	Paid
21	8	IMP10-21-05533-03	P0005198	\$ 3,535.66	Demurrage	Paid
21	8	IMP10-21-05577-03	P0005116	\$ 7,565.00	Demurrage	Paid
21	8	IMP10-21-05674-01	P0005201	\$ 7,285.00	Demurrage	Paid
21	8	IMP10-21-05674-03	P0005201	\$ 7,888.00	Demurrage	Paid
21	8	IMP10-21-05839-02	P0004988	\$ 345.00	Per Diem	Paid
21	9	IMP10-21-06093-02	P0000731	\$ 4,910.00	Demurrage	Paid
21	10	IMP10-21-03815-03	P0004768	\$ 2,442.00	Per Diem	Paid
21	10	IMP10-21-07208-02	P0000686	\$ 1,538.70	Demurrage	Paid
21	10	IMP10-21-07209-02	P0001344	\$ 1,538.70	Demurrage	Paid
21	10	IMP10-21-07210-02	P0001138	\$ 791.85	Demurrage	Paid
21	10	IMP10-21-07210-03	P0001138	\$ 4,385.28	Demurrage	Paid
21	10	IMP10-21-07581-02	P0005405	\$ 791.85	Demurrage	Paid
21	10	IMP10-21-07581-03	P0005405	\$ 1,538.70	Demurrage	Paid
21	10	IMP10-21-07635-02	P0001232	\$ 4,995.75	Demurrage	Paid
21	10	US1210000985	P0001188	\$ 800.00	Demurrage	Paid
21	10	US1210000988	P0001269	\$ 1,389.00	Demurrage	Paid
21	10	US1210000989	P0001018	\$ 3,069.00	Demurrage	Paid
21	10	US1210001188	P0001019	\$ 4,800.00	Demurrage	Paid
21	10	US1210001189	P0001269	\$ 4,800.00	Demurrage	Paid
21	11	IMP10-21-06801-02	P0001347	\$ 2,133.87	Demurrage	On Hold
21	11	IMP10-21-06801-03	P0001347	\$ 1,422.58	Demurrage	On Hold
21	11	IMP10-21-06802-02	P0000714	\$ 4,844.89	Demurrage	On Hold
21	11	IMP10-21-07011-02	P0000687	\$ 2,133.87	Demurrage	On Hold
21	11	IMP10-21-07187-02	P0000720	\$ 5,168.30	Demurrage	On Hold
21	11	IMP10-21-07187-03	P0000720	\$ 3,161.30	Demurrage	On Hold
21	11	IMP10-21-07208-03	P0000686	\$ 8,459.59	Demurrage	On Hold
21	11	IMP10-21-07208-04	P0000686	\$ 3,614.69	Demurrage	On Hold
21	11	IMP10-21-07209-03	P0001344	\$ 8,459.59	Demurrage	On Hold
21	11	IMP10-21-07209-04	P0001344	\$ 3,614.69	Demurrage	On Hold
21	11	IMP10-21-07282-02	P0000695	\$ 3,037.55	Demurrage	On Hold
21	11	IMP10-21-07529-03	P0001890	\$ 2,173.48	Demurrage	On Hold
21	11	IMP10-21-07529-04	P0001890	\$ 1,190.24	Demurrage	On Hold
21	11	IMP10-21-07529-05	P0001890	\$ 543.37	Demurrage	On Hold
21	11	IMP10-21-07529-06	P0001890	\$ 2,250.00	Demurrage	On Hold
21	11	IMP10-21-07529-07	P0001890	\$ 2,399.50	Demurrage	On Hold
21	11	IMP10-21-07529-08	P0001890	\$ 584.50	Demurrage	On Hold
21	11	IMP10-21-07546-02	P0001889	\$ 2,173.48	Demurrage	On Hold
21	11	IMP10-21-07546-03	P0001889	\$ 1,190.24	Demurrage	On Hold
21	11	IMP10-21-07546-04	P0001889	\$ 543.37	Demurrage	On Hold
21	11	IMP10-21-07546-05	P0001889	\$ 2,328.74	Demurrage	On Hold
21	11	IMP10-21-07556-02	P0001893	\$ 1,630.11	Demurrage	On Hold
21	11	IMP10-21-07556-03	P0001893	\$ 543.37	Demurrage	On Hold
21	11	IMP10-21-07556-04	P0001893	\$ 675.00	Demurrage	On Hold
21	11	IMP10-21-07559-02	P0001255	\$ 2,173.48	Demurrage	On Hold
21	11	IMP10-21-07559-04	P0001255	\$ 543.37	Demurrage	On Hold
21	11	IMP10-21-07559-05	P0001255	\$ 2,328.74	Demurrage	On Hold
21	11	IMP10-21-07580-02	P0005404	\$ 8,459.59	Demurrage	On Hold
21	11	IMP10-21-07580-03	P0005404	\$ 3,614.69	Demurrage	On Hold
21	11	IMP10-21-07622-02	P0000713	\$ 8,459.59	Demurrage	On Hold
21	11	IMP10-21-07625-02	P0005406	\$ 8,459.59	Demurrage	On Hold
21	11	IMP10-21-07625-03	P0005406	\$ 3,614.69	Demurrage	On Hold
21	11	IMP10-21-07635-03	P0001232	\$ 782.00	Demurrage	On Hold

Year	Month	Service #	PO #	Invoice Amount	Invoice Type	Invoice Status
21	11	IMP10-21-07638-02	PO000891	\$ 1,422.58	Demurrage	On Hold
21	11	IMP10-21-07638-03	PO000891	\$ 8,459.59	Demurrage	On Hold
21	11	IMP10-21-07638-04	PO000891	\$ 3,614.69	Demurrage	On Hold
21	11	IMP10-21-07690-02	PO001766	\$ 2,173.48	Demurrage	On Hold
21	11	IMP10-21-07690-03	PO001766	\$ 1,190.24	Demurrage	On Hold
21	11	IMP10-21-07690-05	PO001766	\$ 2,775.00	Demurrage	On Hold
21	11	IMP10-21-07696-02	PO001767	\$ 2,173.48	Demurrage	On Hold
21	11	IMP10-21-07696-03	PO001767	\$ 1,190.24	Demurrage	On Hold
21	11	IMP10-21-07696-04	PO001767	\$ 343.37	Demurrage	On Hold
21	11	IMP10-21-07696-05	PO001767	\$ 2,775.00	Demurrage	On Hold
21	11	IMP10-21-07702-02	PO000713	\$ 3,614.69	Demurrage	On Hold
21	11	IMP10-21-07702-03	PO000713	\$ 3,244.43	Demurrage	On Hold
21	11	IMP10-21-07889-02	PO001352	\$ 1,341.47	Demurrage	On Hold
21	11	IMP10-21-07889-03	PO001352	\$ 7,680.00	Demurrage	On Hold
21	11	US1210001163	PO001017	\$ 21,179.50	Demurrage	On Hold
21	11	US1210004516	PO001326	\$ 2,052.00	Demurrage	On Hold
21	11	US1210004560	PO001326	\$ 3,279.50	Demurrage	On Hold
21	11	US1210005407	PO001755	\$ 483.05	Per Diem	On Hold
21	11	IMP10-21-09325-04	PO004788	\$ 793.85	Demurrage	On Hold
21	11	IMP10-21-09801-04	PO001347	\$ 1,538.71	Demurrage	On Hold
21	12	IMP10-21-06802-03	PO000714	\$ 793.85	Demurrage	On Hold
21	12	IMP10-21-06802-04	PO000714	\$ 2,893.57	Demurrage	On Hold
21	12	IMP10-21-08002-05	PO000714	\$ 1,538.71	Demurrage	On Hold
21	12	IMP10-21-07011-03	PO000687	\$ 793.85	Demurrage	On Hold
21	12	IMP10-21-07011-04	PO000687	\$ 5,295.00	Demurrage	On Hold
21	12	IMP10-21-07836-03	PO001387	\$ 7,265.00	Demurrage	On Hold
21	12	IMP10-21-07836-04	PO001387	\$ 3,795.00	Demurrage	On Hold
21	12	IMP10-21-07836-05	PO001387	\$ 5,422.00	Demurrage	On Hold
21	12	IMP10-21-07836-06	PO001387	\$ 3,795.00	Demurrage	On Hold
21	12	IMP10-21-07836-07	PO001387	\$ 1,889.97	Demurrage	On Hold
21	12	US1210000934	PO001188	\$ 3,002.33	Demurrage	On Hold
21	12	US1210000925	PO001019	\$ 4,800.00	Demurrage	On Hold
21	12	US1210001176	PO001018	\$ 2,076.75	Demurrage	On Hold
21	12	US1210001183	PO001896	\$ 2,076.75	Demurrage	On Hold
21	12	US1210001185	PO001143	\$ 2,076.75	Demurrage	On Hold
21	12	US1210001186	PO001768	\$ 1,435.90	Demurrage	On Hold
21	12	US1210001280	PO001286	\$ 3,425.00	Demurrage	On Hold
21	12	US1210001281	PO001286	\$ 800.00	Demurrage	On Hold
21	12	US1210001305	PO001322	\$ 5,925.00	Demurrage	On Hold
21	12	US1210001306	PO001322	\$ 603.87	Demurrage	On Hold
21	12	US1210001434	PO001735	\$ 3,657.00	Demurrage	On Hold
21	12	US1210001479	PO001735	\$ 3,657.00	Demurrage	On Hold
21	12	US1210001508	PO001389	\$ 5,849.40	Demurrage	On Hold
21	12	US1210001509	PO001147	\$ 3,225.00	Demurrage	On Hold
21	12	US1210001511	PO001147	\$ 3,225.00	Demurrage	On Hold
21	12	US1210001516	PO001896	\$ 3,225.00	Demurrage	On Hold
21	12	US1210001518	PO001768	\$ 3,225.00	Demurrage	On Hold
21	12	US1210001519	PO001735	\$ 1,290.00	Demurrage	On Hold
21	12	US1210002281	PO001350	\$ 3,565.00	Demurrage	On Hold
21	12	US1210002282	PO001189	\$ 1,290.00	Demurrage	On Hold
21	12	US1210002283	PO001185	\$ 1,335.00	Demurrage	On Hold
21	12	US1210002285	PO001172	\$ 800.00	Demurrage	On Hold
21	12	US1210002383	PO001017	\$ 3,480.00	Demurrage	On Hold
21	12	US1210002384	PO001325	\$ 1,935.00	Demurrage	On Hold
21	12	US1210003172	PO001896	\$ 1,935.00	Demurrage	On Hold
21	12	US1210003173	PO001143	\$ 1,935.00	Demurrage	On Hold
21	12	US1210003174	PO001768	\$ 1,935.00	Demurrage	On Hold
21	12	US1210003175	PO001775	\$ 6,450.00	Demurrage	On Hold
21	12	US1210003188	PO001322	\$ 1,600.00	Demurrage	On Hold
21	12	US1210003189	PO001325	\$ 4,000.00	Demurrage	On Hold
21	12	US1210003190	PO001322	\$ 1,858.25	Demurrage	On Hold
21	12	US1210003193	PO001255	\$ 1,858.25	Demurrage	On Hold
21	12	US1210003195	PO001768	\$ 4,827.50	Demurrage	On Hold
21	12	US1210003536	PO001352	\$ 2,502.25	Demurrage	On Hold
21	12	US1210003541	PO001185	\$ 2,782.35	Demurrage	On Hold
21	12	US1210003544	PO001189	\$ 4,278.75	Demurrage	On Hold
21	12	US1210003811	PO001185	\$ 1,518.25	Demurrage	On Hold
21	12	US1210003813	PO001350	\$ 1,518.25	Demurrage	On Hold
21	12	US1210003814	PO001147	\$ 2,711.02	Demurrage	On Hold
21	12	US1210003815	PO001172	\$ 1,518.25	Demurrage	On Hold
21	12	US1210003821	PO001389	\$ 5,422.04	Demurrage	On Hold
21	12	US1210003823	PO001326	\$ 903.67	Demurrage	On Hold
21	12	US1210003838	PO001189	\$ 2,445.00	Demurrage	On Hold
21	12	US1210003849	PO001172	\$ 2,445.00	Demurrage	On Hold
21	12	US1210003877	PO001185	\$ 2,445.00	Demurrage	On Hold
21	12	US1210003903	PO001263	\$ 3,195.00	Demurrage	On Hold
21	12	US1210003999	PO002246	\$ 3,279.50	Demurrage	On Hold
21	12	US1210005404	PO001758	\$ 3,279.50	Demurrage	On Hold
21	12	US1210005405	PO001758	\$ 3,279.50	Demurrage	On Hold
21	12	US1210005406	PO001758	\$ 1,415.25	Demurrage	On Hold
21	12	US1210005815	PO001802	\$ 1,415.25	Demurrage	On Hold
21	12	US1210005828	PO002246	\$ 1,424.75	Demurrage	On Hold
21	12	US1210005829	PO002246	\$ 1,424.75	Demurrage	On Hold
21	12	US1210005830	PO001758	\$ 1,424.75	Demurrage	On Hold
21	12	US1210005831	PO001756	\$ 2,574.50	Demurrage	On Hold
21	12	US1210006029	PO001616	\$ 2,574.50	Demurrage	On Hold
21	12	US1210006031	PO001817	\$ 2,574.50	Demurrage	On Hold

EXHIBIT – 9

SAMPLE SEAFRIGO INVOICES FOR PURCHASE ORDER 0001287

File updated with the extractions of the 6 invoices below + the actual invoices as PDF:

Year	Month	Seafrigo #	PO #	Invoice Amount		Invoice Type	Invoice Status
21	12	IMP10-21-07836-07	PO001287	\$	3,790.00	Demurrage	On Hold
21	12	IMP10-21-07836-06	PO001287	\$	5,422.00	Demurrage	On Hold
21	12	IMP10-21-07836-05	PO001287	\$	3,790.00	Demurrage	On Hold
21	12	IMP10-21-07836-04	PO001287	\$	7,266.00	Demurrage	On Hold
21	12	IMP10-21-07836-03	PO001287	\$	5,259.00	Demurrage	On Hold
21	11	IMP10-21-07836-02	PO001287	\$	3,234.43	Demurrage	On Hold
				\$	28,761.43		



INVOICE

BILL TO PARTY:		INVOICE DATE	INVOICE #
BAKERLY LLC 2600 S. DOUGLAS RD - STE 410 CORAL GABLES, FL 33134		11/05/2021	IMP10-21-07836-07
		TERMS	DUE DATE
		30 DAYS INVOICE DATE	12/05/2021
		SEAFRIGO FILE# / BOOKING#	YOUR CONTACT
		IMP10-21-07836	SAMUEL PELLOT s.pellot@seafrigo-usa.com
MASTER BL# / HOUSE BL #		VESSEL / FLIGHT	
HLCULE1210828922 E97921300000		AL SAFAT / 004W	
PORT OF LOADING / PORT OF DISCHARGE		REFERENCE NUMBER /	ENTRY NUMBER
LE HAVRE, FR NEW YORK, NY		1287	BLS-90218249
DEPARTURE DATE / ARRIVAL DATE		PIECES / WEIGHT (lbs) / DESCRIPTION	
08/30/21 09/28/21		1,680 / 14,369.58 FROZEN BAKERY	
SHIPPER / EXPORTER		IMPORTER / CONSIGNEE	
LA BOULANGERE & CO.		BAKERLY LLC	
CONTAINER NUMBER(S)		REMARKS / COMMENTS	
SEGU9388853\40RH			

DESCRIPTION OF CHARGES	CURRENCY	EXCHANGE RATE	CHARGE LINE	AMOUNT USD
DEMURRAGE	USD	1	3,790.00	3,790.00

TOTAL INVOICE AMOUNT: \$3,790.00

SEAFRIGO BANK INFORMATION	MAKE CHECK PAYABLE TO / REMITTANCE ADDRESS:
Santander ACCT# : 9997409973 ABA# : 231372691 SWIFT#: SVRNUS33	Seafrigo USA, Inc 735 Dowd Avenue Elizabeth NJ 07201

** Notice is hereby constituted under the truth in lending act that any accounts remaining unpaid after 10 days from the indicated terms are subject to 1.5% per month interest and collection costs, including attorney fees.

Payment Details

Method	Amount	Shipper Fee	Finance Fee	Total
Overnight	\$21,004.00	\$9.50	\$0.00	\$21,013.50

Transaction Overview

Paycargo Id	8740713
Type	Invoice
INVOICE NUMBER	See Remittance
MAHER CUSTOMER NUMBER	S2291
CONTAINER NUMBER	See Below
Vendor/Biller	Maher Terminal (1210 Corbin Elizabeth,NJ)
Payer	SEAFRIGO USA, INC.
Originator	SEAFRIGO USA, INC.
Direction	Inbound
Container Pickup Date	10/27/2021
Payment Date	10/26/2021
Has Arrived	Yes
Status	Approved
Approval Date	10/26/2021 4:34 PM EDT
Description	Container# Seafrigo Job# Terminal Amount HLXU6772913 CSFN21008538 MAHER \$6,397.00 LNXU8456240 CSFN21008561 MAHER \$6,397.00 EMCU5365375 8476394 MAHER \$1,320.00 EMCU5335391 8477577 MAHER \$1,320.00 SEGU9388853 IMP10-21-07836 MAHER \$3,790.00 TCLU1227281 CSFN21007993 MAHER \$1,780.00
Total Amount	\$21,004.00

Attachment Name	Description	Created	Carrier Viewable
10-27 Maher Guarantee.pdf		10/26/21	No

History

- Created by Melissa Curiel from SEAFRIGO USA, INC. on October 26, 2021 4:34 PM EDT
- Modified by Melissa Curiel from SEAFRIGO USA, INC. on October 26, 2021 4:34 PM EDT

If you ever have questions or concerns about your PayCargo account, please do not hesitate to call our Customer Service team at **1-888-250-7778** or e-mail us at support@paycargo.com

<u>Container#</u>	<u>Seafrigo Job#</u>	<u>Terminal</u>	<u>Amount</u>
HLXU6772913	CSFN21008538	MAHER	\$ 6,397.00
LN XU8456240	CSFN21008561	MAHER	\$ 6,397.00
EMCU5365375	8476394	MAHER	\$ 1,320.00
EMCU5335391	8477577	MAHER	\$ 1,320.00
SEGU9388853	IMP10-21-07836	MAHER	\$ 3,790.00
TCLU1227281	CSFN21007993	MAHER	\$ 1,780.00

RECEIVED

By Steve Lindor at 4:03 pm, Nov 03, 2021



SEAFRIGO USA INC

INVOICE

BILL TO PARTY:		INVOICE DATE	INVOICE #
BAKERLY LLC 2600 S. DOUGLAS RD - STE 410 CORAL GABLES, FL 33134		11/03/2021	IMP10-21-07836-06
		TERMS	DUE DATE
		30 DAYS INVOICE DATE	12/03/2021
		SEAFRIGO FILE# / BOOKING#	YOUR CONTACT
		IMP10-21-07836	SAMUEL PELLOT s.pellot@seafrigo-usa.com
MASTER BL# / HOUSE BL #		VESSEL / FLIGHT	
HLCULE1210828922 E97921300000		AL SAFAT / 004W	
PORT OF LOADING / PORT OF DISCHARGE		REFERENCE NUMBER / ENTRY NUMBER	
LE HAVRE, FR NEW YORK, NY		1287	BLS-90218249
DEPARTURE DATE / ARRIVAL DATE		PIECES / WEIGHT (lbs) / DESCRIPTION	
08/30/21 09/28/21		1,680 / 14,369.58 FROZEN BAKERY☐	
SHIPPER / EXPORTER		IMPORTER / CONSIGNEE	
LA BOULANGERE & CO.		BAKERLY LLC	
CONTAINER NUMBER(S)		REMARKS / COMMENTS	
SEGU9388853\40RH			

DESCRIPTION OF CHARGES	CURRENCY	EXCHANGE RATE	CHARGE LINE	AMOUNT USD
DEMURRAGE	USD	1	5,422.00	5,422.00

TOTAL INVOICE AMOUNT: \$5,422.00

SEAFRIGO BANK INFORMATION	MAKE CHECK PAYABLE TO / REMITTANCE ADDRESS:
Santander ACCT# : 9997409973 ABA# : 231372691 SWIFT#: SVRNUS33	Seafrigo USA, Inc 735 Dowd Avenue Elizabeth NJ 07201

** Notice is hereby constituted under the truth in lending act that any accounts remaining unpaid after 10 days from the indicated terms are subject to 1.5% per month interest and collection costs, including attorney fees.

RECEIVED

By Steve Lindor at 8:19 am, Oct 25, 2021



SEAFRIGO USA INC

INVOICE

BILL TO PARTY:	INVOICE DATE	INVOICE #
BAKERLY LLC 2600 S. DOUGLAS RD - STE 410 CORAL GABLES, FL 33134	10/24/2021	IMP10-21-07836-05
	TERMS	DUE DATE
	30 DAYS INVOICE DATE	11/23/2021
	SEAFRIGO FILE# / BOOKING#	YOUR CONTACT
	IMP10-21-07836	SAMUEL PELLOT s.pellot@seafrigo-usa.com
MASTER BL# / HOUSE BL #	VESSEL / FLIGHT	
HLCULE1210828922 E97921300000	AL SAFAT / 004W	
PORT OF LOADING / PORT OF DISCHARGE	REFERENCE NUMBER / ENTRY NUMBER	
LE HAVRE, FR NEW YORK, NY	1287 BLS-90218249	
DEPARTURE DATE / ARRIVAL DATE	PIECES / WEIGHT (lbs) / DESCRIPTION	
08/30/21 09/28/21	1,680 / 14,369.58 FROZEN BAKERY☐	
SHIPPER / EXPORTER	IMPORTER / CONSIGNEE	
LA BOULANGERE & CO.	BAKERLY LLC	
CONTAINER NUMBER(S)	REMARKS / COMMENTS	
SEGU9388853\40RH		

DESCRIPTION OF CHARGES	CURRENCY	EXCHANGE RATE	CHARGE LINE	AMOUNT USD
DEMURRAGE	USD	1	3,790.00	3,790.00

TOTAL INVOICE AMOUNT: \$3,790.00

SEAFRIGO BANK INFORMATION	MAKE CHECK PAYABLE TO / REMITTANCE ADDRESS:
Santander ACCT# : 9997409973 ABA# : 231372691 SWIFT#: SVRNUS33	Seafrigo USA, Inc 735 Dowd Avenue Elizabeth NJ 07201

** Notice is hereby constituted under the truth in lending act that any accounts remaining unpaid after 10 days from the indicated terms are subject to 1.5% per month interest and collection costs, including attorney fees.



INVOICE

BILL TO PARTY:	INVOICE DATE	INVOICE #
BAKERLY LLC 2600 S. DOUGLAS RD - STE 410 CORAL GABLES, FL 33134	10/19/2021	IMP10-21-07836-04
	TERMS	DUE DATE
	30 DAYS INVOICE DATE	11/18/2021
	SEAFRIGO FILE# / BOOKING#	YOUR CONTACT
	IMP10-21-07836	SAMUEL PELLOT s.pellot@seafrigo-usa.com
MASTER BL# / HOUSE BL #	VESSEL / FLIGHT	
HLCULE1210828922 E97921300000	AL SAFAT / 004W	
PORT OF LOADING / PORT OF DISCHARGE	REFERENCE NUMBER / ENTRY NUMBER	
LE HAVRE, FR NEW YORK, NY	1287 BLS-90218249	
DEPARTURE DATE / ARRIVAL DATE	PIECES / WEIGHT (lbs) / DESCRIPTION	
08/30/21 09/28/21	1,680 / 14,369.58 FROZEN BAKERY☐	
SHIPPER / EXPORTER	IMPORTER / CONSIGNEE	
LA BOULANGERE & CO.	BAKERLY LLC	
CONTAINER NUMBER(S)	REMARKS / COMMENTS	
SEGU9388853\40RH		

DESCRIPTION OF CHARGES	CURRENCY	EXCHANGE RATE	CHARGE LINE	AMOUNT USD
DEMURRAGE	USD	1	7,266.00	7,266.00

TOTAL INVOICE AMOUNT: \$7,266.00

SEAFRIGO BANK INFORMATION	MAKE CHECK PAYABLE TO / REMITTANCE ADDRESS:
Santander ACCT# : 9997409973 ABA# : 231372691 SWIFT#: SVRNUS33	Seafrigo USA, Inc 735 Dowd Avenue Elizabeth NJ 07201

** Notice is hereby constituted under the truth in lending act that any accounts remaining unpaid after 10 days from the indicated terms are subject to 1.5% per month interest and collection costs, including attorney fees.



INVOICE

BILL TO PARTY:		INVOICE DATE	INVOICE #
BAKERLY LLC 2600 S. DOUGLAS RD - STE 410 CORAL GABLES, FL 33134		10/14/2021	IMP10-21-07836-03
		TERMS	DUE DATE
		30 DAYS INVOICE DATE	11/13/2021
		SEAFRIGO FILE# / BOOKING#	YOUR CONTACT
		IMP10-21-07836	SAMUEL PELLOT s.pellot@seafrigo-usa.com
MASTER BL# / HOUSE BL #		VESSEL / FLIGHT	
HLCULE1210828922 E97921300000		AL SAFAT / 004W	
PORT OF LOADING / PORT OF DISCHARGE		REFERENCE NUMBER / ENTRY NUMBER	
LE HAVRE, FR NEW YORK, NY		1287 BLS-90218249	
DEPARTURE DATE / ARRIVAL DATE		PIECES / WEIGHT (lbs) / DESCRIPTION	
08/30/21 09/28/21		1,680 / 14,369.58 FROZEN BAKERY	
SHIPPER / EXPORTER		IMPORTER / CONSIGNEE	
LA BOULANGERE & CO.		BAKERLY LLC	
CONTAINER NUMBER(S)		REMARKS / COMMENTS	
SEGU9388853\40RH			

DESCRIPTION OF CHARGES	CURRENCY	EXCHANGE RATE	CHARGE LINE	AMOUNT USD
DEMURRAGE	USD	1	5,214.00	5,214.00
ADMIN FEES	USD	1	45.00	45.00

TOTAL INVOICE AMOUNT: \$5,259.00

SEAFRIGO BANK INFORMATION	MAKE CHECK PAYABLE TO / REMITTANCE ADDRESS:
Santander ACCT# : 9997409973 ABA# : 231372691 SWIFT#: SVRNUS33	Seafrigo USA, Inc 735 Dowd Avenue Elizabeth NJ 07201

** Notice is hereby constituted under the truth inlending act that any accounts remaining unpaid after 10 days from the indicated terms are subject to 1.5% per month interest and collection costs, including attorney fees.

RECEIVED

By Steve Lindor at 10:16 am, Oct 08, 2021

PIN016091

REVIEWED

By Jessica Zuccaro at 12:00 pm, Oct 09, 2021



SEAFRIGO USA INC

Rejected

Lack of drivers.

PCM000432

INVOICE

BILL TO PARTY:		INVOICE DATE	INVOICE #
BAKERLY LLC		10/08/2021	IMP10-21-07836-02
2600 S. DOUGLAS RD - STE 410		TERMS	DUE DATE
CORAL GABLES, FL 33134		30 DAYS INVOICE DATE	11/07/2021
		SEAFRIGO FILE# / BOOKING#	YOUR CONTACT
		IMP10-21-07836	SAMUEL PELLOT s.pellot@seafrigo-usa.com
MASTER BL# / HOUSE BL #		VESSEL / FLIGHT	
HLCULE1210828922 E97921300000		AL SAFAT / 004W	
PORT OF LOADING / PORT OF DISCHARGE		REFERENCE NUMBER / ENTRY NUMBER	
LE HAVRE NEW YORK, NY		1287 BLS-90218249	
DEPARTURE DATE / ARRIVAL DATE		PIECES / WEIGHT (lbs) / DESCRIPTION	
08/30/21 09/28/21		1,680 / 14,369.58 FROZEN BAKERY☐	
SHIPPER / EXPORTER		IMPORTER / CONSIGNEE	
LA BOULANGERE & CO.		BAKERLY LLC	
CONTAINER NUMBER(S)		REMARKS / COMMENTS	
SEGU9388853\40RH			

DESCRIPTION OF CHARGES	CURRENCY	EXCHANGE RATE	CHARGE LINE	AMOUNT USD
DEMURRAGE	USD	1	3,037.55	3,037.55
ADMIN FEES	USD	1	45.00	45.00
FINANCE FEE 5%	USD	1	151.88	151.88

TOTAL INVOICE AMOUNT: \$3,234.43

SEAFRIGO BANK INFORMATION	MAKE CHECK PAYABLE TO / REMITTANCE ADDRESS:
Santander ACCT# : 9997409973 ABA# : 231372691 SWIFT#: SVRNUS33	Seafrigo USA, Inc 735 Dowd Avenue Elizabeth NJ 07201

** Notice is hereby constituted under the truth in lending act that any accounts remaining unpaid after 10 days from the indicated terms are subject to 1.5% per month interest and collection costs, including attorney fees.

EXHIBIT 5

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-17

BAKERLY, LLC

COMPLAINANT,

v.

SEAFRIGO USA INC.

RESPONDENT.

RESPONDENT'S FIRST SET OF INTERROGATORIES

Respondent Seafrigo USA Inc. ("Seafrigo" or "Respondent") hereby demands that Complainant, Bakerly, LLC ("Bakerly") in accordance with 46 CFR §502.145, to answer fully in writing, under oath, the interrogatories set forth below within 30 days and to provide same to Respondent's counsel.

INSTRUCTIONS

1. Each interrogatory shall be construed to include all information within your possession, custody or control or in the the possession, custody or control of any third party agent of you, as of the date of your response to interrogatories, as well as any information that subsequently is obtained or discovered and that demonstrates that any answer originally provided in response to these interrogatories was incorrect or incomplete in any way when made or subsequently became incorrect or incomplete, such supplemental responses to be promptly supplied.

2. If the interrogatory response consists, in whole or in part, of an objection to or including burdensomeness, then provide the information which can be produced.

3. To the extent that you believe that any of the interrogatories seek privileged information, produce so much of such responses as would not violate the privilege and, as to each interrogatory that you claim seeks privileged information, provide the basis for your claim of privilege. Please provide a privilege log describing the information over which you claim a privilege.

4. If the response to the interrogatory is any other objection, provide all information not covered by the objection and state the basis of the objection.

5. If any document responsive to the interrogatory has been destroyed, for each such document state when it was destroyed, identify the person who destroyed the document and the person who directed that it be destroyed. Additionally, detail the reasons for the destruction, describe the nature of the document, identify the persons who created, sent, received, or reviewed the document and state in as much detail as possible the contents of the document.

6. These interrogatories are continuing in nature, requiring a supplemental response and production when new, different or clarifying information comes into the possession of you or your counsel.

7. Electronically stored information is to be produced in native format, unless otherwise agreed between counsel or unless such information could not be retrieved or accessed with the use of commonly used commercial off-the-shelf software, in which event counsel is requested to contact the undersigned to discuss the form of production. In addition, it is requested that all electronically stored information be produced as .TIFF images with Relativity load files (.DAT and .OPT) and searchable text (*i.e.*, OCR).

8. Unless otherwise specified the timer period for which documents are sought shall be between July 1, 2020 and the present.

DEFINITIONS

1. The word “document” or “documents” refers to all materials subject to discovery under 46 CFR §502.146, including but not limited to any printed, written, taped, recorded, graphic, computerized print-out, or other tangible matter, as well as electronically stored information and other data or data compilations stored in any medium, from whatever source, however produced or reproduced, whether in draft or otherwise, whether sent or received, or neither, including, but not limited to, the original, a copy (if the original is not available) and all non-identical copies (whether different from the original because of notes made on or attached to such copy or otherwise) of any and all writings, correspondence, letters, telegrams, cables, contracts, proposals, agreements, minutes, notes, requisitions, memoranda, analyses, projections, work papers, books, papers, records, reports, diaries, statements, questionnaires, books of account, calendars, graphs, charts, transcripts, ledgers, registers, worksheets, summaries, digests, financial statements, data sheets, data processing cards, disks, data processing files, tapes and other compilations from which information can be obtained or translated, computer print-outs, computer readable materials, and all other information or data, records or compilations, including all underlying supporting or preparatory material now in your possession, custody or control, or available to you, your counsel, accountants, agents, representatives or associates. “Document” or “documents” specifically includes documents kept by individuals in their desks, at home, or elsewhere.

2. When asked to “identify” or “for the identity” of any natural person, set forth (i) the full name and present or last-known business or residence address of such person; (ii) his or

her present or last-known business affiliation; (iii) his or her present telephone number, with the area code prefix; and (iv) his or her position and business affiliation, including a description of his or her duties or responsibilities at the time of or during the period in question.

3. When asked to “identify” or “for the identity” of any entity other than a natural person, set forth its (i) full name or title; (ii) address, telephone number with area code prefix; (iii) date and jurisdiction under the laws of which it was organized or incorporated, or, in the case of any entity other than a corporation, state the type of organization, the names of its members, and the date and place of its organization; and (iv) the identity of all persons who acted or who authorized another to act on its behalf in connection with the matters referred to.

4. When asked to “identify” or “for the identity” of a document, you are required to furnish a copy of each such document in lieu of identifying the same. When furnishing a copy of a document, specify the request being answered in this manner, and identify the document so supplied to show the request to which the document relates. If a copy of a particular document is not available, then set forth: (i) its date and general type of category (i.e., letter, contract, memorandum); (ii) the identity of its author and each person who aided or assisted in its preparation, including persons who contributed information contained in or submitted for use in such document; (iii) the identity of each addressee and other distributee to whom the document was directed, distributed and by whom it was received, read or both; (iv) the identity of its last-known location or custodian; (v) the reason or reasons for the inability to locate such document and the circumstances of its unavailability; (vi) if the document is no longer in your possession or control and the circumstances of its disposition are known, set forth the date and circumstances of the disposition thereof, as well as the identity of the person or entity to whom custody or possession was given; and (vii) its subject matter and substance.

5. The term “person” or “persons” means a natural person, firm, proprietorship, association, partnership, corporation or any other type of organization or entity.

6. The term “communicate” or “communication” means any manner or form of information or message transmission, however produced or reproduced, whether by “document” as herein defined or orally or otherwise, which is made, distributed or circulated between or among persons, or data storage or processing units, and any and all documents containing, consisting of, or relating or referring to in any way, either directly or indirectly, to a communication.

7. As used herein, the singular form of a noun or pronoun shall be considered to include within its meaning the plural form of the noun or pronoun so used, and vice versa; and the use of any tense of any verb shall be considered to include also within its meaning all other tenses of the verb so used.

8. The term “and” or “or” at all times means “and/or.”

9. The terms “relating to” and “concerning” mean concerning, embodying, considering, mentioning, respecting, bearing on, referring to or addressed, in whole or in part, to that subject.

10. The terms defined above for each of the parties shall have such meanings in these requests.

11. The term “You,” “you,” and “Your,” shall mean and refer to Bakerly and all agents, employees, principals, officers, directors, representatives, subsidiaries, affiliates, related companies, predecessor companies, attorneys and/or all persons purporting to act on its behalf.

12. “Seafrigo” shall mean and refer to Seafrigo USA Inc. and all agents, employees, principals, officers, directors, representatives, subsidiaries, affiliates, related companies, predecessor companies, attorneys and/or all persons purporting to act on its behalf.

13. The term “Proceeding” means and refers to the above-captioned matter.

14. The term “Complaint” refers to the Complaint filed in this Proceeding.

SPECIFIC REQUESTS

1. Identify all persons with knowledge and/or information relating to the matters set forth in the Complaint. For each such person whom you identify, state the specific matter or claim about which he or she has knowledge and/or information and provide their contact information.

2. Identify all persons with knowledge and/or information relating to the matters set forth in your Initial Disclosures. For each such person whom you identify, state the specific matter or claim about which he or she has knowledge and/or information and provide their contact information.

3. Provide a detailed description of all reasons why Bakerly has not paid Seafrigo invoices containing freight charges.

4. State all reasons why Bakerly has not paid Seafrigo invoices as they came due.

5. Provide a detailed description of all reasons why Bakerly terminated its relationship with Lineage PA.

6. Provide detailed description of all inadequacies identified by Bakerly in regard to the warehousing services provided by Lineage PA.

7. Provide a detailed description of all detention, demurrage, storage or per diem charges resulting from inadequacies in the warehousing services provided by Lineage PA.

8. Identify the method of calculations and calculations made by Bakerly in determining the amount of detention, demurrage, storage or per diem charges resulting from inadequacies in the warehousing services provided by Lineage PA.

9. Provide detailed description of all inadequacies identified by Bakerly in regard to the warehousing services provided by other Bakerly warehouseurs.

10. Provide a detailed description of all detention, demurrage, storage or per diem or charges resulting from inadequacies in the warehousing services provided by other Bakerly warehouseurs.

11. Identify the method of calculations and calculations made by Bakerly in determining the amount of detention, demurrage, storage or per diem charges resulting from inadequacies in the warehousing services provided by other Bakerly warehouseurs.

12. Provide a detailed description of all detention, demurrage, storage or per diem charges you assert resulted from the port closures related to New York snowstorms.

13. Identify the method of calculations and calculations made by Bakerly in determining that \$361,278.54 in detention, demurrage or storage charges resulted from the port closures related to New York snowstorms.

14. Identify every instance in which Bakerly was unable to accept or store goods that were in transit.

15. Provide a detailed description of all the reasons for every instance in which Bakerly was unable to accept or store goods that were in transit.

16. Identify every instance in which Bakerly delayed or did not ship goods due to an inability to take delivery of such goods.

17. Provide a detailed description of all the reasons for every instance in which Bakerly delayed or did not ship goods due to an inability to take delivery of such goods.
18. Identify every instance in which Bakerly was unable to empty containers in its possession in order to avoid detention, per diem or storage charges from accruing.
19. Provide a detail description of all the reasons for every instance that Bakerly was unable to empty containers in its possession in order to avoid detention, per diem or storage charges from accruing.
20. Identify all instances in which Bakerly incurred demurrage, detention, per diem or storage charges as result of port or terminal congestion.
21. Provide a detailed description of all the reasons for every instance in which Bakerly incurred demurrage, detention, per diem or storage charges as result of port or terminal congestion.
22. Identify all instances in which Bakerly incurred demurrage, detention, per diem or storage charges as a result of an inadequate supply of chassis.
23. Provide a detailed description of all the reasons for every instance in which Bakerly incurred demurrage, detention, per diem or storage charges as a result of an inadequate supply of chassis.
24. Identify all instances in which truckers or drayage providers had trouble scheduling appointments with Linden PA.
25. Provide a detailed description of all the reasons for every instance in which truckers or drayage providers had trouble scheduling appointments with Linden PA.
26. Identify all instances in which truckers or drayage providers had trouble scheduling appointments with other Bakerly warehousers.

27. Provide a detailed description of all the reasons for every instance in which truckers or drayage providers had trouble scheduling appointments with other Bakerly warehousemen.
28. Identify all other transportation providers that Bakerly used during the relevant time period.
29. Identify all detention, demurrage, storage or per diem charges that accrued during periods when using other transportation providers.
30. Identify when Bakerly first learned that Seafrigo was advancing funds on its behalf to terminals or VOCCs.
31. Identify whether Bakerly ever informed Seafrigo that it should not advance funds on its behalf to terminals or VOCCs.
32. Identify all persons who provided information in answering these Interrogatories, specifying who provided answers to specific Interrogatories.

Respectfully Submitted,



Brendan Collins
GKG LAW, P.C.
The Foundry Building
1055 Thomas Jefferson Street NW
Suite 620
Washington, DC 20007
Telephone: 202-342-6793
Facsimile: 202-342-5219
Email: bcollins@gkglaw.com

Attorneys for Seafrigo USA Inc.

Dated: September 26, 2022

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-17

BAKERLY, LLC

COMPLAINANT,

v.

SEAFRIGO USA INC.

RESPONDENT.

RESPONDENT'S FIRST SET OF DOCUMENT REQUESTS

In accordance with 46 CFR §502.146, Respondent Seafrigo USA Inc. ("Seafrigo" or "Respondent") hereby demands that Complainant, Bakerly, LLC ("Bakerly") produce all documents and things described below in the document requests within 30 days at the offices of Respondent's counsel.

INSTRUCTIONS

1. Each production request shall be construed to include all documents or things within your possession, custody or control or the possession, custody or control of any third party agent of you, as of the date of your response to these production requests as well as any document that subsequently is obtained or discovered and that demonstrates that any production originally provided in response to these production requests was incorrect or incomplete in any way when made or subsequently became incorrect or incomplete, such supplemental documents to be promptly supplied.

2. If the response to any production request consists, in whole or in part, of an objection to or including burdensomeness, then provide those documents which can be produced without undue burden. For such documents that are too burdensome to produce, describe the process or method required to obtain said documents, the quantity and location of the documents involved, and the number of employee hours and costs of the search.

3. To the extent that you believe that any of the documents requested contain privileged information, produce so much of such documents and each part thereof, as would not violate the privilege and, as to each such document that you claim is privileged, provide the basis for your claim of privilege. Please provide a privilege log describing the document over which you claim a privilege, the date on which it was created, sent, received, or reviewed, and the person(s) who created, sent, received, or reviewed that document.

4. If the response to this request is any other objection, provide all information not covered by the objection and state the basis of the objection.

5. If any document responsive to these production requests has been destroyed, for each such document state when it was destroyed, identify the person who destroyed the document and the person who directed that it be destroyed. Additionally, detail the reasons for the destruction, describe the nature of the document, identify the persons who created, sent, received, or reviewed the document and state in as much detail as possible the contents of the document.

6. In producing the documents called for herein, segregate the documents so as to identify the numbered request to which the document responds.

7. This request is continuing in nature, requiring a supplemental response and production when new, different or clarifying information comes into the possession of you or your counsel.

8. Electronically stored information is to be produced in native format, unless otherwise agreed between counsel or unless such information could not be retrieved or accessed with the use of commonly used commercial off-the-shelf software, in which event counsel is requested to contact the undersigned to discuss the form of production. In addition, it is requested that all electronically stored information be produced as .TIFF images with Relativity load files (.DAT and .OPT) and searchable text (i.e., OCR).

9. Unless otherwise specified the timer period for which documents are sought shall be between July 1, 2020 and the present.

DEFINITIONS

1. The word “document” or “documents” refers to all materials subject to discovery under 46 CFR §502.146, including but not limited to any printed, written, taped, recorded, graphic, computerized print-out, or other tangible matter, as well as electronically stored information and other data or data compilations stored in any medium, from whatever source, however produced or reproduced, whether in draft or otherwise, whether sent or received, or neither, including, but not limited to, the original, a copy (if the original is not available) and all non-identical copies (whether different from the original because of notes made on or attached to such copy or otherwise) of any and all writings, correspondence, letters, telegrams, cables, contracts, proposals, agreements, minutes, notes, requisitions, memoranda, analyses, projections, work papers, books, papers, records, reports, diaries, statements, questionnaires, books of account, calendars, graphs, charts, transcripts, ledgers, registers, worksheets, summaries, digests,

financial statements, data sheets, data processing cards, disks, data processing files, tapes and other compilations from which information can be obtained or translated, computer print-outs, computer readable materials, and all other information or data, records or compilations, including all underlying supporting or preparatory material now in your possession, custody or control, or available to you, your counsel, accountants, agents, representatives or associates. “Document” or “documents” specifically includes documents kept by individuals in their desks, at home, or elsewhere.

2. When asked to “identify” or “for the identity” of any natural person, set forth (i) the full name and present or last-known business or residence address of such person; (ii) his or her present or last-known business affiliation; (iii) his or her present telephone number, with the area code prefix; and (iv) his or her position and business affiliation, including a description of his or her duties or responsibilities at the time of or during the period in question.

3. When asked to “identify” or “for the identity” of any entity other than a natural person, set forth its (i) full name or title; (ii) address, telephone number with area code prefix; (iii) date and jurisdiction under the laws of which it was organized or incorporated, or, in the case of any entity other than a corporation, state the type of organization, the names of its members, and the date and place of its organization; and (iv) the identity of all persons who acted or who authorized another to act on its behalf in connection with the matters referred to.

4. When asked to “identify” or “for the identity” of a document, you are required to furnish a copy of each such document in lieu of identifying the same. When furnishing a copy of a document, specify the request being answered in this manner, and identify the document so supplied to show the request to which the document relates. If a copy of a particular document is not available, then set forth: (i) its date and general type of category (*i.e.*, letter, contract,

memorandum); (ii) the identity of its author and each person who aided or assisted in its preparation, including persons who contributed information contained in or submitted for use in such document; (iii) the identity of each addressee and other distributee to whom the document was directed, distributed and by whom it was received, read or both; (iv) the identity of its last-known location or custodian; (v) the reason or reasons for the inability to locate such document and the circumstances of its unavailability; (vi) if the document is no longer in your possession or control and the circumstances of its disposition are known, set forth the date and circumstances of the disposition thereof, as well as the identity of the person or entity to whom custody or possession was given; and (vii) its subject matter and substance.

5. The term “person” or “persons” means a natural person, firm, proprietorship, association, partnership, corporation or any other type of organization or entity.

6. The term “communicate” or “communication” means any manner or form of information or message transmission, however produced or reproduced, whether by “document” as herein defined or orally or otherwise, which is made, distributed or circulated between or among persons, or data storage or processing units, and any and all documents containing, consisting of, or relating or referring to in any way, either directly or indirectly, to a communication.

7. As used herein, the singular form of a noun or pronoun shall be considered to include within its meaning the plural form of the noun or pronoun so used, and vice versa; and the use of any tense of any verb shall be considered to include also within its meaning all other tenses of the verb so used.

8. The term “and” or “or” at all times means “and/or.”

9. The terms “relating to” and “concerning” mean concerning, embodying, considering, mentioning, respecting, bearing on, referring to or addressed, in whole or in part, to that subject.

10. The terms defined above for each of the parties shall have such meanings in these requests.

11. The term “You,” “you,” and “Your,” shall mean and refer to Bakerly and all agents, employees, principals, officers, directors, representatives, subsidiaries, affiliates, related companies, predecessor companies, attorneys and/or all persons purporting to act on its behalf.

12. “Seafrigo” shall mean and refer to Seafrigo USA Inc. and all agents, employees, principals, officers, directors, representatives, subsidiaries, affiliates, related companies, predecessor companies, attorneys and/or all persons purporting to act on its behalf.

13. The term “Proceeding” means and refers to the above-captioned matter.

14. The term “Complaint” refers to the Complaint filed in this Proceeding.

SPECIFIC REQUESTS

1. All documents or things identified in, or required to be identified in, Your Initial Disclosures.

2. All invoices between Bakerly and Seafrigo.

3. All communications between Bakerly and Seafrigo regarding Seafrigo’s invoices.

4. All communications between Bakerly and Seafrigo regarding demurrage, detention or per diem charges.

5. All communications regarding Seafrigo making advances to terminal operators or common carriers on behalf of Bakerly.

6. All communications regarding Bakerly failing to pay Seafrigo's invoices causing cash flow issues for Seafrigo.
7. All agreements or contracts between Bakerly and Seafrigo.
8. All communications regarding credit agreements offered by Seafrigo.
9. All documents relating to congestion at ports or terminals in 2021 or 2022.
10. All documents relating to shortages of chassis in 2021 or 2022.
11. All documents relating to obtaining support from Bakerly on deliveries.
12. All documents relating to high volumes of containers on vessels.
13. All documents related to port closures due to New York snowstorms.
14. All documents related to charges that accrued due to port closures resulting from New York snowstorms.
15. All documents relating to Bakerly's warehousing system.
16. All documents relating to Bakerly being unable to accept or store goods that were in transit.
17. All documents relating to Bakerly requesting that goods not be shipped due to storage issues.
18. All documents relating to Bakerly being unable to accept or store goods at its warehouses.
19. All documents relating to Bakerly being unable to timely unload containers at its warehouses.
20. All documents relating to Bakerly terminating its relationship with Lineage PA.
21. All documents relating to the reason Lineage PA relationship with Bakerly was terminated.

22. All documents relating to storage of goods at or by Preferred Freezer Linden or Bakerly Barn.
23. All documents relating to truckers or drayage providers having trouble scheduling appointments with Bakerly warehouse users.
24. All documents related to demurrage, detention or per diem charges accruing as result of being unable to store goods.
25. All documents relating to deliveries to the Linden, Pennsylvania area.
26. All documents relating to Bakerly using alternate transportation providers instead of Seafrigo.
27. All documents related to negotiations with CEVA for transportation services.
28. All documents related to shipments handled by CEVA on behalf of Bakerly.
29. All documents related to DWELL times.
30. All documents relating to Seafrigo passing through charges assessed by terminal operators or common carriers.
31. All communications regarding Seafrigo's bill of lading terms and conditions or its tariff.
32. All documents related to unpaid freight invoices.
33. All communications regarding the number of truckers available to transport goods in 2021 and/or 2022.
34. All documents relating to shipping forecasts, including but not limited to, timing, volume and costs of moving cargo.

Respectfully Submitted,



Brendan Collins
GKG LAW, P.C.
The Foundry Building
1055 Thomas Jefferson Street NW
Suite 620
Washington, DC 20007
Telephone: 202-342-6793
Facsimile: 202-342-5219
Email: bcollins@gkglaw.com

Attorneys for Seafrigo USA Inc.

Dated: September 26, 2022

EXHIBIT 6

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-17

BAKERLY, LLC

COMPLAINANT,

v.

SEAFRIGO USA INC.

RESPONDENT.

**COMPLAINANT'S RESPONSES TO
RESPONDENT'S FIRST SET OF INTERROGATORIES**

Under 46 CFR § 502.145, Complainant, Bakerly, LLC (Bakerly) provides the following responses to Respondent Seafrigo USA Inc.'s (Seafrigo) interrogatories.

INSTRUCTIONS

1. Each interrogatory shall be construed to include all information within your possession, custody or control or in the the possession, custody or control of any third party agent of you, as of the date of your response to interrogatories, as well as any information that subsequently is obtained or discovered and that demonstrates that any answer originally provided in response to these interrogatories was incorrect or incomplete in any way when made or subsequently became incorrect or incomplete, such supplemental responses to be promptly supplied.

2. If the interrogatory response consists, in whole or in part, of an objection to or including burdensomeness, then provide the information which can be produced.

3. To the extent that you believe that any of the interrogatories seek privileged information, produce so much of such responses as would not violate the privilege and, as to each interrogatory that you claim seeks privileged information, provide the basis for your claim of privilege. Please provide a privilege log describing the information over which you claim a privilege.

4. If the response to the interrogatory is any other objection, provide all information not covered by the objection and state the basis of the objection.

5. If any document responsive to the interrogatory has been destroyed, for each such document state when it was destroyed, identify the person who destroyed the document and the person who directed that it be destroyed. Additionally, detail the reasons for the destruction, describe the nature of the document, identify the persons who created, sent, received, or reviewed the document and state in as much detail as possible the contents of the document.

6. These interrogatories are continuing in nature, requiring a supplemental response and production when new, different or clarifying information comes into the possession of you or your counsel.

7. Electronically stored information is to be produced in native format, unless otherwise agreed between counsel or unless such information could not be retrieved or accessed with the use of commonly used commercial off-the-shelf software, in which event counsel is requested to contact the undersigned to discuss the form of production. In addition, it is requested that all electronically stored information be produced as .TIFF images with Relativity load files (.DAT and .OPT) and searchable text (*i.e.*, OCR).

8. Unless otherwise specified the timer period for which documents are sought shall be between July 1, 2020 and the present.

DEFINITIONS

1. The word “document” or “documents” refers to all materials subject to discovery under 46 CFR §502.146, including but not limited to any printed, written, taped, recorded, graphic, computerized print-out, or other tangible matter, as well as electronically stored information and other data or data compilations stored in any medium, from whatever source, however produced or reproduced, whether in draft or otherwise, whether sent or received, or neither, including, but not limited to, the original, a copy (if the original is not available) and all non-identical copies (whether different from the original because of notes made on or attached to such copy or otherwise) of any and all writings, correspondence, letters, telegrams, cables, contracts, proposals, agreements, minutes, notes, requisitions, memoranda, analyses, projections, work papers, books, papers, records, reports, diaries, statements, questionnaires, books of account, calendars, graphs, charts, transcripts, ledgers, registers, worksheets, summaries, digests, financial statements, data sheets, data processing cards, disks, data processing files, tapes and other compilations from which information can be obtained or translated, computer print-outs, computer readable materials, and all other information or data, records or compilations, including all underlying supporting or preparatory material now in your possession, custody or control, or available to you, your counsel, accountants, agents, representatives or associates. “Document” or “documents” specifically includes documents kept by individuals in their desks, at home, or elsewhere.

2. When asked to “identify” or “for the identity” of any natural person, set forth (i) the full name and present or last-known business or residence address of such person; (ii) his or her present or last-known business affiliation; (iii) his or her present telephone number, with the area code prefix; and (iv) his or her position and business affiliation, including a description of his or her duties or responsibilities at the time of or during the period in question.

3. When asked to “identify” or “for the identity” of any entity other than a natural person, set forth its (i) full name or title; (ii) address, telephone number with area code prefix; (iii) date and jurisdiction under the laws of which it was organized or incorporated, or, in the case of any entity other than a corporation, state the type of organization, the names of its members, and the date and place of its organization; and (iv) the identity of all persons who acted or who authorized another to act on its behalf in connection with the matters referred to.

4. When asked to “identify” or “for the identity” of a document, you are required to furnish a copy of each such document in lieu of identifying the same. When furnishing a copy of a document, specify the request being answered in this manner, and identify the document so supplied to show the request to which the document relates. If a copy of a particular document is not available, then set forth: (i) its date and general type of category (i.e., letter, contract, memorandum); (ii) the identity of its author and each person who aided or assisted in its preparation, including persons who contributed information contained in or submitted for use in such document; (iii) the identity of each addressee and other distributee to whom the document was directed, distributed and by whom it was received, read or both; (iv) the identity of its last-known location or custodian; (v) the reason or reasons for the inability to locate such document and the circumstances of its unavailability; (vi) if the document is no longer in your possession or control and the circumstances of its disposition are known, set forth the date and circumstances of the disposition thereof, as well as the identity of the person or entity to whom custody or possession was given; and (vii) its subject matter and substance.

5. The term “person” or “persons” means a natural person, firm, proprietorship, association, partnership, corporation or any other type of organization or entity.

6. The term “communicate” or “communication” means any manner or form of information or message transmission, however produced or reproduced, whether by “document” as herein defined or orally or otherwise, which is made, distributed or circulated between or among persons, or data storage or processing units, and any and all documents containing, consisting of, or relating or referring to in any way, either directly or indirectly, to a communication.

7. As used herein, the singular form of a noun or pronoun shall be considered to include within its meaning the plural form of the noun or pronoun so used, and vice versa; and the use of any tense of any verb shall be considered to include also within its meaning all other tenses of the verb so used.

8. The term “and” or “or” at all times means “and/or.”

9. The terms “relating to” and “concerning” mean concerning, embodying, considering, mentioning, respecting, bearing on, referring to or addressed, in whole or in part, to that subject.

10. The terms defined above for each of the parties shall have such meanings in these requests.

11. The term “You,” “you,” and “Your,” shall mean and refer to Bakerly and all agents, employees, principals, officers, directors, representatives, subsidiaries, affiliates, related companies, predecessor companies, attorneys and/or all persons purporting to act on its behalf.

12. “Seafrigo” shall mean and refer to Seafrigo USA Inc. and all agents, employees, principals, officers, directors, representatives, subsidiaries, affiliates, related companies, predecessor companies, attorneys and/or all persons purporting to act on its behalf.

13. The term “Proceeding” means and refers to the above-captioned matter.

14. The term “Complaint” refers to the Complaint filed in this Proceeding.

COMPLAINANT'S PRELIMINARY STATEMENT

1. Complainant objects to demands to the extent that they call for the production of “any,” “all” or “each” of a category of documents or information. Such requests place an impossible burden on the Complainant, which is far beyond that imposed by the Federal Rules of Civil Procedure. It is impossible to represent, even after diligent search, that all, each or every document or thing falling within a description can be or has been located. Documents may be kept in a myriad of locations or files. Many people may have handled them. They may have been moved frequently and may have been arranged, rearranged or reordered. Documents may have been lost or may have been part of materials disposed of in accordance with a record retention program. Individuals with discrete knowledge relative to the existence or storage of documents may have left the company, taking that knowledge with them. Therefore, Complainant cannot warrant or represent that it has produced each or all or every document or thing of a type requested, only that they have produced those which they could locate after a reasonably diligent search. Any further requirement is objected to as unduly burdensome.

2. Complainant objects to demands to the extent that the information and documents sought are overly broad, oppressive or unduly burdensome or are protected from disclosure through: (i) the attorney-client privilege; and/or (ii) the attorney work product doctrine; and/or (iii) another applicable privilege; (iv) seek information prepared in anticipation of litigation or for trial; or (v) are otherwise beyond the permissible scope of discovery.

3. Complainant objects to demands to the extent that they (a) seek information outside Complainant's knowledge; (b) call for information without limitation as to relevant and reasonable time periods; (c) call for speculation, conjecture or opinions as to what might be possible; (d)

contain instructions or definitions that are vague, ambiguous or assume the truth of alleged and disputed facts; and (e) conflict with the applicable Federal Rules of Civil Procedure.

4. Complainant objects to any directions, definitions and instructions contained in demands that seek to impose on Complainant any obligations or responsibilities other than requirements mandated by the Federal Rules of Civil Procedure.

5. In addition to the above-stated general objections, Complainant have specific objections as set forth below. By stating these specific objections, Complainant do not waive any of the above-stated general objections that may also be applicable to specific discovery requests.

6. Complainant objects to the time period listed in the instructions by Respondent. Respondent requests information from July 1, 2020 to the present. The Complaint only contemplates December 1, 2020 through March 31, 2022. Thus, Complainant objects to all requests outside of that time period and restricts its responses to the time period from December 1, 2020 through March 31, 2022. There were no relevant activities to this proceeding after that date, and to the extent that there are relevant activities subsequent to the time period, Complainant at its option, shall provide these to the extent that these provide information on the activities occurring during the time period.

7. Complainant's general objections and objections to definitions and instructions are hereby incorporated by reference into each and every response to each and every specific discovery demand, and shall not be repeated in every response to which they are applicable.

8. These responses represent Complainant's present knowledge based upon their inquiry to date. A further search for documents, materials and/or information potentially responsive to any or all of these demands will be conducted. Complainant expressly reserves its right to supplement, amend and/or modify their responses and to rely upon any further information

that is found. Complainant also reserves the right to supplement each of these responses to the extent that it discovers documents or information that exist, are not privileged or otherwise objectionable.

SPECIFIC RESPONSES AND OBJECTIONS

1. Identify all persons with knowledge and/or information relating to the matters set forth in the Complaint. For each such person whom you identify, state the specific matter or claim about which he or she has knowledge and/or information and provide their contact information.

RESPONSE:

Charles Lefort – VP, Supply Chain – (305) 903-0105 – charles@bakerly.com: knowledge of the Complaint background, historical events, and finances involved

Angela Vieira – Director, Supply Chain - (786) 539-5888 ext. 2460 – angela@bakerly.com: knowledge of the Complaint background, historical events, and day to day operations

Yudith Quintero – Manager, Inventory - (786) 539-5888 ext. 2457 – yudith@bakerly.com: knowledge of the day-to-day operations

2. Identify all persons with knowledge and/or information relating to the matters set forth in your Initial Disclosures. For each such person whom you identify, state the specific matter or claim about which he or she has knowledge and/or information and provide their contact information.

RESPONSE:

Charles Lefort – VP, Supply Chain – (305) 903-0105 – charles@bakerly.com: knowledge of the Initial Disclosures background, historical events, and finances involved

Angela Vieira – Director, Supply Chain - (786) 539-5888 ext. 2460 – angela@bakerly.com: knowledge of the Initial Disclosures background, historical events, and day to day operations

Yudith Quintero – Manager, Inventory - (786) 539-5888 ext. 2457 – yudith@bakerly.com: knowledge of the day-to-day operations

3. Provide a detailed description of all reasons why Bakerly has not paid Seafrigo invoices containing freight charges.

RESPONSE:

Bakerly paid the open freight charges in order to settle the outstanding balance offer that was made by Bakerly to Seafrigo on May 27, 2022, when a payment in the amount of \$266,849.09 was sent by check. It is our belief that Seafrigo for reasons it has not shared has not cashed this check. The letter stated as follows (also attached as Exhibit 03):

Accounts payable balance as it relates to unfair D&D charges

On our books, we currently have an open accounts payable balance of \$2,591,010.67. This balance is not limited to D&D invoices, since we have paid some contestable invoices in good faith, hoping for an amiable resolution.

Unpaid D&D invoices amount to \$1,722,075.87. Paid and unfairly charged D&D invoices amount to \$561,360.71.

We plan to continue to withhold an amount related to D&D of $\$1,722,075.87 + \$561,360.71 = \$2,283,436.58$ as we feel we are owed a credit note on that amount.

VID

We are also owed a volume related discount of \$40,725.00.

Settling of outstanding balance by Bakerly

$\$2,591,010.67 - \$2,283,436.58 - \$40,725.00 = \$266,849.09$ (see paragraph above where we agree to tender that payment). We are going to proceed in good faith to the payment indicated above, as it matches to the exact dollar of our understanding of what is owed to Seafrigo.

We trust this will settle the balance of our terminated relationship. However, if you disagree, we welcome your statements in support of your view

4. State all reasons why Bakerly has not paid Seafrigo invoices as they came due.

RESPONSE:

Complainant objects to this request because the requested information is unduly burdensome and disproportionate to the overall needs of this case. Without waiving and subject to said objections, Complainant hereby states the following:

In some instances, invoices were not paid directly and settled as part of the settling of outstanding balance offer described above in Response 3 and Exhibit 03. In some other instances, invoices have been placed on hold due to insufficient information provided by

Seafrigo for the reasons for the charge making it impossible for Bakerly to approve the invoices (see Exhibits 04-1, 04-2 and 04-3). Other invoices were paid in good faith but are being contested today because of additional information received which indicates that Seafrigo, which was being assessed the demurrage, failed to take proper steps in its role as an NVOCC. For example, during the NY snowstorm period, as the invoiced party, Seafrigo should have sought relief from the ocean common carriers and/or terminals consistent with Federal Maritime Commission regulations and shipping statutes, and failed to do so.

5. Provide a detailed description of all reasons why Bakerly terminated its relationship with Lineage PA.

RESPONSE:

Complainant objects to this request because the requested information is outside the scope of discovery in this matter. Without waiving and subject to said objections, Bakerly never terminated its relationship with Lineage PA.

6. Provide detailed description of all inadequacies identified by Bakerly in regard to the warehousing services provided by Lineage PA.

RESPONSE:

Lineage PA was impacted by a temporary reduced receiving capacity, due to labor shortages, for some of the volume of containers that was mainly experienced during the 1st and 2nd quarter of 2021.

7. Provide a detailed description of all detention, demurrage, storage or per diem charges resulting from inadequacies in the warehousing services provided by Lineage PA.

RESPONSE:

See Exhibit 07-1 for the list of approved D&D charges that were already communicated to Seafrigo on October 2021 (see Exhibit 07-2), most of which were paid on time.

8. Identify the method of calculations and calculations made by Bakerly in determining the amount of detention, demurrage, storage or per diem charges resulting from inadequacies in the warehousing services provided by Lineage PA.

RESPONSE:

As outlined in Exhibit 07-2 Bakerly spent some time analyzing 165 invoices to research the reasons for the D&D charges and to either approve or reject those charges for the period from July to October 2021.

After this extensive research, Bakerly stopped reviewing invoices and automatically rejected them because of the insufficient information provided by Seafrigo regarding the reason for the charges; making it impossible for Bakerly to review the charge – see exhibits below and attached for more information:

04-1: note sent to Seafrigo informing them of the automatic rejection of invoices without its proper backup explaining the reasons for the charge.

04-2: note sent to Seafrigo reminding them of the note sent in exhibit 04-1 following their absence of reply.

04-3: reply from Seafrigo to note in exhibit 04-2 confirming their inability to provide the proper invoices backup requested in exhibit 04-1.

9. Provide detailed description of all inadequacies identified by Bakerly in regard to the warehousing services provided by other Bakerly warehousemen.

RESPONSE:

Bakerly objects to this request as unduly burdensome and disproportionate to the overall needs of this case and outside of the scope of discovery in this case. Furthermore, the term “inadequacies” is not defined and is too broad and confusing.

10. Provide a detailed description of all detention, demurrage, storage or per diem or charges resulting from inadequacies in the warehousing services provided by other Bakerly warehousemen.

RESPONSE:

See above Interrogatory Response 8, Exhibit 07-1 which outlines issues related to D&D charges.

11. Identify the method of calculations and calculations made by Bakerly in determining the amount of detention, demurrage, storage or per diem charges resulting from inadequacies in the warehousing services provided by other Bakerly warehousemen.

RESPONSE:

See above Interrogatory Response 8, Exhibit 07-1 outlines issues related to D&D charges.

12. Provide a detailed description of all detention, demurrage, storage or per diem charges you assert resulted from the port closures related to New York snowstorms.

RESPONSE:

See Exhibit 12 for the list of D&D charges invoiced by Seafrigo to Bakerly and resulting from the port closures related to New York snowstorms.

13. Identify the method of calculations and calculations made by Bakerly in determining that \$361,278.54 in detention, demurrage or storage charges resulted from the port closures related to New York snowstorms.

RESPONSE:

The detention, demurrage or storage charges that resulted from the port closures related to the New York snowstorms is equal to \$361,178.54. This amount corresponds to all D&D charges invoiced by Seafrigo to Bakerly in January 2021 and was identified by Seafrigo during the February 2021 video meeting between Seafrigo USA, Seafrigo France and Bakerly. During the meeting Seafrigo rejected the responsibility of their poor performances from December 2020 to January 2021 claiming the NY snowstorm and the port closure made it impossible for them to perform services. The date span of the snowstorms and corresponding port closures were provided verbally to Charles Lefort and Angela Vieira by Jérôme Lorrain from Seafrigo during the video meeting held in February 2, 2021, as an explanation for their inability to provide timely pick-up of loaded containers and the return of empty containers. See attached Exhibit 13-1 (email thread scheduling the video meeting) and Exhibit 13-2 (internal email communication outlining strategy for December demurrage).

14. Identify every instance in which Bakerly was unable to accept or store goods that were in transit.

RESPONSE:

Bakerly objects to this request as unduly burdensome and disproportionate to the overall needs of this case and outside of the scope of discovery in this case. The request is not specific enough for a response to specific transactions or specific as to what “transit” is being referenced.

15. Provide a detailed description of all the reasons for every instance in which Bakerly was unable to accept or store goods that were in transit.

RESPONSE:

Bakerly objects to this request as unduly burdensome and disproportionate to the overall needs of this case and outside of the scope of discovery in this case. The request is not specific enough for a response to specific transactions or specific as to what “transit” is being referenced.

16. Identify every instance in which Bakerly delayed or did not ship goods due to an inability to take delivery of such goods.

RESPONSE:

Bakerly cannot identify any instance in which it delayed or did not ship goods because of this circumstance.

17. Provide a detailed description of all the reasons for every instance in which Bakerly delayed or did not ship goods due to an inability to take delivery of such goods.

RESPONSE:

As stated above, Bakerly cannot identify any instance in which it delayed or did not ship goods because of this circumstance.

18. Identify every instance in which Bakerly was unable to empty containers in its possession in order to avoid detention, per diem or storage charges from accruing.

RESPONSE:

See Exhibit 07-1 for the list of issues related to D&D charges.

19. Provide a detail description of all the reasons for every instance that Bakerly was unable to empty containers in its possession in order to avoid detention, per diem or storage charges from accruing.

RESPONSE:

Bakerly objects to this request as unduly burdensome and disproportionate to the overall needs of this case and outside of the scope of discovery in this case. Without waiving and subject to said objections, Complainant provides that in instances that Bakerly investigated these issues, it has provided the descriptions that are provided in Exhibit 7-01.

20. Identify all instances in which Bakerly incurred demurrage, detention, per diem or storage charges as result of port or terminal congestion.

RESPONSE:

Bakerly objects to this request as unduly burdensome and disproportionate to the overall needs of this case. Without waiving and subject to said objections, Seafrigo failed to properly communicate with Bakerly about demurrage, detention, per diem, and storage charges in a timely matter. Thus, Bakerly has no firsthand information regarding “port or terminal congestion.” Seafrigo has the requested information in its possession if it did maintain that information.

Further, in view of Seafrigo’s business model, as an NVOCC, of purchasing space on ocean carrier’s vessels in its own name, and, thereby, appearing as consignee on ocean carriers bill of lading, and with obligations to deliver cargo to Bakerly’s “door”, Seafrigo is in the better position to identify and collect this information, which it failed to report to Bakerly, even after repeated requests to do so.

21. Provide a detailed description of all the reasons for every instance in which Bakerly incurred demurrage, detention, per diem or storage charges as result of port or terminal congestion.

RESPONSE:

See Interrogatory Response 20, above.

22. Identify all instances in which Bakerly incurred demurrage, detention, per diem or storage charges as a result of an inadequate supply of chassis.

RESPONSE:

Bakerly objects to this request as unduly burdensome and disproportionate to the overall needs of this case. Without waiving and subject to said objections, Seafrigo failed to properly communicate with Bakerly about demurrage, detention, per diem, and storage charges in a timely matter. Thus, Bakerly has no firsthand information regarding the supply of chassis. Seafrigo has this information in its possession.

Further, in view of Seafrigo’s business model, as an NVOCC, of purchasing space on ocean carrier’s vessels in its own name, and based on its own bill of lading terms of door delivery, Seafrigo is in the better position to identify this information, which it routinely did not convey to Bakerly when entering into excessive demurrage circumstances, even after repeated requests to do so.

23. Provide a detailed description of all the reasons for every instance in which Bakerly incurred demurrage, detention, per diem or storage charges as a result of an inadequate supply of chassis.

RESPONSE:

See Interrogatory Response 22, above.

24. Identify all instances in which truckers or drayage providers had trouble scheduling appointments with Linden PA.

RESPONSE:

Bakerly has not contracted Seafrigo for shipments to Linden PA. Therefore, this interrogatory cannot be responded to.

25. Provide a detailed description of all the reasons for every instance in which truckers or drayage providers had trouble scheduling appointments with Linden PA.

RESPONSE:

Bakerly has not contracted Seafrigo for shipments to Linden PA. Therefore, this interrogatory cannot be responded to.

26. Identify all instances in which truckers or drayage providers had trouble scheduling appointments with other Bakerly warehouseers.

RESPONSE:

Bakerly objects to this request as unduly burdensome and disproportionate to the overall needs of this case. Without waiving and subject to said objections, Seafrigo failed to properly communicate with Bakerly about issues that arose during delivery. Thus, Bakerly has no firsthand information regarding appointments at warehouses. On the other hand, Seafrigo has this information in its possession which it never timely communicated to Bakerly.

27. Provide a detailed description of all the reasons for every instance in which truckers or drayage providers had trouble scheduling appointments with other Bakerly warehouseers.

RESPONSE:

See Interrogatory Response 26, above.

28. Identify all other transportation providers that Bakerly used during the relevant time period.

RESPONSE:

Following months of surprise invoices with large detention and demurrage charges that were not properly communicated to Bakerly, Bakerly started to transition to other providers and look for other providers to decrease the issues it was experiencing with Seafrigo. In July 2021, Bakerly signed a new partnership with CEVA Logistics to import a portion of its containers.

As surprise charges and a lack of communication continued, Bakerly informed Seafrigo in November 2021 that it would start transitioning drayage services from Seafrigo, as well. Bakerly needed to limit the impact on the lack of drivers for which Bakerly had no daily/weekly updates from Seafrigo (see Exhibit 28). Therefore, Bakerly identified Lineage Freight Management, a third-party provider, to take over these services for Seafrigo.

Seeing significantly different results with other transportation providers, Bakerly continued adding other ocean transportation intermediaries following November 2021. These providers include Bolloré, TMT and DHL. These providers lessened Bakerly's risk as compared to Seafrigo's poor performances which limited Bakerly's exposure to surprise and large charges. Ultimately, Bakerly transitioned all of its transportation work away from Seafrigo and terminated its relationship with Seafrigo by May 2022.

29. Identify all detention, demurrage, storage or per diem charges that accrued during periods when using other transportation providers.

RESPONSE:

Bakerly is providing Exhibit 29 which shows the demurrage and per diem charges for Lineage Freight Management, CEVA Logistics, and Seafrigo by month for December 2021 to March 2022.

30. Identify when Bakerly first learned that Seafrigo was advancing funds on its behalf to terminals or VOCCs.

RESPONSE:

Seafrigo did not advance funds on Bakerly's behalf because Seafrigo was the NVOCC and the Consignee on the ocean common carrier's bill of lading. As the NVOCC, Seafrigo is the party responsible for demurrage and is directly billed for demurrage charges. In the context of the issues in this proceeding, it is Bakerly's contention that Seafrigo had obligations for delivery to door in the context of its bill of lading terms and its Rules Tariff.

31. Identify whether Bakerly ever informed Seafrigo that it should not advance funds on its behalf to terminals or VOCCs.

RESPONSE:

See Interrogatory Response 30, above.

32. Identify all persons who provided information in answering these Interrogatories, specifying who provided answers to specific Interrogatories.

RESPONSE:

Charles Lefort – VP, Supply Chain – (305) 903-0105 – charles@bakerly.com: jointly provided answers to request 1 to 32.

Angela Vieira – Director, Supply Chain - (786) 539-5888 ext. 2460 – angela@bakerly.com: jointly provided answers to request 1 to 32.

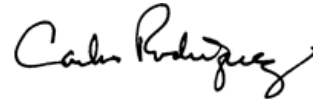
I declare pursuant to 46 § 502.145, that I am a person with knowledge of the matters herein and make these answers herein under penalty of perjury that the foregoing is true and correct to the best of my knowledge and belief.

Executed On: October 31, 2022



Charles Lefort, VP, Supply Chain

I declare that pursuant to the requirements of 46 § 502.145, that I am the attorney who objects to various items herein as noted, and hereby sign for these objections.



Executed On: October 31, 2022

Carlos Rodriguez, Attorney on
behalf of Complainant

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-17

BAKERLY, LLC

COMPLAINANT,

v.

SEAFRIGO USA INC.

RESPONDENT.

COMPLAINANTS FIRST RESPONSES TO RESPONDENT'S DOCUMENT REQUESTS
RESPONDENT'S FIRST SET OF DOCUMENT REQUESTS

Under 46 CFR § 502.146 Complainant, Bakerly, LLC (Bakerly) provides the following responses to Respondent Seafrigo USA Inc.'s (Seafrigo) document requests.

INSTRUCTIONS

1. Each production request shall be construed to include all documents or things within your possession, custody or control or the possession, custody or control of any third party agent of you, as of the date of your response to these production requests as well as any document that subsequently is obtained or discovered and that demonstrates that any production originally provided in response to these production requests was incorrect or incomplete in any way when made or subsequently became incorrect or incomplete, such supplemental documents to be promptly supplied.

2. If the response to any production request consists, in whole or in part, of an objection to or including burdensomeness, then provide those documents which can be produced

without undue burden. For such documents that are too burdensome to produce, describe the process or method required to obtain said documents, the quantity and location of the documents involved, and the number of employee hours and costs of the search.

3. To the extent that you believe that any of the documents requested contain privileged information, produce so much of such documents and each part thereof, as would not violate the privilege and, as to each such document that you claim is privileged, provide the basis for your claim of privilege. Please provide a privilege log describing the document over which you claim a privilege, the date on which it was created, sent, received, or reviewed, and the person(s) who created, sent, received, or reviewed that document.

4. If the response to this request is any other objection, provide all information not covered by the objection and state the basis of the objection.

5. If any document responsive to these production requests has been destroyed, for each such document state when it was destroyed, identify the person who destroyed the document and the person who directed that it be destroyed. Additionally, detail the reasons for the destruction, describe the nature of the document, identify the persons who created, sent, received, or reviewed the document and state in as much detail as possible the contents of the document.

6. In producing the documents called for herein, segregate the documents so as to identify the numbered request to which the document responds.

7. This request is continuing in nature, requiring a supplemental response and production when new, different or clarifying information comes into the possession of you or your counsel.

8. Electronically stored information is to be produced in native format, unless otherwise agreed between counsel or unless such information could not be retrieved or accessed

with the use of commonly used commercial off-the-shelf software, in which event counsel is requested to contact the undersigned to discuss the form of production. In addition, it is requested that all electronically stored information be produced as .TIFF images with Relativity load files (.DAT and .OPT) and searchable text (i.e., OCR).

9. Unless otherwise specified the timer period for which documents are sought shall be between July 1, 2020 and the present.

DEFINITIONS

1. The word “document” or “documents” refers to all materials subject to discovery under 46 CFR §502.146, including but not limited to any printed, written, taped, recorded, graphic, computerized print-out, or other tangible matter, as well as electronically stored information and other data or data compilations stored in any medium, from whatever source, however produced or reproduced, whether in draft or otherwise, whether sent or received, or neither, including, but not limited to, the original, a copy (if the original is not available) and all non-identical copies (whether different from the original because of notes made on or attached to such copy or otherwise) of any and all writings, correspondence, letters, telegrams, cables, contracts, proposals, agreements, minutes, notes, requisitions, memoranda, analyses, projections, work papers, books, papers, records, reports, diaries, statements, questionnaires, books of account, calendars, graphs, charts, transcripts, ledgers, registers, worksheets, summaries, digests, financial statements, data sheets, data processing cards, disks, data processing files, tapes and other compilations from which information can be obtained or translated, computer print-outs, computer readable materials, and all other information or data, records or compilations, including all underlying supporting or preparatory material now in your possession, custody or control, or available to you, your counsel,

accountants, agents, representatives or associates. “Document” or “documents” specifically includes documents kept by individuals in their desks, at home, or elsewhere.

2. When asked to “identify” or “for the identity” of any natural person, set forth (i) the full name and present or last-known business or residence address of such person; (ii) his or her present or last-known business affiliation; (iii) his or her present telephone number, with the area code prefix; and (iv) his or her position and business affiliation, including a description of his or her duties or responsibilities at the time of or during the period in question.

3. When asked to “identify” or “for the identity” of any entity other than a natural person, set forth its (i) full name or title; (ii) address, telephone number with area code prefix; (iii) date and jurisdiction under the laws of which it was organized or incorporated, or, in the case of any entity other than a corporation, state the type of organization, the names of its members, and the date and place of its organization; and (iv) the identity of all persons who acted or who authorized another to act on its behalf in connection with the matters referred to.

4. When asked to “identify” or “for the identity” of a document, you are required to furnish a copy of each such document in lieu of identifying the same. When furnishing a copy of a document, specify the request being answered in this manner, and identify the document so supplied to show the request to which the document relates. If a copy of a particular document is not available, then set forth: (i) its date and general type of category (*i.e.*, letter, contract, memorandum); (ii) the identity of its author and each person who aided or assisted in its preparation, including persons who contributed information contained in or submitted for use in such document; (iii) the identity of each addressee and other distributee to whom the document was directed, distributed and by whom it was received, read or both; (iv) the identity of its last-known location or custodian; (v) the reason or reasons for the inability to locate such document

and the circumstances of its unavailability; (vi) if the document is no longer in your possession or control and the circumstances of its disposition are known, set forth the date and circumstances of the disposition thereof, as well as the identity of the person or entity to whom custody or possession was given; and (vii) its subject matter and substance.

5. The term “person” or “persons” means a natural person, firm, proprietorship, association, partnership, corporation or any other type of organization or entity.

6. The term “communicate” or “communication” means any manner or form of information or message transmission, however produced or reproduced, whether by “document” as herein defined or orally or otherwise, which is made, distributed or circulated between or among persons, or data storage or processing units, and any and all documents containing, consisting of, or relating or referring to in any way, either directly or indirectly, to a communication.

7. As used herein, the singular form of a noun or pronoun shall be considered to include within its meaning the plural form of the noun or pronoun so used, and vice versa; and the use of any tense of any verb shall be considered to include also within its meaning all other tenses of the verb so used.

8. The term “and” or “or” at all times means “and/or.”

9. The terms “relating to” and “concerning” mean concerning, embodying, considering, mentioning, respecting, bearing on, referring to or addressed, in whole or in part, to that subject.

10. The terms defined above for each of the parties shall have such meanings in these requests.

11. The term “You,” “you,” and “Your,” shall mean and refer to Bakerly and all agents, employees, principals, officers, directors, representatives, subsidiaries, affiliates, related companies, predecessor companies, attorneys and/or all persons purporting to act on its behalf.

12. “Seafrigo” shall mean and refer to Seafrigo USA Inc. and all agents, employees, principals, officers, directors, representatives, subsidiaries, affiliates, related companies, predecessor companies, attorneys and/or all persons purporting to act on its behalf.

13. The term “Proceeding” means and refers to the above-captioned matter.

14. The term “Complaint” refers to the Complaint filed in this Proceeding.

COMPLAINANT'S PRELIMINARY STATEMENT

1. Complainant objects to demands to the extent that they call for the production of “any,” “all” or “each” of a category of documents or information. Such requests place an impossible burden on the Complainant, which is far beyond that imposed by the Federal Rules of Civil Procedure. It is impossible to represent, even after diligent search, that all, each or every document or thing falling within a description can be or has been located. Documents may be kept in a myriad of locations or files. Many people may have handled them. They may have been moved frequently and may have been arranged, rearranged or reordered. Documents may have been lost or may have been part of materials disposed of in accordance with a record retention program. Individuals with discrete knowledge relative to the existence or storage of documents may have left the company, taking that knowledge with them. Therefore, Complainant cannot warrant or represent that it has produced each or all or every document or thing of a type requested, only that they have produced those which they could locate after a reasonably diligent search. Any further requirement is objected to as unduly burdensome.

2. Complainant objects to demands to the extent that the information and documents sought are overly broad, oppressive or unduly burdensome or are protected from disclosure through: (i) the attorney-client privilege; and/or (ii) the attorney work product doctrine; and/or (iii) another applicable privilege; (iv) seek information prepared in anticipation of litigation or for trial; or (v) are otherwise beyond the permissible scope of discovery.

3. Complainant objects to demands to the extent that they (a) seek information outside Complainant's knowledge; (b) call for information without limitation as to relevant and reasonable time periods; (c) call for speculation, conjecture or opinions as to what might be possible; (d)

contain instructions or definitions that are vague, ambiguous or assume the truth of alleged and disputed facts; and (e) conflict with the applicable Federal Rules of Civil Procedure.

4. Complainant objects to any directions, definitions and instructions contained in demands that seek to impose on Complainant any obligations or responsibilities other than requirements mandated by the Federal Rules of Civil Procedure.

5. In addition to the above-stated general objections, Complainant have specific objections as set forth below. By stating these specific objections, Complainant do not waive any of the above-stated general objections that may also be applicable to specific discovery requests.

6. Complainant objects to the time period listed in the instructions by Respondent. Respondent requests information from July 1, 2020 to the present. The Complaint only contemplates December 1, 2020 through March 31, 2022. Thus, Complainant objects to all requests outside of that time period and restricts its responses to the time period from December 1, 2020 through March 31, 2022. There were no relevant activities to this proceeding after that date .

7. Complainant's general objections and objections to definitions and instructions are hereby incorporated by reference into each and every response to each and every specific discovery demand, and shall not be repeated in every response to which they are applicable.

8. These responses represent Complainant's present knowledge based upon their inquiry to date. A further search for documents, materials and/or information potentially responsive to any or all of these demands will be conducted. Complainant expressly reserves its right to supplement, amend and/or modify their responses and to rely upon any further information that is found. Complainant also reserves the right to supplement each of these responses to the

extent that it discovers documents or information that exist, are not privileged or otherwise objectionable.

SPECIFIC RESPONSES AND OBJECTIONS

1. All documents or things identified in, or required to be identified in, Your Initial Disclosures.

RESPONSE: The documents that Bakerly intends to support its claims and defenses, as outlined in the Initial Disclosures, are provided as Exhibits 03, 04-1, 04-2, 04-3, 07-1, 07-2, 12, 13-1, 13-2, 28, 29 to the responses to the interrogatories and as exhibits to the Verified Complaint.

2. All invoices between Bakerly and Seafrigo.

RESPONSE: Bakerly objects to this request as unduly burdensome and disproportionate to the needs of the case, particularly because Seafrigo issued the invoices to Bakerly. Bakerly does not need to provide the invoices to Seafrigo because the invoices are already in Seafrigo's possession. Without waiving and subject to said objections, Bakerly has already provided a comprehensive list of subject invoices in its Verified Complaint, Affidavit Exhibit 2.

3. All communications between Bakerly and Seafrigo regarding Seafrigo's invoices.

RESPONSE: Bakerly objects to this request as unduly burdensome and disproportionate to the needs of the case, and are documents already in the possession of Seafrigo.

4. All communications between Bakerly and Seafrigo regarding demurrage, detention or per diem charges.

RESPONSE: Bakerly objects to this request as unduly burdensome and disproportionate to the needs of the case, and are documents already in the possession of Seafrigo.

5. All communications regarding Seafrigo making advances to terminal operators or common carriers on behalf of Bakerly.

RESPONSE: Bakerly objects on the grounds that invoices from common carriers are sent to Seafrigo, in view of Seafrigo's business model of purchasing space on ocean carrier's vessels in its own name, and, thereby, appearing as consignee on ocean carriers bill of lading. Because of this, payments to terminal operators or common carriers while transporting Bakerly's goods are not advances on behalf of Bakerly. Seafrigo, pursuant to its bill of lading terms and Rules Tariff provisions, clearly states that Bakerly is not liable to Seafrigo for demurrage on "door delivery" moves. The shipments in question are all "door delivery."

6. All communications regarding Bakerly failing to pay Seafrigo's invoices causing cash flow issues for Seafrigo.

RESPONSE: Bakerly lacks sufficient information regarding Seafrigo's cash flow to respond to this request. Without waiving and subject to said objections, Seafrigo did identify cash flow issues in its discussions with Bakerly at meetings in July, August, and December 2021. See Exhibit 06-1 (Seafrigo identifying credit issues due to June and July 2021 demurrage payments); Exhibit 06-2 (Seafrigo requesting payment due to large outstanding AR amount); Exhibit 06-3 (Seafrigo requesting payment and outlining cash position was unsustainable and Bakerly responding that detention and demurrage charges did not have sufficient documentation to support the charges); and Exhibit 06-4 (Seafrigo requesting payment due to its cash position and Bakerly outlining that Seafrigo is responsible for detention and demurrage and securing transportation to door per the terms of the agreement).

7. All agreements or contracts between Bakerly and Seafrigo.

RESPONSE: Bakerly objects to this request as unduly burdensome and disproportionate to the needs of the case, particularly because Seafrigo also has these documents in its possession. Without waiving and subject to said objections, Bakerly is producing the following list of quarterly rates that Seafrigo sent to Bakerly as follows:

- Exhibit 07-1: NRA March 2021
- Exhibit 07-2: NRA June 2021
- Exhibit 07-3: NRA September 2021
- Exhibit 07-4: NRA December 2021
- Exhibit 07-5: NRA March 2022

8. All communications regarding credit agreements offered by Seafrigo.

RESPONSE: Bakerly objects to this request as unduly burdensome and disproportionate to the needs of the case, particularly because Seafrigo also has these documents in its possession. Without waiving and subject to said objections, Seafrigo and Bakerly never signed any credit agreements. Bakerly is producing three email threads Seafrigo offered a Volume Incentive Discount in March 2021 to apply to January 2021 (attached as Exhibit 08-1), a \$30,000 credit in March 2021 for January 2021 detention and demurrage charges (attached as Exhibit 08-2), and another \$30,000 credit in August 2021 for July 2021 detention and demurrage charges (attached as Exhibit 08-3) regarding billing credits offered by Seafrigo.

9. All documents relating to congestion at ports or terminals in 2021 or 2022.

RESPONSE: Bakerly objects to this request as unreasonably vague and requests unreasonably broad information, is unduly burdensome, is disproportionate to the needs of the case, and is outside the scope of discovery in this case. Insofar as Seafrigo is requesting information on general port or terminal congestion in 2021 and 2022, this information is publicly available and would be unreasonable to request that Bakerly provide to Seafrigo.

10. All documents relating to shortages of chassis in 2021 or 2022.

RESPONSE: Bakerly objects to this request as unreasonably vague and requests unreasonably broad information, is unduly burdensome, is disproportionate to the needs of the case, and is outside the scope of discovery in this case. Insofar as Seafrigo is requesting information on general chassis shortages in 2021 and 2022, this information is publicly available and would be unreasonable to request that Bakerly provide to Seafrigo.

11. All documents relating to obtaining support from Bakerly on deliveries.

RESPONSE: Bakerly objects to this request as unreasonably vague and requests unreasonably broad information, is unduly burdensome, is disproportionate to the needs of the case, and is outside the scope of discovery in this case. Use of the terms “obtaining support” and “deliveries” are too vague and broad for Bakerly to identify a reasonable universe within which Bakerly could provide information proportionate to the needs of the case.

12. All documents relating to high volumes of containers on vessels.

RESPONSE: Bakerly objects to this request as unreasonably vague and requests unreasonably broad information, is unduly burdensome, is disproportionate to the needs of the case, and is outside the scope of discovery in this case. Use of the term “high volumes” in the context of all vessels, is too vague and broad for Bakerly to identify a reasonable universe within which Bakerly could provide information proportionate to the needs of the case.

13. All documents related to port closures due to New York snowstorms.

RESPONSE: Communications regarding the port closures due to the New York snowstorms were over the phone. Thus, Bakerly has no documents related to those communications. Additionally, documents related to this request were provided in Exhibit 12 to Complainant’s Responses to Interrogatories, and such Exhibit is hereby attached to this Response as well.

14. All documents related to charges that accrued due to port closures resulting from New York snowstorms.

RESPONSE: See response to Request 13, above.

15. All documents relating to Bakerly’s warehousing system.

RESPONSE: Bakerly objects to this request as unreasonably vague and is unduly burdensome, is disproportionate to the needs of the case, and is outside the scope of discovery in this case.

16. All documents relating to Bakerly being unable to accept or store goods that were in transit.

RESPONSE: Bakerly objects to this request as unreasonably vague and is unduly burdensome, is disproportionate to the needs of the case, and is outside the scope of discovery in this case. Without a definition for “unable to accept or store goods” or “in transit,” the document request is unreasonable because the request is not specific enough for a response to specific transactions or specific as to what “transit” is being referenced.

17. All documents relating to Bakerly requesting that goods not be shipped due to storage issues.

RESPONSE: Bakerly cannot identify any instance in which it did not ship goods due to storage issues.

18. All documents relating to Bakerly being unable to accept or store goods at its warehouses.

RESPONSE: Upon investigation, Bakerly has identified relevant emails regarding container CRXU6958355 from February 26, 2021. These documents are attached as Exhibit 18.

19. All documents relating to Bakerly being unable to timely unload containers at its warehouses.

RESPONSE: See attached Exhibits 19-1, 19-2, and 19-3.

20. All documents relating to Bakerly terminating its relationship with Lineage PA.

RESPONSE: Bakerly did not terminate its relationship with Lineage PA.

21. All documents relating to the reason Lineage PA relationship with Bakerly was terminated.

RESPONSE: Bakerly did not terminate its relationship with Lineage PA.

22. All documents relating to storage of goods at or by Preferred Freezer Linden or Bakerly Barn.

RESPONSE: Bakerly objects to this request as unduly burdensome, disproportionate to the needs of the case, outside the scope of discovery in this case, and containing competitively sensitive information for Respondent’s competitors.

23. All documents relating to truckers or drayage providers having trouble scheduling appointments with Bakerly warehouse users.

RESPONSE: Upon investigation, Bakerly could not identify any documents related to this request.

24. All documents related to demurrage, detention or per diem charges accruing as result of being unable to store goods.

RESPONSE: Bakerly objects to this request as unreasonably vague and requests unreasonably broad information, is unduly burdensome, is disproportionate to the needs of the case, and is outside the scope of discovery in this case. The request does not identify what party, if any, was unable to store the goods. Without waiving and subject to the objection, Bakerly has already provided Exhibit 07-1 to Complainant's Responses to Interrogatories, which outlines issues related to transportation, and such Exhibit is hereby attached to this Response as well.

25. All documents relating to deliveries to the Linden, Pennsylvania area.

RESPONSE: Bakerly is not aware of any deliveries to the Linden, PA area.

26. All documents relating to Bakerly using alternate transportation providers instead of Seafrigo.

RESPONSE: Bakerly objects to this request as unduly burdensome, disproportionate to the needs of the case, outside the scope of discovery in this case, and containing competitively sensitive information for Respondent's competitors. Without waiving and subject to the objection, in Complainant's Responses to Interrogatories, Request 28 sufficiently outlines alternate transportation providers that Bakerly used to transition services away from Seafrigo.

27. All documents related to negotiations with CEVA for transportation services.

RESPONSE: Bakerly objects to this request as containing competitively sensitive information for Respondent's competitors. Without waiving and subject to the objection, Bakerly is producing a comparison of detention and demurrage charges between CEVA and Seafrigo in Exhibit 27-1 and 27-2.

28. All documents related to shipments handled by CEVA on behalf of Bakerly.

RESPONSE: See Response to Request 27, above.

29. All documents related to DWELL times.

RESPONSE: To Bakerly's knowledge, it possesses no relevant information related to DWELL times.

30. All documents relating to Seafrigo passing through charges assessed by terminal operators or common carriers.

RESPONSE: Seafrigo failed to pass through copies or originals of documents that reflect charges assessed by terminal operators or common carriers. In view of that failure, Bakerly has no knowledge of possession of these requested documents.

31. All communications regarding Seafrigo's bill of lading terms and conditions or its tariff.

RESPONSE: Bakerly objects to this request as subject to attorney-client privilege.

32. All documents related to unpaid freight invoices.

RESPONSE: See response to Request 6, above.

33. All communications regarding the number of truckers available to transport goods in 2021 and/or 2022.

RESPONSE: Bakerly objects to this request as unreasonably vague and requests unreasonably broad information, is unduly burdensome, is disproportionate to the needs of the case, and is outside the scope of discovery in this case. Insofar as Seafrigo is requesting information on nationally available truckers in 2021 and 2022, this information is publicly available and would be unreasonable to request that Bakerly provide to Seafrigo. Without waiving and subject to objection, communications regarding Seafrigo's available truckers were verbal from Seafrigo employees and are outlined in the Verified Complaint.

34. All documents relating to shipping forecasts, including but not limited to, timing, volume and costs of moving cargo.

RESPONSE: See attached Exhibits 34-1 and 34-2.

I declare pursuant to 46 § 502.146, that I am a person with knowledge of the matters herein and make these answers herein under penalty of perjury that the foregoing is true and correct to the best of my knowledge and belief.

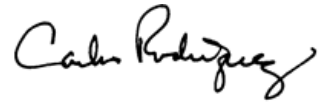
Executed On: October 28, 2022



Charles Lefort, VP, Supply Chain

I declare that pursuant to the requirements of 46 § 502.146, that I am the attorney who objects to various items herein as noted, and hereby sign for these objections.

Executed On: October 28, 2022



Carlos Rodriguez,
Attorney on behalf of
Complainant

EXHIBIT 7



ATTORNEYS AT LAW
THE FOUNDRY ♦ 1055 THOMAS JEFFERSON STREET, NW ♦ SUITE 620 ♦ WASHINGTON, DC 20007-4492
TELEPHONE: 202-342-5200
FACSIMILE: 202-342-5299

PRINCIPALS:
RICHARD B. BAR
BRENDAN COLLINS
DANIEL R. ELLIOTT
OLIVER M. KRISCHIK
DAVID K. MONROE
TROY A. ROLF
KEITH G. SWIRSKY

ASSOCIATES:
RYAN SWIRSKY
JOHN H. KESTER

OF COUNSEL:
EDWARD D. GREENBERG

WRITER'S DIRECT E-MAIL ADDRESS
BCOLLINS@GKGLAW.COM

WRITER'S DIRECT DIAL NUMBER
202-342-6793

November 14, 2022

Carlos Rodriguez
Julia Banegas
Husch Blackwell
1801 Pennsylvania Ave. N.W, Suite 1000
Washington, D.C. 20006

Re: Meet and Confer

Carlos and Julia,

I am writing regarding deficiencies in the Bakerly discovery responses. This correspondence spells out the issues we would like to discuss pursuant to our meet and confer obligations.

Outline of Disputed Discovery

Although we will spell out deficiencies in regard to specific Interrogatory and Document Request responses below, an outline of Seafrigo's concerns in this regard may be helpful. As you know one of the central defenses asserted by Seafrigo is that detention and demurrage charges accrued as a result of Bakerly's inability to accept loaded containers at its warehouses (or its designated warehouse providers locations) and/or to allow for the timely unloading and returning of empty containers and chassis. As is apparent from the discovery produced by Seafrigo, there were extensive communications between the parties in this regard. Included in the voluminous documents produced by Seafrigo on the subject were instances in which Seafrigo was informed that it must limit delivery of inbound containers due to "complications and internal decisions" by Bakerly. Seafrigo was also informed that this decision was necessary despite Bakerly's recognition

that it would result in additional costs in the form of demurrage, storage, or detention charges (which are the charges that Bakerly now refuses to pay.) There were also other instances in which Seafrigo was informed that one of its warehouses (Lineage) could only accept 1-2 containers per week, thus resulting in significant demurrage charges. There were also extensive communications regarding Bakerly warehouses, particularly in Jersey City, being unable to accept containers and efforts to divert such containers to alternative locations so as to avoid further demurrage from accruing. Among the other topics on which documents were produced by Seafrigo were instances in which drivers were unable to timely unload containers at Bakerly warehouses (including Lineage) or had to wait unreasonably extended hours in order to do so and instances in which Bakerly or its warehouses failed to respond to communications from Seafrigo resulting in demurrage or detention charges accruing.

Discovery was also sought, and documents were produced by Seafrigo, regarding a lack of chassis and gensets at terminals, a lack of drivers plaguing the industry (including due to COVID), representations by Bakerly that it would obtain drivers, and documentation regarding port congestion and terminal closures.

Bakerly not only failed to produce any documents reflecting communications it had on the above-referenced topics with Seafrigo (or produced an extremely limited number of such documents) it also failed to produce any internal communications or communications it had with third parties on the subject. Just as way of example, it is implausible to say the least that Bakerly warehouses would have stopped receiving or severely curtailed receipt of cargo and Bakerly would not have communicated with the warehouses or internally in that regard. Further, again by way of example, it defies belief that Bakerly decided to severely limit the acceptance of cargo by its warehouses (knowing its action would result in extensive demurrage and detention charges) and there is not a single document addressing the “complications and internal decisions” that precipitated that decision.

Interrogatory Responses

Interrogatory No. 5 Provide a detailed description of all reasons why Bakerly terminated its relationship with Lineage PA.

RESPONSE: Complainant objects to this request because the requested information is outside the scope of discovery in this matter. Without waiving and subject to said objections, Bakerly never terminated its relationship with Lineage PA.

Discussion: The response to the Interrogatory is contradicted by an email from Bakerly to Seafrigo dated June 9, 2021 wherein Bakerly informed Seafrigo that it had terminated its relationship with Lineage PA and Seafrigo should immediately stop delivering containers to Lineage PA. The response is therefore either inaccurate or incomplete.

Interrogatory No. 6. Provide detailed description of all inadequacies identified by Bakerly in regard to the warehousing services provided by Lineage PA.

RESPONSE: Lineage PA was impacted by a temporary reduced receiving capacity, due to labor shortages, for some of the volume of containers that was mainly experienced during the 1st and 2nd quarter of 2021.

Discussion: The response is incomplete. Bakerly produced no documents regarding inadequacies in the services provided by Lineage, including but not limited to an inability to receive cargo due to labor shortages. Bakerly's failure to produce a detailed description or documentation regarding Lineage's reduced receiving capacity and/or its labor shortage fails to satisfy Bakerly's discovery obligations.

Interrogatory No. 7. Provide a detailed description of all detention, demurrage, storage or per diem charges resulting from inadequacies in the warehousing services provided by Lineage PA.

RESPONSE: See Exhibit 07-1 for the list of approved D&D charges that were already communicated to Seafrigo in October 2021 (see Exhibit 07-2), most of which were paid on time.

Discussion: Merely providing a list of charges that were paid is not responsive to this Interrogatory. Seafrigo is entitled to a detailed description of which detention, demurrage, storage or per diem charges were assessed as a result of Lineage's inability to accept containers or to unload and or to allow for the return of empty containers and chassis.

Interrogatory No. 8. Identify the method of calculations and calculations made by Bakerly in determining the amount of detention, demurrage, storage or per diem charges resulting from inadequacies in the warehousing services provided by Lineage PA.

RESPONSE: As outlined in Exhibit 07-2 Bakerly spent some time analyzing 165 invoices to research the reasons for the D&D charges and to either approve or reject those charges for the period from July to October 2021.

After this extensive research, Bakerly stopped reviewing invoices and automatically rejected them because of the insufficient information provided by Seafrigo regarding the reason for the charges; making it impossible for Bakerly to review the charge – see exhibits below and attached for more information:

04-1: note sent to Seafrigo informing them of the automatic rejection of invoices without its proper backup explaining the reasons for the charge.

04-2: note sent to Seafrigo reminding them of the note sent in exhibit 04-1 following their absence of reply.

04-3: reply from Seafrigo to note in exhibit 04-2 confirming their inability to provide the proper invoices backup requested in exhibit 04-1.

Discussion: Seafrigo submits that the information sought goes to the heart of Seafrigo's defense. Seafrigo provided invoices and back up documents for the charges at issue. Bakerly is not allowed to simply not bother analyzing those invoices and back up documentation provided because it is time consuming. Failure to provide responsive information should preclude Bakerly from presenting evidence on the subject.

Interrogatory No. 9: Provide detailed description of all inadequacies identified by Bakerly in regard to the warehousing services provided by other Bakerly warehousemen.

RESPONSE: Bakerly objects to this request as unduly burdensome and disproportionate to the overall needs of this case and outside of the scope of discovery in this case. Furthermore, the term "inadequacies" is not defined and is too broad and confusing.

Discussion: Seafrigo submits that the term "inadequacies" is not difficult to decipher and that there is no legitimate basis for Bakerly to refuse to answer the Interrogatory, particularly given that the subject matter goes to the heart of Seafrigo's defense.

Interrogatory No. 10. Provide a detailed description of all detention, demurrage, storage, per diem or charges resulting from inadequacies in the warehousing services provided by other Bakerly warehousemen.

RESPONSE: See above Interrogatory Response 8, Exhibit 07-1 which outlines issues related to D&D charges-11.

Discussion: This response suffers from the same defects identified in regard to the responses to Interrogatories 7 -9.

Interrogatory No. 11. Identify the method of calculations and calculations made by Bakerly in determining the amount of detention, demurrage, storage or per diem charges resulting from inadequacies in the warehousing services provided by other Bakerly warehousemen.

RESPONSE: See above Interrogatory Response 8, Exhibit 07-1 outlines issues related to D&D charges.

Discussion: The responses suffer from the same defects identified in regard to the responses to Interrogatories 7 -9.

Interrogatory No. 14. Identify every instance in which Bakerly was unable to accept or store goods that were in transit.

RESPONSE: Bakerly objects to this request as unduly burdensome and disproportionate to the overall needs of this case and outside of the scope of discovery in this case. The request is not specific enough for a response to specific transactions or specific as to what "transit" is being referenced.

Discussion: There is no legitimate basis for refusing to respond to the Interrogatory. To the extent that there could be any confusion regarding what is meant by “in transit” Seafrigo is seeking information regarding containers that were either on the water or at ports, terminals or other locations prior to their delivery to Bakerly warehouses.

Interrogatory No. 15. Provide a detailed description of all the reasons for every instance in which Bakerly was unable to accept or store goods that were in transit.

RESPONSE: Bakerly objects to this request as unduly burdensome and disproportionate to the overall needs of this case and outside of the scope of discovery in this case. The request is not specific enough for a response to specific transactions or specific as to what “transit” is being referenced.

Discussion. *See* discussion of Interrogatory No. 14

Interrogatory No. 18. Identify every instance in which Bakerly was unable to empty containers in its possession in order to avoid detention, per diem or storage charges from accruing.

RESPONSE: *See* Exhibit 07-1 for the list of issues related to D&D charges.

Discussion. The list provided does not respond to the Interrogatory.

Interrogatory No. 19: Provide a detail description of all the reasons for every instance that Bakerly was unable to empty containers in its possession in order to avoid detention, per diem or storage charges from accruing.

RESPONSE: Bakerly objects to this request as unduly burdensome and disproportionate to the overall needs of this case and outside of the scope of discovery in this case. Without waiving and subject to said objections, Complainant provides that in instances that Bakerly investigated these issues, it has provided the descriptions that are provided in Exhibit 7-01.

Discussion: The objection asserted by Bakerly is baseless given that the Interrogatory seeks information that goes to the heart of Seafrigo’s defense. Further, the descriptions provided in Exhibit 7-01 are not responsive.

Interrogatory No. 24. Identify all instances in which truckers or drayage providers had trouble scheduling appointments with Linden PA.

RESPONSE: Bakerly has not contracted Seafrigo for shipments to Linden PA. Therefore, this interrogatory cannot be responded to.

Discussion. The Bakerly response is disingenuous at best as Bakerly’s own documents refers to the Linden Team. Information related to the Linden Team and all communications with Lineage and other warehouses (whether in Pennsylvania, New Jersey or elsewhere) is sought.

Interrogatory No 25. Provide a detailed description of all the reasons for every instance in which truckers or drayage providers had trouble scheduling appointments with Linden PA.

RESPONSE: Bakerly has not contracted Seafrigo for shipments to Linden PA. Therefore, this interrogatory cannot be responded to.

Discussion: *See Discussion of Interrogatory No. 24.*

Interrogatory No 26. Identify all instances in which truckers or drayage providers had trouble scheduling appointments with other Bakerly warehouse users.

RESPONSE: Bakerly objects to this request as unduly burdensome and disproportionate to the overall needs of this case. Without waiving and subject to said objections, Seafrigo failed to properly communicate with Bakerly about issues that arose during delivery. Thus, Bakerly has no firsthand information regarding appointments at warehouses. On the other hand, Seafrigo has this information in its possession which it never timely communicated to Bakerly.

Discussion: The Answer is nonresponsive given that Bakerly was cc'ed on numerous communications regarding difficulties in scheduling appointments with Bakerly warehouses. Further it is implausible that Bakerly had no communications with its warehouse users on the issues.

Interrogatory No 27. Provide a detailed description of all the reasons for every instance in which truckers or drayage providers had trouble scheduling appointments with other Bakerly warehouse users.

RESPONSE: *See Interrogatory Response 26, above.*

Discussion. *See Discussion regarding Interrogatory No. 26.*

Interrogatory 30. Identify when Bakerly first learned that Seafrigo was advancing funds on its behalf to terminals or VOCCs.

RESPONSE: Seafrigo did not advance funds on Bakerly's behalf because Seafrigo was the NVOCC and the Consignee on the ocean common carrier's bill of lading. As the NVOCC, Seafrigo is the party responsible for demurrage and is directly billed for demurrage charges. In the context of the issues in this proceeding, it is Bakerly's contention that Seafrigo had obligations for delivery to door in the context of its bill of lading terms and its Rules Tariff.

Discussion. The Bakerly answer is non-responsive. To the extent that Bakerly contends that it never had any obligation to pay demurrage or detention charges assessed by carriers or terminals, the contention is ludicrous and flatly contradicted by Seafrigo's bill of lading terms and conditions and Seafrigo's tariff rules which governed the shipments at issue. A meaningful response is required.

Interrogatory No. 31: Identify whether Bakerly ever informed Seafrigo that it should not advance funds on its behalf to terminals or VOCCs.

RESPONSE: *See* Interrogatory Response 30, above.

Discussion. *See* Discussion of Interrogatory 30.

Document Requests

Document Request No. 4. All communications between Bakerly and Seafrigo regarding demurrage, detention or per diem charges.

RESPONSE: Bakerly objects to this request as unduly burdensome and disproportionate to the needs of the case, and documents already in the possession of Seafrigo.

Discussion: The Bakerly Complaint alleges that it was improperly assessed demurrage, detention or per diem charges. The argument that production of communications related to that subject is disproportionate to needs of the case is baseless. Responsive discovery is required.

Document Request No. 5. All communications regarding Seafrigo making advances to terminal operators or common carriers on behalf of Bakerly.

RESPONSE: Bakerly objects on the grounds that invoices from common carriers are sent to Seafrigo, in view of Seafrigo's business model of purchasing space on ocean carrier's vessels in its own name, and, thereby, appearing as consignee on ocean carriers bill of lading. Because of this, payments to terminal operators or common carriers while transporting Bakerly's goods are not advances on behalf of Bakerly. Seafrigo, pursuant to its bill of lading terms and Rules Tariff provisions, clearly states that Bakerly is not liable to Seafrigo for demurrage on "door delivery" moves. The shipments in question are all "door delivery."

Discussion. *See* discussions of Interrogatory Nos. 30 and 31.

Document Request No. 9. All documents relating to congestion at ports or terminals in 2021 or 2022.

RESPONSE: Bakerly objects to this request as unreasonably vague and requests unreasonably broad information, is unduly burdensome, is disproportionate to the needs of the case, and is outside the scope of discovery in this case. Insofar as Seafrigo is requesting information on general port or terminal congestion in 2021 and 2022, this information is publicly available and would be unreasonable to request that Bakerly provide to Seafrigo.

Discussion: One of the disputed issues in the case is whether charges assessed by terminals and steamship lines, which charges were simply passed through by Seafrigo to Bakerly, are potentially recoverable from Seafrigo as opposed to the steamship line or the terminal which assessed the charge. The issue of whether charges are the result of congestion at ports or terminals is therefore appropriate discovery.

Document Request No. 10: All documents relating to shortages of chassis in 2021 or 2022.

RESPONSE: Bakerly objects to this request as unreasonably vague and requests unreasonably broad information, is unduly burdensome, is disproportionate to the needs of the case, and is outside the scope of discovery in this case. Insofar as Seafrigo is requesting information on general chassis shortages in 2021 and 2022, this information is publicly available and would be unreasonable to request that Bakerly provide to Seafrigo.

Discussion: One of the disputed issues in the case is whether charges assessed by terminals and steamship lines, which charges were simply passed through by Seafrigo to Bakerly are potentially recoverable from Seafrigo as opposed to the steamship line or the terminal which assessed the charge. The issue of whether chassis were made available in instances in which detention and demurrage was assessed by steamship lines or terminals is therefore appropriate discovery.

Document Request No. 12. All documents relating to high volumes of containers on vessels.

RESPONSE: Bakerly objects to this request as unreasonably vague and requests unreasonably broad information, is unduly burdensome, is disproportionate to the needs of the case, and is outside the scope of discovery in this case. Use of the term “high volumes” in the context of all vessels, is too vague and broad for Bakerly to identify a reasonable universe within which Bakerly could provide information proportionate to the needs of the case.

Discussion: One of the disputed issues in the case is whether Bakerly was shipping a larger number of containers than it could receive, store and unload in a timely fashion so as to avoid detention and demurrage charge from accruing. Further, another disputed issue is whether charges assessed by terminals and steamship lines arising out of high-volume shipments, which charges were simply passed through by Seafrigo to Bakerly, are potentially recoverable from Seafrigo as opposed to the steamship line or the terminal which assessed the charge. For these reasons the documents sought are discoverable.

Document Request No. 15. All documents relating to Bakerly’s warehousing system.

RESPONSE: Bakerly objects to this request as unreasonably vague and is unduly burdensome, is disproportionate to the needs of the case, and is outside the scope of discovery in this case.

Discussion. Bakerly’s warehousing system and its ability to accept containers and to timely empty and allow for the return of containers so as to avoid detention and demurrage charges from accruing goes to the heart of Seafrigo’s defense. The contention that Bakerly need not produce responsive documents because it is unduly burdensome therefore is baseless.

Document Request No. 16. All documents relating to Bakerly being unable to accept or store goods that were in transit.

RESPONSE: Bakerly objects to this request as unreasonably vague and is unduly burdensome, is disproportionate to the needs of the case, and is outside the scope of discovery in this case. Without a definition for “unable to accept or store goods” or “in transit,” the document request is

unreasonable because the request is not specific enough for a response to specific transactions or specific as to what “transit” is being referenced.

Discussion: *See* Discussion of Interrogatory No 14, and Document Request No 15.

Document Request No. 18. All documents relating to Bakerly being unable to accept or store goods at its warehouses.

RESPONSE: Upon investigation, Bakerly has identified relevant emails regarding container CRXU6958355 from February 26, 2021. These documents are attached as Exhibit 18.

Discussion. Seafrigo has produced a large number of such communications. Bakerly’s limited production of documents regarding one container is clearly incomplete. Further, Bakerly has not produced any internal documents on this subject or communications with its warehousemen or other third parties.

Document Request No. 19. All documents relating to Bakerly being unable to timely unload containers at its warehouses.

RESPONSE: *See* attached Exhibits 19-1, 19-2, and 19-3.

Discussion. Seafrigo has produced a large number of such communications. Bakerly’s limited production is clearly incomplete. Further, Bakerly has not produced any internal documents on this subject or communications with its warehousemen or other third parties.

Document Request No. 22. All documents relating to storage of goods at or by Preferred Freezer Linden or Bakerly Barn.

RESPONSE: Bakerly objects to this request as unduly burdensome, disproportionate to the needs of the case, outside the scope of discovery in this case, and containing competitively sensitive information for Respondent’s competitors.

Discussion: The documents sought are clearly relevant. To the extent that Bakerly objects to the disclosure of competitively sensitive information, Seafrigo will consent to the entry of an appropriate protective order.

Document Request No. 23. All documents relating to truckers or drayage providers having trouble scheduling appointments with Bakerly warehousemen.

RESPONSE: Upon investigation, Bakerly could not identify any documents related to this request.

Discussion: Bakerly’s response that it has no such documents is clearly false as Bakerly is cc’ed on such communications that have been produced by Seafrigo. Seafrigo reasonably believes that Bakerly has additional responsive documents that it has not produced.

Document Request No. 24. All documents related to demurrage, detention or per diem charges accruing as a result of being unable to store goods.

RESPONSE: Bakerly objects to this request as unreasonably vague and requests unreasonably broad information, is unduly burdensome, is disproportionate to the needs of the case, and is outside the scope of discovery in this case. The request does not identify what party, if any, was unable to store the goods. Without waiving and subject to the objection, Bakerly has already provided Exhibit 07-1 to Complainant's Responses to Interrogatories, which outlines issues related to transportation, and such Exhibit is hereby attached to this Response as well.

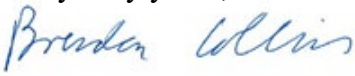
Discussion: Seafrigo submits that the information sought goes to the heart of Seafrigo's defense and is discoverable. Exhibit 07-1 does not provide all of the discovery to which Seafrigo is entitled.

Document Request No. 25. All documents relating to deliveries to the Linden, Pennsylvania area.

RESPONSE: Bakerly is not aware of any deliveries to the Linden, PA area.

Discussion: Bakerly's own documents refer to deliveries by the Linden Team. Documents related to the Linden Team are responsive and should be produced. Seafrigo also seeks all information and documents related to an inability to deliver cargo to warehouses in Linden New Jersey and other Bakerly warehouse locations.

Very truly yours,

A handwritten signature in blue ink that reads "Brendan Collins". The signature is written in a cursive, flowing style.

Brendan Collins

CERTIFICATE OF SERVICE

I do hereby certify that I have delivered a true and correct copy of the foregoing document to the parties to this proceeding by depositing same in the United States mail, first class postage prepaid, and/or via email transmission, this 7th day of December, 2022.

A handwritten signature in blue ink, appearing to read "Brendan Collins", is written over a horizontal line.

Brendan Collins